

GENERAL INFORMATION:

Country name: [United Kingdom of Great Britain and Northern Ireland](#)

Organization or entity responsible for the preparation of the report: [Department for Education, Westminster, London, SW1P 3BT.](#)

Education is devolved to the governments in Northern Ireland, Scotland and Wales, while the UK Government oversees Education in England.

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I. Ratification and applicability of the Convention against Discrimination in Education¹

Scotland, Wales and Northern Ireland

Northern Ireland, Scotland, Wales and have devolved education systems. Each country has their own legalisation and policies suited to the individual needs of each country to redress discrimination and equality in education.

- Is your country a State Party to the Convention?

☒ Yes

- No: [Does your country plan to ratify this instrument?](#)

☐ Yes: [Please indicate the stage of ratification process reached by your country and whether assistance is needed:](#)

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- [Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered \(legal, institutional, political or practical\) in completing the ratification process. And how UNESCO can assist:](#)

☐ No, not considering ratification. [Please explain why:](#)

- Is the Convention directly applicable in your country's domestic law?

¹ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

☐ Yes ☒ No

Scotland

It is not wholly incorporated. However, there are provisions of law directed at the same outcome as a number of its provisions. E.g. much of article 3 is reflected in the provisions of the Education (Scotland) Act 1980 or expressly provided for in the Equality Act 2010 (art. 3b, much of c, and d and e.). Article 5(1) is broadly reflected in section 1 of the Standards in Scotland's Schools etc. Act 2000.

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?²

☐ No

☒ Yes:

Scotland

Yes: The Health and Education Chamber of the First Tier Tribunal considers references under the Education (Additional Support for Learning) (Scotland) Act 2004 and Claims under the Equality Act 2010 relating to disability discrimination in schools. The Sheriff Court in Scotland also adjudicates violations in relation to education.

Have the provisions of the Convention been invoked?

☒ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

The Human Rights Act 1998

The Human Rights Act 1998 sets out the fundamental rights and freedoms that everyone in the UK is entitled to. It incorporates the rights set out in the European Convention on Human Rights (ECHR) into domestic British law. The Human Rights Act came into force in the UK in October 2000. The Human Rights Act 1998 applies to England Scotland and Wales devolved countries only.

The UK Government

The Convention is made up of a series of Articles. Each Article is a short statement defining a right or freedom, together with any permitted exceptions. It provides public authorities with a legal framework to help them to ensure that their actions respect the human rights of those for whom they provide services, which may help prevent problems arising in the first place or enable a resolution without the need to go to court.

Article 2 of Protocol 1 calls for a: Right to education - Everyone has the right not to be denied access to the educational system.

A person has a right not to be denied access to the existing educational system. Parents have a right to make sure that their religious or philosophical beliefs are respected when public authorities provide education or teaching to their children.

Anyone who believes that a state has violated their human rights should first take every possible step to have their case resolved in that state, including through the courts. If they believe that their violation has not been resolved, they can then take their case to the European Court of Human Rights, set up by the European Convention on Human Rights and based in Strasbourg, France.

The right to education case law

The UK Government has not found any cases where there has been clear consideration of the Convention itself, but the right to education in Article 2 Protocol 1 of the ECHR (no person shall be denied a right to an education).

In the exercise of any functions which it assumes in relation to education and to teaching, the State shall respect the right of parents to ensure such education and teaching is in conformity with their own religious and philosophical conviction and belief) has been considered in the following cases;

Case	Citation
A: ECHR Jurisprudence	
Campbell and Cosans v UK	[1982] 2 WLUK 297 Application no. 7511/76; 7743/76
Golder v UK	Application no. 4451/70
Fayed v UK	Application no. 17101/90
X v UK	Application 8844/90
Foreign Students vs UK	TBC
Ali v UK	Application 40385/06
Sorabjee v UK	Application No. 23938/94
Jaramillo v UK	Application No. 24865/94
Dabhi v UK	Application No. 28627/95
Lee v UK	Application no. 25289/94
Whitman v UK	Application No. 13477/87
CP v UK	Application no. 300/11
McIntyre v UK	Application No. 29046/95
Graeme v UK	Application No. 13887/88
X v UK	Application No. 7627/76
B: United Kingdom Matters	
Christian Institute v Lord Advocate (Scotland)	Court of Session (Outer House): [2015] 1 WLUK 457 Court of Session (Inner House): [2015] 9 WLUK 58
Clare Page v The Information Commissioner, School of Sexuality Education	FTT: Case Reference: EA/2022/0330
The King (On the Application of Stephen Bowen) v Kent County Council	High Court: Case No: CO/3365/2022
R (ZB) v Croydon LBC	High Court: [2023] 3 WLUK 104
JR87's Application for Judicial Review, Re	QBD (NI): [2022] 7 WLUK 581

Jasim v Scottish Ministers	Court of Session (Outer House): [2022] 9 WLUK 131
R (Isherwood) v Welsh Ministers	KBD (Admin): Case No: CO/1211/2022
Application by JR183	QBD (NI): [2022] NIQB 26
R (Q) v Staffordshire CC	QBD (Admin): [2021] 12 WLUK 120
R (Goodred) v Portsmouth City Council	QBD (Admin): [2021] 11 WLUK 212
JR143's Application for Judicial Review, Re	QBD (NI): [2021] 8 WLUK 318
OA v Secretary of State for Education	QBD (Admin): [2020] 2 WLUK 383
Ali v Lord Grey School	[2006] UKHL 14 [2006] 2 AC 363
R. (on the application of Begum) v Denbigh High School Governors	[2006] UKHL 15

Scotland
The details are set out in the section above.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.³*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

³ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

UK Government

The Department for Education (DfE) is responsible for children's services and education, including early years, schools, higher and further education policy, apprenticeships and wider skills in England, and equalities.

Our mission is to help create a country where there is social mobility and equality of opportunity by providing excellent education, training and care, and to help everyone reach their potential, regardless of background.

Northern Ireland

Meeting the changing needs of children and young people is a key priority for the Department of Education (DE) in Northern Ireland and has required them to develop a definition of inclusive education within the context of their education system. The development of a roadmap for inclusion is now underway and a programme of engagement, with key educational stakeholders including political representatives. It will inform the development of an Inclusive Education policy and an implementation plan.

The DE in Northern Ireland is continuing to progress the implementation of the Special Educational Needs (SEN) Framework in conjunction with the Department of Health, the Education Authority and other key stakeholders.

Scotland

The Equality Act 2010, the Education (Additional Support for Learning) (Scotland) Act 2004 and the Education (Disability Strategies and Pupils Educational Records) (Scotland) Act 2002 Act require that all children and young people receive equal access and are supported to access education and learning. The presumption to mainstream education in Scotland also seeks to ensure that children and young people with additional support needs benefit from education in a mainstream setting.

The Scottish Government's commitment to ensure that pupils have access to education is confirmed via national statistics which consider a range of characteristics. [Pupil census supplementary statistics - gov.scot \(www.gov.scot\)](#)

[The purpose of the curriculum | About Curriculum for Excellence | Curriculum for Excellence | Education Scotland](#)

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation⁴, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b⁵

o Legal texts⁶ prohibit discrimination and guarantee equal access to education:

☒ In pre-primary education (including early learning and care)

⁴ See: Article/Paragraph 1(1).

⁵ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

⁶ Constitution, laws, decrees, regulations, circulars, etc.

- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

UK Government

Equality Act 2010

The Equality Act 2010 offers individuals protection against discrimination in the UK. The Act also gives employers, businesses, service providers and education providers greater clarity about their responsibilities, and it sets out an expectation that public services must treat everyone with dignity and respect. It means that discrimination or unfair treatment on the basis of certain personal characteristics, such as race and sex are unlawful.

The Public Sector Equality Duty (PSED) came into force on 5 April 2011 in the UK. Both Wales and Scotland have a similar duty of the same name, called Regulations that are not accurately mirrored to that of the UK.

The purpose of the PSED is to make sure that public authorities and organisations carrying out public functions think about how they can improve society and promote equality in every aspect of their day-to-day business. This means that they must consider, and keep reviewing, how they are promoting equality in:

- decision-making
- internal and external policies
- procuring goods and services
- the services they provide
- recruitment, promotion and performance management of employees

It also requires that public bodies have due regard to the need to:

- eliminate discrimination, harassment and victimisation
- advance equality of opportunities between people who have a protected characteristic and those who do not
- foster good relations between different people when carrying out their activities

The relevant protected characteristics are:

- age
- disability
- gender reassignment
- pregnancy and maternity
- race
- religion or belief
- sex
- sexual orientation

Showing 'due regard' means that a public body should consider each of the aims of the PSED and then whether and how they should be applied to the decision that is being made.

The public authority must also take other relevant considerations into account ⁷. Failure to show regard may mean the public body is in breach of their public sector equality duty.

DfE Equality objectives

Public authorities listed in Schedule 1 and 2 of the Equality Act 2010 (Specific Duties) Regulations 2011 (the specific duties) must prepare and publish one or more equality objectives they think they should achieve to do any of the things mentioned in the aims of the general equality duty. The DfE [Prepared Equality objectives in 2022](#) that will do the following.

1. Driving Economic Growth
2. Levelling Up Education Standards
3. Support the most disadvantage and vulnerable children
4. Best Start in life

To support the department deliver on our wider equality and diversity objectives, we invest in excellent analysis and research to support policy teams enact their equality duty obligations.

Equality in policy making

The DfE ensures that it abides by its obligation to comply with the Equality Act 2010 and Public Sector Equality Duty. By putting processes and capability materials and products in place for policy teams to use, this supports teams to demonstrate compliance with the Act. This includes Equality Impact Assessments (EIA) undertaken at the beginning of the policy life cycle, these assessments are designed to mitigate against any discriminatory practice whilst policy and decision making.

The Equality Act 2010 – Positive Action

The Equality Act 2010 allows service providers to take action that may involve treating one group more favourably who share a protected characteristic where this is a proportionate way to help members of that group overcome a disadvantage or participate more fully, or in order to meet needs they have that are different from the population as a whole. This is called 'positive action'. Where this is a proportionate way to enable or encourage members of that group to:

- overcome or minimise a disadvantage
- have their different needs met
- participate in a particular activity

This is because some groups are disadvantaged or under-represented, or have different needs from the population as a whole due to past or present discrimination or exclusion or particular experiences.

Examples of discrimination

Direct discrimination (including discrimination based on perception or association)

This means treating one person worse than another person because of a protected characteristic.

Indirect discrimination

⁷ Chavda & Ors, R (on the application of) v London Borough of Harrow [2007] EWHC 3064 (Admin) (20 December 2007) (baillii.org)

This can happen when an organisation puts a rule or a policy or a way of doing things in place which has a worse impact on someone with a particular protected characteristic than someone without one.

Harassment

This is where people treat you in a way that violates your dignity, or creates a hostile, degrading, humiliating or offensive environment.

Victimisation

This is when someone is treated less favourably as a result of being involved with discrimination or harassment complaint.

Discrimination arising from disability A person is a disabled person (that is, someone who has the protected characteristic of disability) if he or she has, or has had, a physical and/or mental impairment that has what the law calls 'a substantial and long-term adverse effect on [his or her] ability to carry out normal day-to-day activities'.

Failure to make reasonable adjustments (for disabled people)

The duty is 'to take such steps as it is **reasonable** to have to take to avoid the substantial disadvantage' to a disabled person caused by a provision, criterion or practice applied by or on behalf of a school, or by the absence of an auxiliary aid or service.

In the Act as a whole, there are three elements to the reasonable adjustments duty that relate to:

- Provisions, criteria and practices
- Auxiliary aids and services
- Physical features

Part 6 of the Equality Act 2010 specifically covers education including schools (including maintained nursery schools), further education, higher education and general qualifications bodies. Not all education providers will fall within Part 6, but if not, they will be covered by Part 3 of the Equality Act 2010 relating to service provision and will still be subject to prohibitions on discrimination.

Chapter 1 of Part 6 sets out specific prohibitions on discrimination against pupils in schools on the basis of any of the protected characteristics set out in the Act, when seeking admission to schools, when accessing the education and benefits provided, or by being excluded from school. The Act sets out non-discrimination requirements of schools in relation to provision of education and access to benefits, facilities or services. These cover all of the services, facilities and benefits, both educational and non-educational, that the school provides, or offers to provide, for pupils. Chapter 2 of Part 6 sets out specific prohibitions on discrimination against students in further or higher education provision on the basis of any of the protected characteristics set out in the Act, when seeking admission to further or higher education, in the education and benefits provided, or by being excluded from further or higher education.

Chapter 3 of Part 6 sets out specific prohibitions on discrimination by a qualifications body in relation to the conferring of qualifications, including in relation to the arrangements for conferring a qualification and the terms on which it will confer a qualification or by withdrawing or varying the qualification.

Allegations of disability discrimination against schools can be appealed to the First-Tier Tribunal (Special Educational Needs and Disability).

The Education Act 1998 An education provider will need to deliver its education suitable to a child's age, ability and aptitude and any special educational needs they might have – as specified in the Education Act 1998.

Higher Education and Research Act (HERA)

The Higher Education and Research Act (HERA) 2017 established the Office for Students (OfS), as the regulator for higher education (HE). It has a statutory duty to have regard to the need to promote equality of opportunity in relation to the whole student lifecycle: not just access and participation, but also student success and progression.

Equality and Human Rights Commission (EHRC)

The EHRC is Britain's equality and human rights and ECHR regulator, they do not regulate for Northern Ireland. They enforce equality legislation on; age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion or belief, sex and sexual orientation. The **Equality Act 2006** gives the EHRC a range of powers to enforce the Equality Act 2010 and protect human rights.

EHRC Enforcement Powers

Enforcement powers include:

- investigate an organisation or individual that we suspect has broken equality law
- enter into a formal, legally binding agreement with an organisation or individual; this allows us to agree an action plan to prevent future discrimination.

EHRC Litigation Powers

Litigation powers include:

- give legal assistance to individuals making claims under the Equality Act 2010
- take, or get involved in, cases that will strengthen equality and human rights laws.

EHRC Fund for Race discrimination cases

Since November 2021, a fund was set up to improve outcomes for victims of discrimination and racial harassment.

The fund has helped employers, service providers and educational establishments to understand their responsibilities and what the consequences of not following the law are. This fund forms part of the Legal Support Scheme.

Northern Ireland, Scotland and Wales both have a devolved education system. We have detailed where both countries have enacted legislation that supports the delivery of a non-discriminatory and inclusive education system.

Wales

The key legislation applicable to Wales is the [Curriculum & Assessment Wales Act 2021](#). Information about the details of the implementation, content, and cross cutting themes of the Curriculum for Wales can be found at [Summary of legislation - Hwb \(gov.wales\)](#), this also includes details on [human rights](#).

The additional learning needs (ALN) system is the new system for supporting children and young people aged 0 to 25 in Wales with ALN. The ALN system is replacing the special educational needs (SEN) system and the system for supporting young people with learning difficulties and/or disabilities (LDD).

The ALN legislative framework is created by the Additional Learning Needs and Education Tribunal (Wales) Act 2018 (the ALN Act), the Additional Learning Needs Code for Wales

2021 (the ALN Code) and [regulations](#) made under the Act. Through this statutory framework the Welsh Government aims to ensure all learners with ALN are supported to overcome barriers to learning and can achieve their full potential, by creating:

- a unified legislative framework to support all children of compulsory school age or below with ALN and to support young people with ALN who are in school/pupil referral unit (PRU) or further education (FE)
- an integrated, collaborative process of assessment, planning and monitoring of the support provided to ALN learners which facilitates early, timely and effective interventions
- a fair and transparent system for providing information and advice, and for resolving concerns and appeals

The ALN Act replaces the terms 'special educational needs (SEN)' and 'learning difficulties and/or disabilities (LDD)' with the new term 'additional learning needs (ALN)'. All children and young people with ALN, regardless of the severity or complexity of their learning difficulty or disability, will generally be entitled to a statutory support plan called an individual development plan (IDP). Children and young people with ALN will receive support called additional learning provision (ALP) which will be set out in their IDP.

Higher and Further Education and TVET

The [Public Sector Equality Duty](#) and its application to the Commission for Tertiary Education and Research, universities and colleges in Wales. The [Commission for Tertiary Education and Research \(CTER\)](#) will be a new arm's length body responsible for funding and overseeing post-16 education and research from August 2024.

Ongoing monitoring by Equality and Human Rights Commission [Our work in Wales | EHRC \(equalityhumanrights.com\)](#)

[Tertiary Education and Research \(Wales\) Act 2022 \(legislation.gov.uk\)](#) - General duty on CTER to promote equality of opportunity in tertiary education.

Northern Ireland

Section 75 of the Northern Ireland Act 1998 is a statutory duty on public authorities, designated for the purposes of the Act to comply with two statutory duties. The first duty is the Equality of Opportunity duty, which requires public authorities in carrying out their functions relating to Northern Ireland to have due regard to the need to promote equality of opportunity between the nine equality categories of persons of different religious belief, political opinion, racial group, age, marital status or sexual orientation; men and women generally; persons with a disability and persons without; and persons with dependants and persons without. The second duty, the Good Relations duty, requires that public authorities in carrying out their functions relating to Northern Ireland have regard to the desirability of promoting good relations between persons of different religious belief, political opinion and racial group.

Scotland

The below legislative provision relates to the delivery of early years and school education in Scotland:

- UNCRC (Incorporation) Scotland Act 2024.
- Education authorities, have duties under the Equality Act 2010 to actively deal with inequality, and to prevent direct discrimination, indirect discrimination and harassment or victimisation of pupils on the basis, or a perceived basis, of protected characteristics. The protected characteristics in force in relation to schools are: disability, gender reassignment, pregnancy and maternity, race, religion or belief, sex, sexual orientation.

- In addition, those responsible for the management of schools and other educational establishments have a duty to make reasonable adjustments for disabled pupils.
- Education authorities have duties under the Education (Additional Support for Learning) (Scotland) Act 2004 to identify, provide for and review the additional support needs of their pupils. Under the Act, an additional support need can arise for any reason and be of short or long-term duration. The intent is to overcome any barriers preventing children and young people from benefiting from their education.
- Under the Education (Disability Strategies and Pupils' Educational Records) (Scotland) Act 2002 education authorities have duties to develop and publish accessibility strategies to increase pupils access to the curriculum, access to the physical environment of schools and improving communication with pupils with disabilities.
- Section 15 of the Standards in Scotland's Schools etc. Act 2000 places a duty on education authorities to provide education in a mainstream school unless specific exceptions apply. This provision supports 95% of pupils with an additional support need to learn in mainstream classes (pupil census 2023).
- The Human Rights Act 1998 sets out the fundamental rights and freedoms that everyone in the UK is entitled to. It incorporates the rights set out in the European Convention on Human Rights (ECHR). Convention rights, Protocol 1, Article 2: Right to education and Article 14: Protection from discrimination in respect of these rights and freedoms.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

UK Government

It is unlawful for a school to discriminate against an applicant or pupil in relation to:

- Admissions – The Equality Act 2010 does permit schools with a religious designation to prioritise children with a faith for admission above those with no faith. This is lawful discrimination in admissions within the Equality Act.
- The provision of education
- Access to any benefit, facility or service
- Exclusions
- Any other detriment

Detail of the relevant legislative provision is set out in section 1.1 above.

Scotland

Detail of the relevant legislative provision is also set out in section 1.1 above.

o Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

UK Government

Disability Discrimination

It is unlawful to discriminate against a person because of their disability as set out above in section 1.1 and therefore the Equality Act makes provision for reasonable adjustments to be made for those who require it.

Discrimination arising from disability occurs when a school or education setting treats a disabled pupil unfavourably because of something connected with his or her disability and cannot justify such treatment.

Inclusive Britain

On 31 March 2021 the [Commission on Race and Ethnic Disparities](#) published its independent report into racial and ethnic disparities in the UK.

In response, the previous UK Government published its [Inclusive Britain strategy](#) in March 2022 to tackle racial and ethnic disparities and ensure fairness in the UK. This strategy set out 74 actions, with the DfE in England leading on 29 of the actions. The previous UK Government published a second [update report](#) on 24 May 2024 which sets out the progress made in delivering the Inclusive Britain action plan since it was published. Examples of these actions include:

- A commitment to create a resource for schools on pupils' hairstyles to ensure ethnic minority children were not being discriminated against. In October 2022, the EHRC published guidance for schools on ['Preventing hair discrimination in schools'](#).
- A programme of analysis to understand pupil attainment and investigate whether there are any specific findings and implications for different ethnic groups to tackle disparities. In 2022 two evidence notes were published on [ethnicity disparities in school attainment](#) and [post-16 education outcomes](#).
- In November 2023 research was published on [how schools narrow attainment gaps between ethnic groups](#).
- To increase the numbers of young ethnic minorities in apprenticeships, in the 2023/24 academic year DfE increased the number of schools the Apprenticeship Support and Knowledge programme engages with that have high proportions of students from an ethnic minority background.

Pre-Primary education:

In England, the Early Years Foundation Stage statutory framework (EYFS) sets the standards and requirements that early years providers must follow to ensure every child aged 0 – 5 has the best start in life and is prepared for school. The EYFS requirements, including the learning and development requirements, promote diversity and inclusion across a range of characteristics such as culture, family structures, disabilities, ethnicity, gender, religion and sexual orientation. The Office for Standards in Education, Children's Services and Skills (Ofsted) is primarily responsible for the registration and regulation of early years provision in England, including ensuring compliance with the requirements set out in the EYFS. Childminder agencies are directly responsible for the registration, regulation and quality assurance of early years providers registered with them, although Ofsted is responsible for the registration, regulation and inspection of childminder agencies.

School Admissions

See section 1.2 for details on school admissions.

Behaviour

Suspension and Permanent Exclusion

In England, head teachers can use suspension and permanent exclusion, when required. Schools should only be using permanent exclusion as a last resort, and this should not mean exclusion from education.

DfE has published guidance on [Behaviour in Schools](#), [Mental Health and Behaviour in Schools](#), and [Suspension and Permanent Exclusion statutory guidance](#). The Suspension and Permanent Exclusion guidance makes clear that all decisions to exclude a pupil must be lawful, reasonable, and fair. The guidance also sets out that schools should consider early intervention to reduce the likelihood of exclusion for all pupils. This is to ensure appropriate support is in place when concerns arise to address the behavioural issues of pupils, rather than waiting for a specific trigger.

In England, DfE's [Understanding your data: a guide for school governors and academy trustees](#) makes clear governing boards should carefully consider the level and characteristics of pupils who are leaving the school and deploy maximum challenge to the school and academy trust management teams on any permanent exclusions.

Anti-bullying

All schools in England are legally required to have a behaviour policy with measures to prevent all forms of bullying. They have the freedom to develop their own anti-bullying strategies appropriate to their environment and are held to account by Ofsted. In England, the UK Government provides advice for schools, which outlines schools' responsibilities. This guidance is available here: [Preventing and Tackling Bullying \(GOV.UK\)](#).

Over £3 million of funding was provided between August 2021 and March 2024 to five anti-bullying organisations to support schools to tackle bullying. This included projects targeting bullying of particular groups, such as those who are victims of hate related bullying and HBT based bullying.

The UK Government has also published [Respectful School Communities](#) on its website *Educate Against Hate*. This resource is a self-review and signposting tool to support schools to develop a whole-school approach which promotes respect and discipline.

Gypsy, Roma and Traveller Stakeholder Group

The UK Government also convenes a GRT stakeholder group, chaired by a member of the House of Lords, which meets termly (three times a year). This provides opportunity to hear about the experiences and concerns in GRT communities. Members of the group include Traveller Movement, Friends, Families & Travellers, ACERT, Future 4 Fairgrounds and Roma Support Group.

Higher Education

See section above about the Higher Education and Research Act (HERA) 2017.

Adult education and alternative learning

The Adult Education Budget (AEB) (known as the Adult Skills Fund (ASF) from 1 August 2024) is available to all adult learners (aged 19+) who meet the residency eligibility criteria and funding criteria. Currently, approximately 60% of the AEB is devolved to 9 Mayoral Combined Authorities (MCAs) and delegated to the Mayor of London acting through the Greater London Authority (GLA). These authorities are responsible for the provision of adult education and allocation of the AEB in their local areas allowing them to meet specific local demands.

The Education and Skills Funding Agency (ESFA) is responsible for the remaining AEB in non-devolved areas where colleges and training providers have the freedom and flexibility to determine how they use their AEB to meet the needs of their communities. In ESFA funded

areas, to enable those on lower wages to access ASF qualifications, any learner who earns below the low wage threshold (£25,000 from 1 August 2024) or are unemployed can be fully funded for their qualification.

Learner support is available to provide financial support for learners with a specific financial hardship preventing them from taking part of continuing in learning. Tailored learning supports learners to progress to employment or further education, supporting wider outcomes such as health and wellbeing and to develop stronger communities.

Wales

The Welsh Government is committed to ensuring the eradication of racial discrimination and challenging any regression in equality and non-discrimination. [The Anti-Racist Wales Action Plan](#), (ARWAP) published in June 2022, has the ambition of creating an anti-racist Wales by 2030.

Discrimination and disadvantages are not solely based on one identity but result from a cumulative impact of disadvantage such as age, gender, socio-economic status, disability, sexual orientation, and nationality. The importance of intersectionality has therefore been crucial in formulating the ArWAP and in the implementation of its goals and actions across all the policy areas covered by the plan.

Specific education actions have been included within the ArWAP to: improve the experiences of Black, Asian, and Minority Ethnic learners and teachers in schools; promote and ensure the well-being of Black, Asian and Minority Ethnic learners; and reduce instances of prejudice related bullying, discrimination and racism experienced by ethnic minority and Gypsy, Roma and Traveller learners in school.

Diversity is a cross-cutting theme within the Curriculum for Wales introduced in September 2022. It is mandatory to teach Black, Asian, and Minority Ethnic histories, contributions, and experiences, including those of Gypsy, Roma and Traveller communities, as part of the story of Wales, in the curriculum. When designing a curriculum, practitioners should incorporate opportunities for learners to celebrate diverse backgrounds, values and characteristics and develop an understanding of people with different cultures, histories, beliefs and lived experience.

The Welsh Government provides a total of £11million annually to local authorities (LAs) in Wales, via the Minority Ethnic, Gypsy, Roma Traveller (MEGRT) grant, to fund local educational support services. Funding may be used to support delivery of local Traveller Education Services (TES) and Ethnic Minority Achievement Services (EMAS). The key objectives of the funding are to promote and ensure inclusion and integration of learners into education, equity of education and opportunity by removing barriers to accessing the curriculum and improving school attendance, plus engaging with learners and their families.

Challenging bullying in schools is a key priority for the Welsh Government and are committed to ensuring all learners feel safe, secure, and supported to achieve their full potential. All young people have a right to an education and to be treated equally. In 2019 the Welsh Government published statutory anti-bullying guidance Rights, Respect, Equality. This sets out expectation that prejudice-related bullying and racism is addressed by all schools and education settings within a prevention strategy that expressly considers the needs of all learners with protected characteristics. The Welsh Government will be refreshing the “Rights, Respect Equality” statutory guidance to support schools in tackling prejudice related bullying, discrimination and addressing racist incidents.

The 2021 [Cynefin’ report](#) was pivotal to the development of the Curriculum for Wales and the education strand of the Welsh Government’s 2022 ARWAP. To realise ARWAP actions and

goals in relation to professional learning for the education workforce, Diversity and Anti-racist Professional Learning (DARPL) launched in 2022.

DARPL is led by Cardiff Metropolitan University, with a coalition of partners with lived and professional experience, including Show Racism the Red Card Wales, I'm Representing, and the Black Curriculum. Building on the success of anti-racist provision for the schools' sector in 2023, DARPL extended to childcare, playwork and early years and further education. Anti-racist resources, training, and guidance for education, childcare and playwork are available in one place through the [DARPL virtual campus](#).

Wales

Early years

In Wales, LAs must make a funded part time nursery education place available (a minimum of 10 hours a week) for three- and four-year-olds, dependent on when their birthday falls. This forms part of the Childcare Offer.

Flying Start is the Welsh Government's flagship early years programme. It continues to make a real difference to the lives of children in some of the most disadvantaged communities. This targeted early years programme aims to make a decisive difference to the life chances of children under 4 years of age in the areas which it runs. It includes four core elements: these being fully funded quality childcare for 2.5 hours a day, 5 days a week, parenting support, intensive health visitor support, and support for speech, language and communication.

The [Pupil Development Grant](#) is funding for schools and settings to raise the attainment of children and young people from low-income households and those who are care-experienced. It does this by reducing the barriers that they often face to achieving their full potential.

The [School Essentials Grant](#) has made a significant difference to many lower income families across Wales, helping to reduce the worry surrounding the purchase of school uniform and equipment, enabling children to attend school and take part in activities at the same level as their peers.

Northern Ireland

Towards Inclusive Education Policy - see section 1 above.

The DE in Northern Ireland youth work policy (Priorities for Youth) states that quality and inclusion should be fundamental to planning and implementation and the values of equality, diversity and interdependence should be at the heart of youth work.

The Youth Work Curriculum (A Model for Effective Practice) is based on key principles including Equity, which is essentially about fairness. The curriculum states that "At one level it is about ensuring that people have equality of opportunity regardless of things such as their ethnic or community background, gender or sexuality, or disability while also recognising that equity is more than equality - treating everyone the same is not the same as treating everyone fairly. It is about ensuring no direct or indirect exclusion of people, and seeking ways of including those who might otherwise feel excluded.

The Department for the Economy whose responsibilities includes oversight and funding of the further and higher education sectors, are responsible for the provision of Free Period Products under the "Period Products (Free Provision) Act (Northern Ireland) 2022" in their premises.

Scotland

There are a range of policies and guidance in place which support the prohibition of discrimination and ensure equal access to education in pre-primary, primary and secondary education. Key strategies include -

Scottish Attainment Challenge (SAC)

The mission of the Scottish Attainment Challenge (SAC) is to use education to improve outcomes for children and young people impacted by poverty, with a focus on tackling the poverty-related attainment gap.

The SAC programme continues to provide support for children and young people impacted by poverty. It is targeted according to the number of children registered for free school meals, the number of children in low-income families and the number of care experienced children and young people either in a school (Pupil Equity Funding) or local authority area (Strategic Equity Funding and Care Experienced Children and Young People funding).

The SAC funding forms a key contribution from education services to eradicating child poverty, by providing a long-term investment in the futures of children and young people to improve outcomes and break the cycle of poverty; and more immediately by supporting a range of work to reduce the cost of the school day and support access to income maximisation services for families impacted by poverty.

Anti-Racism in Education Programme (AREP)

The Anti-Racism in Education Programme aims to create an education system that is fundamentally anti-racist. The Programme consists of four workstreams that seek to address interrelated challenges to embed anti-racism, overseen by a Programme Board made up of education and race equality stakeholders. These workstreams are:

- Education Leadership and Professional Learning;
- Racism and Racist Incidents
- Diversity in the Teaching Profession and Education Workforce
- Curriculum Reform

As part of the work of the AREP, the Scottish Government are committed to increasing the ethnic diversity of Scotland's education workforce to ensure that it is representative of the communities that it serves. A number of actions are underway that aim to address this vital issue. These include:

- Supporting the delivery of the Scottish Council of Deans' National Anti-Racism Framework for Initial Teacher Education;
- Introduction of new Action Guide for Local Authorities, due to publish in September 2024. This guide will empower local authorities to take an anti-racist approach to their recruitment, retention and progression policies and procedures with regards to teachers;
- Supporting the General Teaching Council for Scotland in the delivery of its upcoming guide for sponsoring models, aimed at minority ethnic teachers;
- Ongoing publication of the Annual Diversity in the Teaching Profession Data Report, to enable proper monitoring of progress towards diversifying the teaching profession in Scotland.

Presumption to provide education in a mainstream setting

In Scotland, the right to an education which is directed to the development of the personality, talents and mental and physical abilities of the child or young person to their fullest potential is enshrined in law.

There is guidance in place to support the implementation of the presumption of mainstream education. This links the provisions of the Equality Act 2010, Education (Additional Support for Learning) (Scotland) 2004 Act and Standards in Scotland's Schools etc. Act 2000: [2 Key Features of Inclusion and Developing Inclusive Practice - Presumption to provide education in a mainstream setting: guidance - gov.scot \(www.gov.scot\)](#)

Guidance for education authorities is also provided by the [Supporting Children's Learning Code of Practice](#), that accompanies the Education (Additional Support for Learning) (Scotland) Act 2004 and supports the effective implementation of this legislation.

Through Curriculum for Excellence the Scottish government is committed to ensuring that all children and young people are included fully in their learning. That means making sure that those at risk of being marginalised in education are as fully engaged in their learning as they can be. Disabled learners may face barriers to learning. However, these barriers are not an inevitable result of their difficulties or medical conditions. There is guidance in place to support responsible bodies in the development and maintenance of accessibility strategies.

Additional Support for Learning Action Plan

The [Review of Additional Support for Learning Implementation](#) made recommendations on how to improve implementation of additional support for learning (ASL).

Our [Additional Support for Learning Action Plan](#) with COSLA and ADES, published October 2020, set out the measures we will take to implement the recommendations, including those relating to the participation of children and young people in decisions relating to their additional support needs. An [Updated Additional Support for Learning Action Plan](#) and progress report, published November 2022, highlighted the actions that have been fully completed, including the publication of the [Vision Statement for Success](#) for children and young people with additional support needs, which was created by Young Ambassadors.

We are working closely with local government partners through the Additional Support for Learning Project Board to deliver the remaining actions and a further update is due later in 2024.

The [Planning improvements for disabled pupils' access to education: guidance for education authorities, independent and grant-aided schools](#) describes the requirements the Education (Disability Strategies and Pupils' Educational Records) (Scotland) Act 2002 places on education authorities and schools to work to improve the education of disabled learners and to help ensure that they are properly included in, and able to benefit fully from, their school education.

In addition there is guidance in place to support:

- improved outcomes for children and young people who are from Gypsy/Traveller families
[Educational outcomes for Gypsy/Traveller children - Gypsy/Travellers - gov.scot \(www.gov.scot\)](#)
- [Supporting children and young people with healthcare needs in schools: guidance - gov.scot \(www.gov.scot\)](#)
- [Education of children unable to attend school due to ill health: guidance - gov.scot \(www.gov.scot\)](#)

The Scottish Government also funds the services below to provide parents, carers, children and young people information and support on their rights and education authorities' responsibilities in relation to additional support for learning:

- Enquire provides independent and impartial advice for parents, families, professionals and others caring for or working with children and young people with additional support needs.
- Let's Talk ASN is an advocacy and legal representation service that provides help to parents, carers and young people in exercising their rights.
- My Rights, My Say is a children's service which provides advice and information, advocacy support, legal representation and a service to seek children's views independently about their rights to support.

In addition, the Scottish Government funds the Scottish Traveller Education Programme (STEP) which supports families and teachers in maintaining relevant and appropriate education for Gypsy/Traveller children and young people

Gypsy/Traveller Children and Young People

The joint Scottish Government and COSLA Action Plan, [Improving the Lives of Scotland's Gypsy/Travellers: 2019-2021](#), aimed to improve outcomes for Scotland's Gypsy/Travellers in the areas like accommodation, education and health. The actions in the Plan were developed with members of Gypsy/Traveller communities and stakeholders. The Plan was extended until spring 2023 due to the effects of the Covid pandemic. It was then refreshed for the period June to September 2023, to ensure it remained relevant to the needs of Gypsy/Traveller communities. It expired in September 2023 but the Scottish government are still working on some of the actions of the Plan and are making sure the needs of Gypsy/Traveller communities can be addressed in this interim phase as well.

The Scottish Government are currently gathering data on successes and challenges with policy colleagues across the Scottish Government to review progress against the previous Action Plan.

In partnership with COSLA, the Scottish Government are also currently undertaking a listening exercise with Gypsy/Traveller communities to inform the development of a new Action Plan.

This exercise commenced in July 2023 and will conclude at the end of summer 2024. The Scottish Government aim to publish the new plan, which will focus on smaller, deliverable, and concrete actions. Partner organisations receive funding to support young people in education, celebrate the culture of Gypsy/Travellers and support the Scottish Government in its decision-making processes to meet the needs of Gypsy/Traveller communities.

LGBT inclusive education

LGBT inclusive education is a core part of relationships, sexual health and parenthood learning within the health and wellbeing area of the curriculum. Scotland will be the first country in the world to have LGBT inclusive education embedded across the curriculum. Inclusive education needs to start early so all children and young people begin to learn and understand tolerance, respect, and equality. This will support our children and young people to build healthy relationships and prevent prejudice occurring in any form.

In partnership with the Convention of Scottish Local Authorities (COSLA), the Scottish Government has promoted effective delivery of LGBT inclusive education in all Scottish schools and engaged with young people to seek their views and experiences. The [lgbteducation.scot](#) website, which was funded by the Scottish Government, is also an important

resource that contains a toolkit of inclusive education resources and a basic awareness e-learning course for education staff on LGBT inclusive education.

This will help ensure the education system supports everyone to reach their full potential, as it is vital the curriculum is as diverse as the young people who learn in our schools.

Adult Learning

As part of community learning for adults, each education authority has a statutory duty to publish a three year plan containing information that assesses and secures the community learning and development needs in a way that identifies the target individuals and groups and identifies barriers to the adequate and efficient provision.

An independent review report of Community Learning & Development, which adult learning is a part of, was published on the 17 July 2024. The review report includes a recommendation for an equalities forum alongside a Strategic Leadership Group. The Scottish Government is working closely with CoSLA to consider the recommendations.

Further and Higher Education

The Scottish government introduced the Care Experienced Bursary in April 2017 replacing loans with non-income assessed, non-refundable bursaries.

They worked with Universities Scotland and the SFC to ensure that minimum entry requirements (access thresholds) for SIMD20 students were set by all Scottish universities these were published for the very first time in 2019 (for AY 2020/21 entrants).

As part of this work all of Scotland's higher education institutions also committed to guaranteeing an offer of an undergraduate place at university to care-experienced applicants who meet minimum entry requirements. This was effective from autumn 2019 for learners entering university in autumn 2020.

The Scottish government also look to the Scottish Funding Council, through the current outcome agreements arrangements to ensure fair access and to the Equality and Human Rights Commission to ensure compliance with the Public Sector Equality Duty.

Gaelic medium education

Gaelic speakers can fall to be protected under the Equality Act 2010. Since the 1980s Gaelic medium education has been reintroduced to Scotland by some local authorities and it has developed into a successful minority language sector which is growing and is popular with parents. Access to Gaelic medium education at primary 1 entry, once established, is open to all pupils and there is no requirement for pupils to be from a Gaelic speaking home or family.

The Gaelic Language (Scotland) Act 2005 established Bòrd na Gàidhlig which has functions in relation to education, the Education (Scotland) Act 2016 established a process whereby parents can make a request to a local authority for the establishment of Gaelic medium provision. The Scottish Languages Bill which was introduced to Scottish Parliament in November 2023 contains legislative provisions to strengthen access and requirements for Gaelic medium education – this is currently being considered by the Scottish Parliament. While the bill as introduced stops short of providing a right to Gaelic medium education many of the provisions pursue the aim of improving access and certainty for families who choose Gaelic medium education as to what they can expect and what should be provided in the sector.

o Combatting discrimination in terms of curriculum:

☒ In pre-primary education (including early learning and care)

- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

UK Government

Schools are required to comply with relevant requirements of the Equality Act 2010. Further guidance is available for schools in The Equality Act 2010 and school advice. State funded schools should pay particular attention to the PSED (s.149 of the Equality Act).

Pre-primary education:

In England, the EYFS sets the standards and requirements that early years providers must follow, to ensure every child has the best start in life and is prepared for school. The EYFS requires registered early years settings, to reflect the diverse world in the planning and design of their curriculum, and provide an inclusive environment for all children. DfE has published [Development Matters](#), a non-statutory curriculum guidance document, to support in the planning of a broad and ambitious curriculum.

Primary and secondary education

Every state-funded school in England must offer a broad and balanced curriculum which promotes the spiritual, moral, cultural, mental and physical development of pupils. It must also prepare pupils for the opportunities, responsibilities and experiences of later life.

Maintained schools in England are legally required to follow the national curriculum. Academies and free schools have greater freedom and autonomy in how they operate for areas such as the curriculum, but they are expected to teach a curriculum that is balanced and broadly based, and many choose to teach the full national curriculum to achieve this. The [Ofsted School Inspection Handbook](#) states that academies are expected to offer all pupils a broad curriculum that should be similar in breadth and ambition to the national curriculum.

The new UK Government in England announced an independent Curriculum and Assessment Review, covering key stages 1 to 5, chaired by Professor Becky Francis CBE, an expert in education policy, including curriculum and social inequality.

As part of its core aim of breaking down the barriers to opportunity, the review will seek to make sure children benefit from a curriculum that represents them and their families, regardless of background, and equips young people to shape our response to the challenges of our changing world.

Following the review, all state schools – including academies who currently do not have to follow the national curriculum – will be required by law to teach the national curriculum up to age 16, giving parents certainty over their children's education.

The national curriculum inclusion statement states that teachers should set high expectations for every pupil, whatever their prior attainment. Teachers should use appropriate assessment to set targets which are deliberately ambitious and potential areas of difficulty should be identified and addressed at the outset. Lessons should be planned to address potential areas of difficulty and to remove barriers to pupil achievement.

Teachers should take account of their duties under equal opportunities legislation that covers race, disability, sex, religion or belief, sexual orientation, pregnancy and maternity, and gender reassignment.

The [SEN Code of Practice](#) includes advice on approaches to identification of need which can support pupils with special educational needs.

Teachers must also take account of the needs of pupils whose first language is not English. Monitoring of progress should take account of the pupil's age, length of time in this country, previous educational experience and ability in other languages.

Relationships, Sex and Health Education (RSHE)

The current [RSHE statutory guidance](#) is clear that under the provisions of the Equality Act, schools must not unlawfully discriminate against pupils because of their protected characteristics. As part of Relationships Education, all primary school pupils will be taught the importance of respecting others, even when they are very different from them, or make different choices or have different preferences or beliefs. Pupils will also be taught what a stereotype is, and how stereotypes can be unfair, negative, or destructive.

This content is built on at secondary school to cover how stereotypes based on sex, gender, race, religion, sexual orientation, or disability, can cause damage by normalising non-consensual behaviour or encouraging prejudice.

The statutory guidance advises schools to be alive to issues such as sexism, misogyny, homophobia, and gender stereotypes, and to take positive action to tackle these issues. Schools should consider what they can do to foster healthy and respectful peer-to-peer communication and behaviour between boys and girls, and provide an environment, which challenges perceived limits on pupils based on their gender or any other characteristic, including through these subjects and as part of a whole-school approach.

Adult education and alternative learning

Provider funding agreements state that "In providing the Services, the Contractor must comply with the general duty on specified authorities in section 26 of the Counter-Terrorism and EDSK Version 1 (April 2024) Security Act 2015 (the Prevent duty) and must have regard to statutory guidance issued under section 29 of the Counter-Terrorism and Security Act 2015."

Counter Terrorism and Security Act 2015

The Counter-Terrorism and Security Act 2015 places a duty on certain bodies to have due regard to the need to prevent people from being drawn into terrorism and safeguarding against extremist ideologies and radicalisation. This includes further education. In addition, further education providers must exemplify British values of "democracy, the rules of law, individual liberty and mutual respect and tolerance for those with different faiths and beliefs" in their practice. Curriculum-based strategies to combat discrimination are part of 'PREVENT' and include challenging prejudices and racist comments and behaviours.

Wales

The Curriculum for Wales has been developed in Wales, by practitioners for practitioners, bringing together educational expertise and wider research and evidence. It has been developed to be inclusive and accessible to all and is a clear statement of what is important in

delivering a broad and balanced education for all learners – regardless of children's background or learning needs.

The '[Enabling learning](#)' section of [Curriculum for Wales](#) guidance has been developed to support practitioners in planning, designing and implementing a pedagogically appropriate curriculum for all learners. It provides the firm foundation that all learners need to support development, at their own pace, towards realising the four purposes of the curriculum.

Recognising that childcare settings funded to deliver nursery education were unlikely to have the capacity, expertise, or resources to develop their individual curriculum (reflecting the legal requirement placed on schools) the legal requirement to produce a curriculum for settings was placed on Welsh Ministers (s13 of the Curriculum and Assessment Act (Wales) 2021). The Welsh Government worked with experts and practitioners from education and childcare to co-construct [a curriculum for funded non-maintained nursery settings](#), which draws on the principles set out in the [enabling learning](#) guidance and develops them further to form a quality assured, inclusive curriculum that can support all learners aged 3-4, or those with similar developmental needs.

Schools

Wales is the first UK nation to make the teaching of Black, Asian and minority ethnic history mandatory, to ensure the curriculum reflects the history and contribution of all its citizens. DARPL is crucial in supporting practitioners to realise the Curriculum for Wales to inspire and enable education professionals to enrich and develop children and young people across Wales as culturally conscious, ethical, informed citizens.

Northern Ireland

The Northern Ireland Curriculum aims to empower all young people to achieve their potential and to make informed and responsible choices and decisions throughout their lives. It is underpinned by three curriculum objectives, which are to help young people develop as individuals; as contributors to society; and as contributors to the economy and environment.

The DE in Northern Ireland youth work policy (Priorities for Youth) commits to helping young people to develop an understanding of, and respect for, the rights, equality and diversity of all without discrimination.

Key principles within the Youth Work Curriculum (A Model for Effective Practice) include Diversity (encourages respect for and expression of the range of identities represented by the youth of Northern Ireland, and those who work with them in the youth work sector. It is about seeing difference as something that can enrich us, thus appreciating the value of different experiences, cultures and perspectives) and Interdependence (recognises and explores ways in which our individual paths are intertwined. It is about building robust relationships and developing our understanding of how the actions of individuals and groups affect each other. It is about appreciating the value which can come from working inter-connectedly on the basis of respect and mutual trust).

Scotland

Curriculum for Excellence is a broad and inclusive framework which addresses a range of matters related to discrimination proactively through building understanding of different societies and cultures. There are additionally, specific approaches to address concerns.

The Curriculum workstream of the Anti-Racism in Education Programme seeks to lead the review and reform of the Curriculum Framework from the early years onwards to articulate and embed anti-racist practice and learning. Underpinning this is the development of high-quality resources that support and grow anti-racist learning and teaching across the curriculum aligned with professional learning to support and enhance implementation. The [Breaking the Mould](#) anti-racism curriculum principles encapsulate the ambitions and expectations and a range of programme of work are under way led by the Scottish Government and Education Scotland to support this.

Work to embed LGBT inclusive education in the Scottish curriculum will support the aim of all children and young people beginning to learn and understand tolerance, respect, and equality. This, in turn, will support children and young people to build healthy relationships and prevent prejudice occurring in any form.

‘Resilient Learning Communities’ Enhancement Theme Work coordinated by Quality Assurance Agency (QAA) Scotland and supported by staff and student across all 19 Scottish Higher Education Institutions. Included ‘Decolonising the curriculum in the time of pandemic’ project.

In higher and further education, the curriculum is for institutions as autonomous bodies to determine and deliver. It is not for Scottish Government to intervene in this.

As part of community learning for adults, each education authority has a statutory duty to publish a three year plan containing information that assesses and secures the community learning and development needs in a way that identifies the target individuals and groups and identifies barriers to the adequate and efficient provision.

- o Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

UK Government

Access and participation (A&P)

In November 2021, the previous UK Government issued guidance to the Office for Students (OfS), asking it to refocus the access and participation (A&P) in HE regime to create a system that supports young people from disadvantaged backgrounds throughout their education.

Universities have been asked to:

- Work more with schools and colleges to raise attainment
- Tackle non-continuation rates in HE
- Offer more courses that are linked to skills and flexible learning such as degree apprenticeships, higher technical qualifications, and part time courses
- Evaluate their Access and Participation Plans to demonstrate impact.

All approved providers who are intending to charge fees above the basic amount are required to fully rewrite their access and participation plans (APPs) to be in place for September 2024 and 2025.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|---|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ⁹ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁰ |
| ☒ Teachers are trained on inclusive education ⁸ and to value diversity | ☒ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |
| ☒ Other: | |

Northern Ireland

Legislation to ensure equality of opportunity in connection with access to higher education.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

UK Government

The Public Sector Equality Duty (PSED)

The general duty requires public authorities, in the exercise of their functions, to have due regard to the need to:

- eliminate unlawful discrimination, harassment, victimisation and any other unlawful conduct prohibited by the act
- advance equality of opportunity between people who share and people who do not share a relevant protected characteristic
- foster good relations between people who share and people who do not share a relevant protected characteristic

Advancing equality of opportunity means having due regard, in particular, to the need to:

- remove or minimise disadvantages suffered by people due to their relevant protected characteristics
- take steps to meet the different needs of people who share a relevant protected characteristic
- encourage participation in public life or any other activity by underrepresented groups
- take steps to meet the different needs of disabled persons

⁸ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

⁹ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁰ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

Advancing equality of opportunity encourages schools to consider how to increase the participation of their pupils with different protected characteristics in areas of school life where it is disproportionately low. This extends beyond the curriculum to areas of the school's activities such as organising work experience opportunities. E.g. a school identified that boys are much less likely to participate in arts classes compared with girls. It decides it will make plans to actively encourage more boys to join those classes.

School Admissions (England)

State-funded schools in England must ensure their admission criteria do not unfairly disadvantage children from a particular social or racial group and that other policies around school uniform or school trips do not discourage parents from applying. Admission arrangements must not give priority to children according to the occupational (other than for the children of staff working at the school), marital, financial or educational status of their parents, discriminate against or disadvantage disabled children or those with special educational needs, or prioritise children on the basis of their own or their parents' past or current hobbies or activities (with an exception for religious schools and religious activities).

State-funded schools are required by the [School Admissions Code](#) and regulations to prioritise the admission of children who are in or who have left public care and may also prioritise the admission of children with social or medical needs.

Section 13 of the Education Act 1996 requires LAs in England to secure the availability of primary, secondary, and further education to meet the needs of people in their areas, and section 14 specifically requires them to secure the availability of sufficient schools to provide appropriate education for all pupils in their areas. The Code also requires mainstream schools to admit applicants in the normal admissions round where they have places available. These duties are blind to nationality and immigration status – whilst they are in the country, foreign national children have the same right to access a school in England as UK nationals.

In England, guidance is provided to parents, schools and LAs on the rights of foreign nationals to access schools: [School applications for foreign national children and children resident outside England](#).

Also, as the separate education systems in England, Scotland, Wales and Northern Ireland will be unfamiliar to many migrants, within published Welcome Packs, the UK Government has also provided specific guidance for families coming to the UK under the various immigration schemes ([Ukraine](#), [Afghanistan](#), and [Hong Kong BN\(O\)](#)) on how to obtain a school place and their broader education access rights. The UK Government has translated these guides into relevant languages on the relevant webpages.

In addition, under section 86(1A) of the School Standards and Framework Act 1998, each LA in England is under a duty to provide parents in their area with advice and assistance in connection with their preferences of school – which should include helping parents navigate the system and apply for a school.

The UK Government made changes to the school admissions system in England in 2021 to make it easier for children to obtain a school place during the school year (i.e. when most places are already full).

Refugees and asylum seekers often arrive in the UK after the school year has begun. Each LA in England must have what is called an 'in-year fair-access protocol' agreed with its schools to enable it to quickly place children when there is a lack of school places near their place of residence. Asylum seeker and refugee children are specifically named as priority groups for in-year placement under the protocol in the statutory School Admissions Code.

Teachers' Standards

The Teachers' Standards define the department's minimum expectations of teachers' professional practice and personal conduct, and provide a benchmark for excellent teaching practice and exemplary personal conduct. They set the standard to which all trainees should aspire, and which all qualified teachers should adhere to and improve upon throughout the various stages of their career.

Teachers' Standards state that teachers must uphold public trust in the profession and maintain high standards of ethics and behaviour, within and outside school. They must do this by:

- treating pupils with dignity, building relationships rooted in mutual respect, and at all times observing proper boundaries appropriate to a teacher's professional position
- having regard for the need to safeguard pupils' well-being, in accordance with statutory provisions
- showing tolerance of and respect for the rights of others
- not undermining fundamental British values, including democracy, the rule of law, individual liberty and mutual respect, and tolerance of those with different faiths and beliefs
- ensuring that personal beliefs are not expressed in ways which exploit pupils' vulnerability or might lead them to break the law.
- having proper and professional regard for the ethos, policies and practices of the school in which they teach, and maintaining high standards in their own attendance and punctuality.
- having an understanding of, and always acting within, the statutory frameworks which set out their professional duties and responsibilities. This includes the Equality Act 2010.

Curriculum - Primary and secondary education

See section 1.1 for details on primary and secondary education curriculum.

Support for pupils aged 5-16 with a first language other than English

English is the formal language of instruction in state-funded schools in England. Schools are responsible for ensuring that all of their pupils – including those who are classed as having a first language other than English – can access the full curriculum and have opportunity to achieve their potential.

Through the *English as an additional language* (EAL) factor in the national funding formula (NFF) in England, schools are allocated funding for pupils who are classed as having EAL and who have started in the state-funded education system in England within the last 3 years. This equates to an additional £590 per eligible primary pupil and £1585 per eligible secondary pupil in 2024-25. Schools have flexibility over how they use their overall funding budget to support their EAL pupils, as they are best placed to understand and respond to the particular needs of their pupils. The UK Government does not routinely monitor the provision that schools put in place, or advocate any particular approaches that schools should adopt in order to improve the English language proficiency of EAL pupils.

Schools in which more than 6% of pupils joined at a non-typical date through the school year at any point in the last three years also attract funding through the mobility factor in the national funding formula. For years 1 to 11 this means the first census when the pupil was in the school was a spring or summer census; and for the reception year the first census is the summer census. In 2024-25 schools attract £960 for eligible primary pupils, and £1380 for eligible secondary pupils. LAs allocate the funding they receive to schools through their local funding formula.

Higher Education

See section 1.1 about the Higher Education and Research Act (HERA) 2017.

HE Access and Participation

Details about this can be found in Section 1.1 - Other measures.

Wales

The Curriculum for Wales creates new curriculum requirements for all learners aged 3 to 16 in maintained or funded non-maintained nursery education. It replaces the current national curriculum and basic curriculum; replacing phases and stages and focussing instead on progression in learning along a continuum from age 3-16. The new Curriculum for Wales is being taught in all primary schools in Wales from Sept 2022. It is being extended year by year in secondary schools so by 2026 it will be fully rolled out.

The Curriculum for Wales is designed for the needs of each learner: ensuring each is seen as an individual, with specific strengths and areas for support. This means identifying each learners' achievements, as well as any barriers to their learning, ensuring every learner is supported to make progress to progress to their full potential. It aims to help each school develop its own curriculum, enabling their learners to develop towards the four purposes of the curriculum – the starting point and aspiration for every child and young person in Wales.

Curriculum for Wales – and particularly the opportunity to take a more individualised approach to learning – is supporting school leaders to increase equity and inclusivity for all our learners. Curriculum development should be at the heart of practitioner, school and national efforts to raise standards for all, tackling the equity gap and enabling progression for every child.

To support the realisation of the Curriculum for Wales, DARPL launched in 2022. Resources to support those working in education and childcare to develop an understanding and development of anti-racist practice including live webinars; asynchronous materials, blogs and toolkits and wider communities of practice are accessible via the [virtual campus](#).

DARPL provision for senior leaders and governors was endorsed by the National Academy for Educational Leadership in 2023. Wider DARPL provision will be quality assured under the Welsh Government's new [professional learning endorsement process](#).

Work is also ongoing to create an anti-racist education workforce, by developing a sustainable professional learning pathway for all tiers of education, childcare and playwork.

Additional Learning Needs

The [Additional Learning Needs and Education Tribunal Act 2018](#) and the accompanying [ALN Code](#) and regulations, provides the statutory system for meeting the additional learning needs (ALN) of learners aged 0-25 in Wales. The ALN Act delivers a more inclusive, person-centred approach to learner support which places the learners' views, wishes and feelings at the heart of the process of planning the support required to enable them to learn effectively and achieve their full potential. The Act was drafted with children's rights at its core and inclusive education is a key principle underpinning the ALN system. All children are being moved to the new ALN system in groups between September 2021 and September 2025.

As well as changing legislation the Welsh Government is on a journey to change practice. It is investing in developing the skills of the education workforce through initial teacher education and a national approach to professional learning so all teachers can develop the skills they need to deliver the new Curriculum for Wales, promote person-centred practice and differentiated learning, close learning gaps and respond to learners' needs.

Equality Science, Technology, Engineering and Mathematics (STEM)

Over £1.6m has been committed for financial year 2024/25 to support delivery of STEM initiatives in both primary and secondary schools with the aim of supporting and developing STEM enrichment activities, narrowing the attainment gap and encouraging take up of particular STEM subjects at both GCSE and A level. Such initiatives include:

- The Engineering Education Scheme Wales (EESW) which runs programmes across Wales to inspire and motivate young people to choose careers in STEM, with a particular focus on Engineering. This programme includes the Girls into STEM project in order to support work on addressing the gender balance in engineering and encourage more girls to consider a career in an engineering discipline.
- The Institute of Physics' Whole School Inclusion and Equity programme which aims to support FSM learners through improving representation, engagement and motivation.
- The Further Mathematics Support Programme, run by Swansea University, has provided maths clubs across Wales which encourage all learners, particularly girls, to engage with maths learning. 422 secondary aged learners attend these clubs with 42% being female.

Health and Well-being in the Curriculum for Wales

One of the mandatory statements of learning within this Area of the curriculum relates to the fundamental importance of 'healthy relationships' education with the aim of protecting and safeguarding learners through their life – 'Healthy relationships are fundamental to our well-being'. [Health and Well-being: Statements of what matters - Hwb \(gov.wales\)](#)

In addition, the mandatory [Relationships and sexuality education \(RSE\) Code](#) has the same aim of supporting learners to have the skills, knowledge and understanding of healthy relationships, gender equality, how to stay safe to protect and safeguard them throughout their lives, this includes LGBTQ+ lives.

Initial Teacher Education

All programmes of Initial Teacher Education (ITE) in Wales must be accredited against the Criteria for accreditation of ITE programmes [Initial teacher education programmes: accreditation criteria](#). These criteria require all students in ITE to develop an understanding of, inter alia, Wales' commitment to the United Nations Convention on the Rights of the Child (UNCRC) and the United Nations Convention on the rights of Persons with Disabilities (UNCRPD) and its implications for learners' rights.

All programmes require ITE students to develop the ways they teach and build relationships with their learners and wider school communities to facilitate effective learning environments that are anti-racist and non-discriminatory for all learners. They are also required to develop the ways they teach and build relationships with their learners and wider school communities to facilitate effective learning environments that are anti-racist and non-discriminatory for all learners. In addition to understanding safeguarding issues they must also understand and learn to manage the diverse barriers which learners' face at school affecting educational attainment and impacting equity. This should include: meeting the needs of learners from diverse cultural, linguistic, and religious backgrounds; meeting the needs of learners from diverse socio-economic backgrounds and meeting the needs of learners with ALN.

National Music Service

The National Music Service, fully funded by the Welsh Government with a significant investment totalling £13 million over the period 2022-2025 aims to help make access to music education fairer and more consistent across Wales. Established in line with a Programme for Government commitment, the Service has a particular focus on supporting learners from low-income households and those with ALN. The work programme includes bespoke provision to support ALN learners to engage in music activities.

Higher Education and Further Education

[Tertiary Education and Research \(Wales\) Act 2022](#) - General duty on Commission Tertiary Education and Research (CTER) to promote equality of opportunity in tertiary education. Powers for Commission Tertiary Education and Research (CTER) to set conditions on universities and colleges to improve participation, retention, and attainment by members of underrepresented groups.

Northern Ireland

Curriculum

Inclusion is a key principle of the DE in Northern Ireland Youth Work Policy and youth workers seek to ensure that provision is inclusive of all young people. Inclusion and Diversity are key element of youth worker training.

The Education (Curriculum Minimum Content) Order (Northern Ireland) 2007 sets out the statutory minimum curriculum requirements for primary and post primary education in Northern Ireland and defines the essential subjects and Areas of Learning that must be included in the curriculum throughout all Key Stages.

School leaders and teachers are provided with flexibility to deliver a curriculum which is best suited to the needs of all their pupils.

Further Education

Further Education colleges have an Equal Opportunities Policy for Students. Every student will have equal opportunity to enter a course/learning programme and to progress on that course/learning programme. Every student has the right to respect for their own background and culture but equally has a duty to respect that of others.

The aim of this policy is to:-

- communicate the College's commitment to Equal Opportunities and good relations;
- promote respect, equality and diversity within the College;
- provide a mechanism for dealing with unfair or discriminatory treatment of students;
- provide a mechanism for dealing with a breach of this policy.

Further to this the Belfast Metropolitan College is recognised as Northern Ireland's first College of Sanctuary and plays an important role in the education and integration of those seeking asylum in Northern Ireland.

The Education Student Fees (Approved Plans) Regulations (Northern Ireland) 2005 - An institution must produce a plan detailing its activities and financial support for supporting under-represented and disadvantaged learners to access and succeed in higher education.

Scotland

As set out in Section 1.1, there are a range of legal and policy measures in place.

The legislative framework provides an inclusive education for all, all children and young people are entitled to a place at primary and secondary school in Scotland. Scotland also has specialist provision in place. The legislative framework provided by the Equality Act, Additional Support for Learning Act and the Mainstream provision provides an inclusive framework for all.

The General Teaching Council for Scotland sets out the standards for registration of teachers which includes [A guide to the professional standards \(gtcs.org.uk\)](https://www.gtcs.org.uk) and includes specific standards relating to pupils with additional support needs.

The Scottish government are developing a new digital strategy for education which will outline the fundamental underpinning components needed to enable digital learning and coordinate actions with local government to maximise impact. Supporting authorities to lay a digital foundation in education will enable greater use of technologies to support inclusion and equalities in the classroom.

In secondary education, Education Scotland re-convened and facilitated a learner pathway co-design group in November 2022 to support the design of place based learner pathways for all. Designing and developing learner pathways was identified as an area of innovation, growth and opportunity, and in particular, for increased options in the senior phase. This was prompted by the learning presented by the Developing the Young Workforce (DYW) programme (2014-2021) where a significant number of secondary schools were making good progress in developing and diversifying their curriculum to meet their learners' needs by creating local learner pathways utilising partnerships with colleges, businesses / employers and a range of third sector organisations. The first co-design- group took a close look at their shared knowledge and experience of developing learner pathways in order to share expertise that would support system thinking. They published their first thought paper in August 2020 [Learner Pathways: A key to successful curriculum design \(education.gov.scot\)](#).

The findings from the 15-24 Learner Journey Review were taken into account in the Scottish governments thinking and support [What did we find out and what can we improve? - 15-24 Learner Journey Review - gov.scot \(www.gov.scot\)](#)

More broadly, In Scotland, under the Education (Scotland) Act 1980, the delivery of education is the statutory responsibility of local authorities, who have considerable freedom to determine how they deliver education in their area. This provides local authorities with flexibility to tailor provision to best meet the needs of their pupils and local circumstances.

Scottish Higher Education Institutions are supported by Scottish Funding Council and Quality Assurance Agency (Scotland) to adhere to UK Quality Code, which expects courses to be "well-designed, provide a high quality academic experience for all students and enable a student's achievement to be reliably assessed."

The Scottish Funding Council (SFC) and the Equality and Human Rights Commission published a report in 2023 which outlines the most pressing persistent inequalities in the tertiary education system and asks institutions to address them by contributing to a set of National Equality Outcomes (NEOs).

The Scottish Government expects institutions to prioritise, and demonstrate progress against these NEOs, in line with their reporting requirements under the Public Sector Equality Duty (as directed by the Equality Act 2010).

The Scottish Government will continue to work with the SFC as they seek to develop a national measurement framework to understand the impact of actions and progress on the NEOs.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

UK Government

See examples in section below on “What challenges were encountered in achieving gender equality in and through education?”.

Wales

Schools

[The 'Evaluation of the Additional Learning Needs system: scoping report'](#) presents a theory of change for the reforms, summarises findings from a synthesis of existing evidence on ALN system implementation, and articulates the plans and priorities for the next phases of the evaluation

Schools continued to make progress in implementing their new curriculum arrangements during academic year 2022/23. However, new arrangements continued to be rolled out incrementally, senior leaders emphasised that it will take several years for these to be fully embedded and there was evidence of variation in a number of forms:

- a. Differences in overall progress (with some schools and settings appearing to be further along in their curriculum planning and implementation than others);
- b. Varying levels of attention given to some aspects of the curriculum (some Areas or aspects being prioritised initially as part of a phased implementation);
- c. Differences in levels of confidence in and engagement with reform among teachers; and
- d. Differences in how clusters are working together and varying levels of strategic and purposeful collaboration.

While many senior leaders reported feeling increasingly comfortable in managing the reform process, some continued to express uncertainty and feeling overwhelmed by the scale of the changes involved.

As reported in [Research with schools and learners on the early implementation of Curriculum for Wales](#), key challenges impacting on schools and settings' planning and implementation of the new curriculum arrangements were:

- a. Pressures on school budgets mean that many schools and settings cannot devote the resources they would like to free up middle leaders and teachers to carry out the planning and developmental work they would ideally like to.
- b. Some senior leaders reported that other ongoing reforms – particularly the transformation of the ALN system – are impacting on the time available to commit to aspects of curriculum reform.
- c. Attendance levels have not recovered since the pandemic and continue to be a concern. Senior leaders felt that continued low attendance risks impacting negatively on learner progression and, if not addressed, on the longer-term outcomes and ambitions of CfW.

Other relevant general measures, including gender equality

- ☒ Legislation provides for gender equality in education
- ☒ Policy measures aim to enhance gender equality
- ☒ Gender-responsive education sector planning is undertaken

- ☒ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education
- ☒ Re-entry programmes for young mothers are provided for
- ☒ Ensuring safe and adequate gender-sensitive sanitation facilities¹²

¹² 'Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

- ☑ Providing positive or affirmative action measures
 - o Providing financial incentives and fellowships
- ☑ Teachers are trained (initial and in-service) on gender equality
- ☑ Teachers are trained to combat stigmatisation¹¹
- ☑ Other:
 - o Ensuring gender parity in technical and vocational training education and training (TVET)
- ☑ Curricula are rid of all stereotypes¹³ and bias
- ☑ Ensuring gender parity in science, technology, engineering and mathematics (STEM)

Northern Ireland

The Department for the Economy's student support measures include childcare support for those under 18, this is available under the Further Education Care to Learn scheme.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

UK Government

Equality Act 2010

The Equality Act 2010 legally protects people from discrimination in the workplace and in wider society.

The Equality Act 2010 – Positive Action

Please see section 1.1

Ensuring safe and adequate gender-sensitive sanitation facilities

The EYFS in England requires that early years practitioners and childminders must ensure that there is an adequate number of toilets and hand basins available, in addition to suitable hygienic changing facilities for changing any children who are in nappies. The EYFS for group and school-based providers requires that there should usually be separate toilet facilities for adults.

As set out in our minimum standards in England, separate toilets for boys and girls aged 8 years or over must be provided, except where the toilet facility is intended for use by one pupil at a time and can be secured from the inside.

The minimum standards, which can be found in The School Premises (England) Regulations 2012 and The Education (Independent School Standards) Regulations 2014 broadly set out that, as a minimum:

- Suitable toilet and washing facilities are provided for the sole use of pupils.
- Separate toilets for boys and girls aged 8 years or over are provided, except where the toilet facility is provided in a room that can be secured from the inside and that is intended for use by one pupil at a time.
- Suitable changing and washing facilities are provided for pupils aged 11 years and over at the start of the school year who receive physical education.

Curriculum

Detail on the curriculum can be found in Section 1.1.

¹¹ 'Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

¹³ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

Science and Maths Programmes

In England, an area where girls are typically underrepresented is in physics where they make up just 23% of A level entries. DfE funded the Institute of Physics's *Improving Gender Balance project*, which ran from 2014-16 and embedded the lessons learned from the project into the Stimulating Physics Network programme. This programme is aimed at improving progression from physics GCSE to A level, particularly for students from typically underrepresented backgrounds. The network is delivered through 50 lead schools offering specialist support to around 350 partner schools.

DfE also funds the Advanced Mathematics Support Programme (AMSP) which provides support for teachers and students in state-funded schools and colleges in England. Additional support is offered in areas of low social mobility so that students can choose their best post-16 maths pathway and access high-quality teaching. The AMSP has a particular focus on supporting girls into mathematics and runs a variety of enrichment and engagement sessions specifically for girls.

Wales

The [Advancing Gender Equality in Wales Plan](#) was launched in March 2020 and set out the first phase action to deliver on the 81 recommendations in the "[Deeds Not Words](#)" and the Roadmap reports. It is a long-term plan for change over a 20 year period. The Roadmap report included recommendations which set out a range of medium term actions for Welsh Government to take across policy areas including health, education and skills, poverty and welfare reform, employment, childcare, transport and violence against women, domestic abuse and sexual violence.

Northern Ireland

The DE in Northern Ireland has made free period products available to pupils in schools since September 2021 under The Period Dignity Pilot Scheme. The objectives of the scheme are to support pupils to attend school and not be held back from meeting their full potential because they have periods. The scheme also seeks to address the stigma associated with periods and provide education on menstruation.

The scheme will conclude in June 2024 to make way for the implementation of new legislation (The Period Products (Free Provision) Act (Northern Ireland) 2022 and The Period Products (Department of Education Specified Public Service Bodies) Regulations (Northern Ireland) 2024. Section 1.1 sets out how this new legislation applies to the Department for the Economy.

Towards Inclusive Education Policy - see section 1 above.

Scotland

Education authorities, independent and grant-aided schools have duties under the Equality Act 2010 to actively deal with inequality, and to prevent direct discrimination, indirect discrimination and harassment or victimisation of pupils on the basis, or a perceived basis, of protected characteristics. The protected characteristics in force in relation to schools are: disability, gender reassignment, pregnancy and maternity, race, religion or belief, sex, sexual orientation.

Gender Equality Taskforce in Education and Learning (GETEL)

The Scottish Government has produced national guidance on gender-based violence in schools: [Preventing and responding to gender based violence: a whole school framework](#)

STEM

Education Scotland has provided a range of Improving Gender Balance and Equalities resources to support education practitioners. A new Inclusion, Wellbeing and Equalities Professional Learning Framework has been developed to include resources on Bias and Inequality. More broadly, teaching resources on diversity in the Curriculum encourage educators to consider the importance of challenging under-representation, including in the sciences.

Reporting requirements of Scottish colleges and universities to demonstrate compliance with Gender Representation on Public Boards (Scotland) Act 2018.

The Scottish Government work constructively with the university and college sectors and their representatives to tackle gender-based violence on campus through the Equally Safe in Colleges and Universities Core Leadership Group.

The Scottish Funding Council (SFC) and the Equality and Human Rights Commission published a report in 2023 which outlines the most pressing persistent inequalities in the tertiary education system and asks institutions to address them by contributing to a set of National Equality Outcomes (NEOs).

The Scottish Government expects institutions to prioritise, and demonstrate progress against these NEOs, in line with their reporting requirements under the Public Sector Equality Duty (as directed by the Equality Act 2010).

The Scottish Government will continue to work with the SFC as they seek to develop a national measurement framework to understand the impact of actions and progress on the NEOs.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

UK Government

See details in section above regarding representation in STEM subjects.

There have been calls from schools, teachers, and parents for greater clarity on how to support gender questioning children in schools and colleges. This is why DfE in England developed and published draft guidance for consultation, to support schools and colleges to make decisions in this area. The consultation closed on 12 March 2024.

DfE in England are also reviewing the RSHE statutory guidance. The consultation on the revised guidance closed on 11 July 2024. The Government will review the consultation responses for both sets of draft guidance and will re-engage stakeholders in the autumn before setting out next steps.

Scotland

The Gender Equality Taskforce in Education and Learning has experienced a number of barriers in terms of establishing systemic change. A number of discrete ambitions have endeavoured to address gender inequality including STEM initiatives and Education Scotland's Improving Gender Balance and Equalities Programme. However, the Taskforce has recently changed its approach in order to become a streamlined, core group which offers strategic direction, oversight and supplies the rhetoric and context for specific policy frameworks, including the draft Behaviour in Schools Action Plan. The Scottish Government have introduced new guidance [Preventing and responding to gender based violence: a whole school framework - gov.scot \(www.gov.scot\)](https://www.gov.scot/publications/preventing-and-responding-to-gender-based-violence-a-whole-school-framework/pages/2/) to support schools in tackling these issues.

- Does the legal minimum age for marriage conform to international standards (18 years) ¹⁴:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes (England and Wales) or No ☒ (Scotland and Northern Ireland)

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

In England and Wales, The Marriage and Civil Partnership (Minimum Age) Act 2022 came into force in February 2023, raising the minimum age of marriage and civil partnerships to 18 in England and Wales, ending provisions which allowed a party to marry or enter into a civil partnership at 16 or 17 with judicial or parental consent. The Act also made it illegal to cause a child under the age of 18 to marry in England and Wales in any circumstances, without the need to prove that a form of coercion was used. This includes marriage ceremonies which are not legally binding. Those found guilty of arranging child marriages face sentences of up to 7 years in prison.

The law on the legal minimum age of marriage is different in England and Wales than it is in Scotland or Northern Ireland.

In Scotland a person aged 16 or over can marry or register a civil partnership. The Scottish Government has signalled their intention to explore whether to bring forward legislation to raise the age of marriage and civil partnership from 16 to 18 and extend the criminal law on forced marriage and civil partnership to include conduct for the purpose of causing a child to marry. They are aiming to issue a consultation on the minimum age of marriage and civil partnership this Summer.

In Northern Ireland under the Marriage (Northern Ireland) Order 2003, the legal minimum age of marriage is also 16, though anyone under 18 will need permission from their parent or guardian, or if suitable, a court order to allow the marriage to go ahead. In 2022, the Northern Ireland Department for Finance consulted on whether the minimum age for marriage and civil partnership should be increased to 18. The Minister for Finance has signalled her intention to legislate in view of these findings, and the Northern Ireland Executive is considering policy proposals that are intended to lead to legislative reform during the current Assembly mandate.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

☒ Legislation provides for the right to education of national minorities

☒ Policy measures aim to enhance the right to education of national minorities

☒ Teachers are trained on intercultural education

☐ Teachers are trained to combat stigmatisation¹⁶

¹⁴ Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

¹⁶ Supra note 15.

- o Policy elaboration includes consultations with local communities
 - o The right to carry out their own educational activities is legally guaranteed for national minorities
 - o Educational standards are established for educational institutions run by national minorities
 - ☑ Positive or affirmative action measures are provided for national minorities
 - o Financial incentives and fellowships are provided for national minorities
 - o Other¹⁵:
- ☑ Multilingual and intercultural education are supported
 - ☑ Native language instruction is ensured for national minorities
 - ☑ Adapting curricula and teaching and learning methods to their needs for national minorities
 - ☑ Curricula are rid of all stereotypes¹⁷ and bias

Northern Ireland

See section 1.2 above regarding FE Equal Opportunities policy for students.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

UK Government

Equality Act 2010

The Equality Act 2010 legally protects people from discrimination in the workplace and in wider society, including education institutions.

The Equality Act 2010 – Positive Action

Please see section 1.1

Curriculum

The National Curriculum requires the teaching of any ancient or modern foreign language at key stage 2 and any modern foreign language at key stage 3. Schools cannot teach Cornish in the place of 'any modern foreign language' because it is not a foreign language, however schools are welcome to teach Cornish, or any other regional minority language, in addition to their statutory languages offer in order to meet the needs of the pupils within their communities.

Further detail on the curriculum can be found in Section 1.1.

School Admissions

See section 1.2 general measures.

Northern Ireland

Youth work provision is inclusive of all young people, including national minorities. The DE in Northern Ireland has committed to provide youth work through the medium of Irish and also to recognise Ulster/Scots. While the principle is to include national minorities though

¹⁵ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

¹⁷ Supra note 16.

mainstream provision, where required specific youth work programmes are provided at a local level to meet needs.

Scotland

All children and young people are entitled to education in Scotland regardless of their background. As indicated in the sections above and elsewhere the legislative and curriculum framework in Scotland promotes equality and inclusion for all pupils.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Indigenous people:

- | | |
|--|--|
| ☒ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☒ Policy measures aim to enhance the right to education of indigenous people | ☒ Teachers are trained on intercultural education |
| ☒ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ¹⁸ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☒ Curricula are rid of all stereotypes ¹⁹ and bias |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

UK Government

Equality Act 2010

The Equality Act 2010 legally protects people from discrimination in the workplace and in wider society.

The Equality Act 2010 – Positive Action

Please see section 1.1

School Admissions

See section 1.2 general measures.

¹⁸ Supra note 15.

¹⁹ Supra note 16.

Curriculum

Please see section 1.1 for details on the curriculum.

Northern Ireland

Travellers are recognised as an ethnic minority under the Race Relations Order (Amendment)(Northern Ireland) 2003, and Section 75 of the Northern Ireland Act 1998 places an obligation on designated public authorities to have due regard to the need to promote equality of opportunity between a number of different categories including different racial groups.

The DE in Northern Ireland [Traveller Child In Education Action Framework](#) was published in 2013, in response to a 2011 report by the Taskforce on Traveller Education, which had been established to assist the department to develop an action plan on Traveller education. The framework outlines commitments to Traveller children and the steps to be taken to ensure that every traveller child has full access to education. It details what actions are in place:

- To ensure information is provided to Traveller families detailing how to avail of all educational provisions and opportunities;
- To help improve and maintain school attendance for Traveller children;
- To ensure Traveller parents are aware of the role they play in their children getting the required level of education they deserve;
- To help schools develop an inclusive and welcoming environment for Traveller children;
- To provide education on Traveller culture in schools to eradicate the potential for prejudice and hate crimes.

Under the framework and common funding scheme, schools receive an additional allocation of funding on a per pupil per annum basis for Traveller children registered under the annual school census, amounting to ½ of the Average Weighted Pupil Unit (currently circa £1,200 per child).

The DE in Northern Ireland is now commencing a review of the Framework. The aim of this review is to:

- consider the effectiveness of the current framework and associated educational services for Traveller children;
- explore existing funding arrangements for Travellers in education; and
- develop and agree a revised forward-looking policy framework, which delivers the best outcomes for Traveller children and young people and contributes to achieving their full education potential.

Scotland

All children and young people are entitled to education in Scotland regardless of their background. As indicated in the sections above and elsewhere the legislative and curriculum framework in Scotland promotes equality and inclusion for all pupils.

- What challenges were encountered in realizing the right to education of indigenous people?
If needed, brief quantitative information may be added.

UK Government

Equality Act 2010

The Equality Act 2010 legally protects people from discrimination in the workplace and in wider society.

Northern Ireland

The recent Independent Review of Education highlighted Irish Travellers as facing challenges in education. The final report highlighted that there was evidence of relative poverty among ethnic minorities (including Irish Travellers) with rates of free school meal entitlement highest amongst Irish Travellers (65%). Furthermore, Irish Travellers were under-represented in grammar schools and almost half of Irish Travellers (495) were recorded as having special educational needs. There are also gaps in attainment and school attendance. This will be addressed in the upcoming review of the Traveller Child in Education Framework.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁰:

- | | |
|--|--|
| ☒ Legislation provides for their right to education | ☒ Financial incentives and fellowships are provided for |
| ☒ Policy measures aim to enhance their right to education | ☒ Auxiliary assistance is provided |
| ☒ Inclusion in mainstream schools is ensured | ☒ Multiple and flexible learning pathways ²³ are provided |
| ☒ Positive or affirmative action measures are provided for | ☒ Curricula are rid of all stereotypes ²⁴ and bias |
| ☒ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |
| ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²¹ are provided for | ☐ Non-formal and/or alternative education programmes are provided |
| ☒ Teachers are specifically trained to ensure their inclusion | ☒ Language classes to newcomers are provided for |
| ☐ Teachers are trained to combat stigmatisation ²² | ☐ Multilingualism and intercultural education are encouraged |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

UK Government

School Admissions

See section 1.2 general measures.

²⁰ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²¹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

²² Supra note 15.

²³ Supra note 13

²⁴ Supra note 16.

Warm Welcome Scholarship Scheme:

The [Warm Welcome Scholarship scheme](#) supports those affected by the change of regime in Afghanistan to access undergraduate and postgraduate scholarships in the UK. The Scheme supports a total of 102 scholarships for the duration of the programme, which can be broken down into 31 'in-year' scholarships for those enrolled in the 2021/22 academic year and 71 'full-year' scholarships for those who commenced study in the 2022/23 academic year.

The scheme is co-funded with the sector: participating HE providers are waiving tuition fees and DfE in England is providing funding for a maintenance stipend to scholars for the duration of their course. The stipend amount will vary depending on geographical location in the UK and on level of study. The application window for the Warm Welcome Scholarship Scheme has closed. There will be no further intake of scholars and the programme will conclude in July 2027 at the latest.

Unaccompanied Asylum-Seeking Children

In England, unaccompanied asylum-seeking children invariably become looked after by a LA which becomes responsible for their education. In accordance with legislation (Regulation 5 of the Care Planning, Placement and Case Review (England) Regulations 2010) LAs are required to produce a care plan which includes a personal education plan (PEP) setting out how the child's educational needs will be met.

Social workers, Virtual School Heads and Independent Reviewing Officers, school admission officers and special educational needs departments should work together to ensure that appropriate education provision for the child is arranged at the same time as a placement.

Some unaccompanied children who have recently arrived in the country may have never had access to education before. Appropriate education for unaccompanied children may therefore include a period of time in a setting where their full educational needs can be assessed and integrated into the PEP. They may need time to be prepared for and then acclimatise to formal education, and their initial educational outcomes may include cultural orientation and life skills appropriate to their age²⁵.

15-hour free entitlement and 2-year-old entitlement for disadvantaged children

In England, all 3- and 4-year-olds are eligible for the 15-hour free early education entitlement regardless of their parents' circumstances. This is available from the term after a child turns 3 and is available over 38 weeks a year.

The government offers 15 hours free early education to disadvantaged 2-year-olds. This is available to working parents on low incomes and in receipt of certain income support benefits (subject to income thresholds); children with an Education, Health and Care Plan, or receiving Disability Living Allowance, or who are looked after or were previously looked after.

If a parent's immigration status means they have 'no recourse to public funds', they may still get free childcare for their 2-year-old. They must live in England and have income and capital below specified thresholds.

English for Speakers of Other Languages (ESOL)

²⁵ <https://www.gov.uk/government/publications/care-of-unaccompanied-and-trafficked-children>

See section 2.4. Adult education and alternative learning for details about this funding.

Wales

In Wales the [Nation of Sanctuary: Refugee and Asylum Seeker Plan](#) identifies cross-Government approaches to support positive inclusion for people to have the opportunities to learn, thrive and contribute to the economic, environmental, social and cultural life of Wales. A key commitment within the Welsh Government's [Programme for Government 2021 - 2026](#) is to continue to support and uphold the rights of unaccompanied asylum-seeking children and young people.

The [School Essentials Grant](#) is auxiliary assistance available to children and young people from low income families, including refugees and asylum seekers.

Northern Ireland

The DE in Northern Ireland has put in place various measures to support the inclusion of Asylum Seekers and Refugee (ASR) pupils in mainstream school and the removal of administrative barriers to access education.

DE works alongside the Education Authority's (EA) Intercultural Education Service (IES) to provide funding and support to Newcomer pupils. The funding covers costs that will remove barriers to education for these children and schools can apply for a share of funding to help meet the needs of ASR pupils as they arise.

In partnership with the EA's Educational Psychology Service, IES operate the pilot 'Schools Trauma Advisory and Referral Service' (STARS) which is open to any school with Newcomer pupils who are concerned about trauma as the main presenting barrier to learning and integration in school.

The IES also has a specific ASR webpage listing support currently available. The ASR Support webpage includes provision of information about STARS, trauma training and other emotional wellbeing advice to help ensure that the children are supported in the continuation of their education.

To address the education needs of ASR children accommodated in hotels, the DE has provided additional funding for temporary primary and post-primary Welcome Hubs (formerly known as Welcome Clubs) at two schools in the Greater Belfast area. This enables the children to access education until they are housed and have a school place.

Another barrier to education is limited English language ability. In support of school staff working with Newcomer children with English as an Additional Language (EAL) the IES co-delivers an intercultural education course in partnership with Queens University Belfast (QUB) for both teachers and teaching assistants, accredited at OCN Level 1. Over 350 school-based staff have completed the course since 2017 and it will run again in September 2024.

DE continues to work alongside the IES to provide specific Newcomer support to schools and families around the school placement process including welfare supports such as Free School Meals, Uniform Grants and School Transport. This includes advice and guidance to families for children with Special Educational Needs and Disability.

Funding to support newcomer pupils is allocated directly to schools through the Common Formula Funding mechanism based on the annual School Census returns and to the Education Authority (EA).

Newcomer Policy

Under the DE in Northern Ireland [Every School a Good School - Supporting Newcomer Pupils](#) policy and common funding scheme, schools receive an additional allocation of funding on a per pupil per annum basis for newcomer children registered under the annual school census, amounting to ½ of the Average Weighted Pupil Unit (currently circa £1,200 per child). A newcomer child is defined within the policy as a child who does not share a common language (i.e. English, or Irish for those being educated within Irish Medium schools) in common with their teacher or peers.

In response to the growing number and increasing diversity of newcomer pupils arriving in Northern Ireland the DE is undertaking a review of its Supporting Newcomer Pupils Policy to ensure it is fit for purpose and takes account of the educational needs of children arriving in Northern Ireland seeking asylum or refuge. Revised policy proposals will eventually be presented to the Northern Ireland Minister for Education for consideration.

Creating inclusive, welcoming environments for all young people is a key feature of youth service provision. While the principle is to include national minorities through mainstream provision, where needs are identified specific youth work programmes are provided at a local level to meet needs, including newcomer and asylum seeking young people.

Further Education

The Department for the Economy provides access to free English for Speakers of Other Languages courses in its network of Further Education Colleges for some of the most vulnerable migrant groups. This not only includes Refugees, Asylum Seekers and those seeking Humanitarian Protections but also those who arrive under UK Resettlement schemes, such as the Afghan Relocation Assistance Policy, the Afghan Citizens Resettlement Scheme and the three Ukrainian Resettlement Schemes.

Asylum seekers can access other Further Education courses as soon as they have made an application for Refugee Status.

Scotland

The Scottish Government wants all children and young people to get the support that they need to reach their full learning potential. Scotland's inclusive education system is built on a [legislative framework of additional support for learning](#) to help overcome barriers to learning.

The Education (Additional Support for Learning) (Scotland) Act 2004 provides the legal framework which underpins the system for identifying and addressing the additional support needs of Children and Young People. English as an additional language has been specifically identified as a potential additional support need within the Act's Code of Practice. Children and Young People who speak English as an additional language and who are Gypsy/Travellers are entitled, like all pupils, to the support they need to access the wider curriculum and to reach their full learning potential.

Under the Education (Scotland) Act 1980 local authorities have a duty to provide adequate and efficient provision of school education for all children residing in their local area. This duty does not distinguish between children and young people based on their country of origin, race, belief or religion or refugee status.

The Curriculum for Excellence, the Scottish Government's programme for improving educational outcomes, puts the learner at the centre of the curriculum, no matter what their social, economic or ethnic backgrounds.

The Scottish Government remains committed to supporting refugees, people seeking asylum and Scotland's communities through our pioneering and collaborative [New Scots](#):

[Refugee Integration Strategy approach](#). The Scottish Government is clear that everyone who is resident in Scotland is entitled to access education on the same basis.

The Education (Fees) (Scotland) Regulations 2022 and the Student Support (Scotland) Regulations 2022 provide for the home tuition fee rate and student support to access further and higher education for certain groups of asylum seekers and refugees. Those granted refugee status (or leave following a failed refugee claim) can access support, along with a number of exceptions which includes, but is not limited to: Afghan nationals, those granted Stateless Leave, Syrian refugees, Iraqi nationals and Victims of Human Trafficking.

Access to the home tuition fee rate and tuition fee support has also recently been extended to young asylum seekers and the children of asylum seekers who were under 18 on the date the application for asylum was made.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

- What challenges were encountered in realising the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

UK Government

Warm Welcome Scholarship Scheme

As part of discharging our Public Sector Equality Duty (PSED) we conducted an equality impact assessment for this scheme, which identified that women could be at a disadvantage due to a lower level of education as a result of the regimes in Afghanistan, and with the propensity of childcare and caring responsibilities falling to more women.

Northern Ireland

A major challenge at present is lack of certainty surrounding the impact of the 2023 Illegal Migration Act (IMA) in Northern Ireland, following the outcome of a recent Judicial review disapplying sections of the Act for Northern Ireland. Central government in Westminster is appealing the decision and will seek to have all sections of the IMA apply in Northern Ireland. We await the outcome of the appeals process.

Language barriers and cultural differences can present challenges to delivery of youth work. However, the youth service seeks to identify and address specific needs.

People with disabilities:

☒ Legislation provides for their right to education

☒ Mainstream teachers are specifically trained on disabilities

- | | |
|---|---|
| ☒ Policy measures aim to enhance their right to education | ☒ Teachers are trained to combat stigmatisation ²⁶ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |
| ☒ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☒ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ²⁷ and bias |
| ☒ Financial incentives and fellowships are provided | ☒ Education infrastructure and learning materials are adapted |
| ☒ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

UK Government

Schools

All students of compulsory school age, whether disabled or not, have the right to a full-time education. All students have the right to be educated in a mainstream school and follow mainstream courses. Schools cannot refuse a child's admission based on the complexity of their needs or disability unless their attendance would be incompatible with the provision of efficient education for others and there are no reasonable steps that could be taken to prevent the incompatibility. If a child is unable to attend school because of illness (or other reasons), then the LA has a duty to provide a suitable and (normally) full-time education.

It is unlawful for a school to discriminate against a child because of their disability, as set out above in section 1.1.

A school's duty to make reasonable adjustments is to take such steps as is 'reasonable' to avoid a 'substantial disadvantage' caused by a provision, criterion, or practice applied by or on behalf of a school, or by the absence of an auxiliary aid or service.

The duty requires schools to take positive and anticipatory steps to ensure that disabled pupils can fully participate in the education provided by the school, and that they can enjoy the other benefits, facilities and services that the school provides.

Some disabled pupils will also have special educational needs (SEN) and may receive support under the SEN framework (via school-based SEN provision, or via an education, health and care plan (EHC plan)). Where this is the case, the school will still have a duty to make reasonable adjustments for that pupil, if required (though in practice the support received via the SEN framework will often be sufficient).

Schools are also prohibited from treating disabled students unfavourably because of something arising in consequence of their disability, unless this can be justified as a proportionate means of achieving a legitimate aim.

²⁶ Supra note 15.

²⁷ Supra note 16.

Mainstream school staff receive training on SEND and equalities legislation. The UK Government is providing funding of up to £3.82m this financial year to offer staff in schools and colleges continuing professional development, specifically in supporting students with SEND.

Further Education

Further Education (FE) providers also operate under the Equality Act 2010 and provide learning support in study for adults with learning difficulties and disabilities through targeted funding awarded by providers and funded by the Education and Skills Funding Agency (ESFA).

Higher Education

Higher education providers are required under the Equality Act 2010 to make reasonable adjustments for disabled students. Disabled Students' Allowance, a non-means-tested grant for disabled students who incur additional study-related costs in higher education due to a disability, is available to eligible students in addition to these reasonable adjustments for the provision of more specialist support

The DfE has worked closely with the Department for Work and Pensions (DWP) to pilot and rollout a Student Adjustments Planner that will help to smooth the transition from Higher Education into employment for students with a disability or health condition. The Adjustments Planner captures the support needs of the individual and empowers them to have confident discussions about any adjustments they require with their university and with employers. Grant funding is also made available to providers to enable them to support successful outcomes for disabled students, and to support providers move towards inclusive models of support. The OfS' providers allocation was £40m for AY2021-22, £41m for AY2022-23 and £41m for AY2023-24.

The Equality Act 2010 – Positive Action

Please see section 1.1.

Wales

Inclusion in mainstream schools is ensured

The Welsh Government has worked with education consortia and regional partnerships, with support from the Children's Commissioner for Wales, to create an online professional learning package on the United Nations Convention on the Rights of the Child (UNCRC) and the United Nations Convention on the Rights of Persons with Disabilities (UNCRPD). This national professional learning resource is supporting practitioners, head teachers, governing bodies and LAs to develop an awareness and understanding of the UNCRC and UNCRPD. A consistent professional learning offer was required to support schools to meet the requirements of [Section 64 of the Curriculum and Assessment \(Wales\) Act 2021](#). The first two modules were made available during the summer term 2023 via the Welsh Government's online learning platform '[Hwb](#)'. A third module is currently under development.

The ALN Education and Tribunal (Wales) Act at Chapter 3 (sections 47 to 67) makes provision for and in connection with functions related to meeting additional learning needs, including (a) a duty on LAs to favour education in mainstream maintained schools for children with additional learning needs (section 51).

Curriculum legislation for Wales ensures education for all regardless of need, The new [Curriculum for Wales](#), including its teaching and learning methods, are adapted to ensure the education system is rid of all stereotypes and bias.

Disabled students allowance [Extra help available if you are a full-time undergraduate student with a disability | Student Finance Wales](#)

Northern Ireland

DE in Northern Ireland have said that creating inclusive, welcoming environments for all young people, including those with disabilities, is a key feature of youth service provision. Section 1 sets out information about Towards Inclusive Education Policy which is underdevelopment.

Further Education

Under the Special Educational Needs and Disability (NI) Order 2005 (SEND), FE colleges are required to make reasonable adjustments for students with learning difficulties and/or disabilities, so that they can access provision. The Department for the Economy assists FE colleges fulfil this obligation by providing funding to support SLDD students through the Additional Support Fund.

Article 13(2) of the Further Education (Northern Ireland) Order 1997 requires that 'the Governing Body of an Institution of Further Education shall have regard to the requirements of persons over compulsory school age who have learning difficulties.'

FE colleges are also expected to 'comply fully with the Equality Commission's Disability Discrimination Code of Practice for Further and Higher Education.

Each student enrolled in FE provision who declares a learning difficulty and/or disability undergoes an educational needs assessment, which determines the level of additional support required to meet their particular needs. The level of support provided is designed around the individual student and depends on both the nature of the disability and the course of study.

Tertiary Education

In Northern Ireland currently policy requires institutions to target learners with disabilities (physical, sensory or learning) for support into and through higher education.

Higher Education

Supporting disabled students to attend university or college to undertake higher education contributes to the Department for the Economy's Widening Participation Agenda.

The Department for the Economy, under The Education (Student Support) (No2) Regulations (Northern Ireland) 2009, as amended, has the legal power to provide grant support to assist students with the additional higher education course-related expenses that they must incur as a direct result of their disability. This grant is known as the Disabled Student's Allowance (DSA).

The allowance is intended to cover the additional costs incurred by students in connection with their study as a result of their disability, mental health condition, or specific learning difficulty, over and above any reasonable adjustments that can be made by their institution in the first instance, to put them on an equal footing with their non-disabled counterparts. As such, this allowance is intended to cover costs that the student's institution is not legally required to under The Special Educational Needs and Disability (Northern Ireland) Order 2005, as amended.

Entitlement is not based on household income, and eligible full-time undergraduate, part-time undergraduate, and postgraduate students can avail of up to £25k in support per academic year. The actual level of support available to individual students will vary in line with their own specific needs but will generally take the form of support for 1:1 Non-medical Help; Specialist Equipment; and support towards the cost of travel to and from their place of study. In the region of 2,500 students are supported through DSA annually, receiving approximately £4m in support.

Scotland

Universities and colleges have a legal duty to prevent discrimination and make reasonable adjustments under the Equality Act (Scotland) 2010. This act encompasses the previous legislation on Disability Discrimination Act 1995.

Education authorities, independent and grant-aided schools have duties under the Equality Act to prevent direct disability discrimination, indirect disability discrimination and discrimination arising from disability and harassment or victimisation of pupils on the basis, or a perceived basis, of protected characteristics, including disability. In addition, education authorities, grant aided and independent schools have a duty to make reasonable adjustments for disabled pupils.

The legislative framework provides an inclusive education for all, all children and young people are entitled to a place at primary and secondary school in Scotland. Scotland also has specialist provision in place. The legislative framework provided by the Equality Act, Additional Support for Learning Act and the Mainstream provision provides an inclusive framework for all.

The Disabled Students Allowance (DSA) is non-repayable support for disabled students or those with additional learning needs undertaking a course of Higher Education who incur additional study costs because of their disability. DSA can help pay for equipment, software, training, consumable items, travel expenses and Non-Medical Personal Help.

- What challenges were encountered in realising the right to education of people with disabilities? If needed, brief quantitative information may be added.

UK Government

Attendance

In England, pupils with SEND continue to have higher levels of absence compared to pupils with no identified SEND – a trend that was exacerbated over the pandemic. The overall absence rate for pupils with an EHC plan was 12.3% in 2022/23, an increase from 12.1% in 2021/22. This compares to 10.2% for pupils with SEN support (increase from 10.0%) and 6.6% with no identified SEND (decrease from 6.9%). Although the overall absence rates have increased for those with SEN, persistent absence has decreased across each cohort: 36.0% of pupils with an EHC plan were persistently absent in this period, a reduction from 36.9% in 2021/22. This compares to 31.1% for pupils with SEN support (decrease from 32.0%) and 18.4% for pupils with no identified SEND (decrease from 20.0%).

All children have the same right to suitable full-time education. The UK Government has issued updated guidance on expectations of schools and local authorities in England around attendance that will become statutory from August 2024. Schools and local authorities are expected to work supportively with families and provide tailored support to pupils with SEND, including through reasonable adjustments, to enable them to attend school.

Suspension and permanent exclusion:

In England, pupils with SEND continue to experience higher levels of suspensions and permanent exclusions (including instances of informal exclusions and 'off-rolling') than those with no identified SEND. The rate of suspensions among those pupils who have an education, health and care (EHC) plan is 21.60 which is lower than for those with SEN without an EHC plan (SEN support) at 24.42. This compares to 6.38 for pupils with no SEN. The rate of permanent exclusions among those pupils who have an EHC plan is 0.20, which, like suspensions, is lower than for those with SEN without an EHC plan (SEN support) at 0.37. This compares to 0.07 for pupils with no SEN.

The UK Government issued updated guidance to schools and governing bodies on [Behaviour in Schools \(2024\)](#), [Suspension and Permanent Exclusion \(2023\)](#) and equalities legislation, emphasising the preventive and reactive measure that must be taken to avoid discriminating against disabled pupils. Schools must ensure that any provision, criterion, or practice does not discriminate against pupils by unfairly increasing their risk of exclusion; for example, the head teacher's decision to exclude may be discriminatory if reasonable adjustments have not been made for a pupil with a disability that can manifest itself in breaches of the school behaviour policy. Schools are also required to make reasonable adjustments to the application of their behaviour policy, and throughout the exclusion process; for example, even where reasonable adjustments have been made, an exclusion may nevertheless be disproportionate if the behaviour in question is something arising in consequence of the pupil's disability.

Dispute resolution

For too long the education and care system has not meet the needs of all children, particularly those with special educational needs and disabilities (SEND), with parents struggling to get their children the support they need and deserve.

This government's ambition is that all children and young people with SEND or in alternative provision receive the right support to succeed in their education and as they move into adult life. We are committed to improving inclusivity and expertise in mainstream schools, as well as ensuring special schools cater to those with the most complex needs, restoring parents' trust that their child will get the support they need.

Allegations of disability discrimination can be appealed to the First-tier Tribunal (Special Educational Needs and Disability). Disability discrimination appeals have increased significantly over recent years: in the 2022/23 academic year, there were 330 registered SEND Tribunal appeals in relation to disability discrimination – 71% more than in the previous academic year. Of these, 20 were in relation to a child's temporary exclusion from school, with 310 claims registered uncategorised. To increase awareness of schools' duties under the Equality Act, the previous UK Government:

- Published a blog on ON.GOV.UK [importance of reasonable adjustments](#) for disabled pupils
- Updated [Free school meals](#) guidance to include reasonable adjustments to include reasonable adjustments.
- Published guidance and hosted on the Equality Act 2010 disability provisions for School Teachers
- Revised [Working together to improve school attendance](#) guidance to stress collaboration for supporting pupils with SEND through reasonable adjustments. guidance to stress collaboration for supporting pupils with SEND through reasonable adjustments.
- Updated [Behaviour in Schools](#) guidance to include reasonable adjustments in and policies and published a guide for parents on school behaviour and exclusion.

COVID-19 pandemic: disabled children were disproportionately impacted by the pandemic. The UK Government in England made almost £5bn available for education recovery, with support especially focused on helping those that needed it most, including disadvantaged and vulnerable children.

Students from poor households:

- ☒ Financial incentives and fellowships for school enrolment are provided
- ☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education
- ☒ Positive or affirmative action measures are provided
- ☒ Other: **Northern Ireland:** Common Funding Formula (CFF)
- ☐ Teachers are trained to combat stigmatisation²⁸
- ☒ Curricula are rid of all stereotypes²⁹ and bias

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

UK Government

The UK government in England is focused on supporting the most vulnerable and disadvantaged children and have set out their mission to remove barriers to opportunity and break the link between background and success.

The new government committed in July 2024 to introducing legislation for free breakfast clubs in every primary school and to limit the number of branded items of uniform and PE kits that a school can require, to bring down costs for parents and remove barriers from children accessing sport and other school activities.

Also, the new UK Prime Minister announced, on 17 July 2024, the appointment of the Work & Pension Secretary and the Education Secretary to be the joint leads of a new ministerial taskforce to begin work on a Child Poverty Strategy. Further details can be found here: <https://www.gov.uk/government/news/ministerial-taskforce-launched-to-kickstart-work-on-child-poverty-strategy> The taskforce will harness all available levers to drive forward short-term and long-term actions across government to reduce child poverty, with a Child Poverty Strategy published in Spring next year. Further details on the taskforce can be found here: <https://www.gov.uk/government/news/child-poverty-taskforce-kicks-off-urgent-work-to-publish-strategy-in-spring>

DfE in England have a range of support in place for pupils, families, and schools:

Schools in England receive the Pupil Premium to enable them to provide extra support to improve disadvantaged pupils' academic and personal achievements. Pupil premium funding has risen to over £2.9 billion in 2024-25, an increase of around £90 million from 2023-24. Also, in 2024-25 the National Funding Formula (NFF) which distributes revenue funding to schools in England, over £4.4 billion (10.2%) of the formula has been allocated according to deprivation, and over £7.8 billion (17.8%) will be allocated for additional needs overall,

In England over £1bn is spent per annum delivering free lunches, this includes 2.1 million pupils who are eligible for benefits-related free school meals and an additional 1.3 million infants enjoy a free lunchtime meal following the introduction of the Universal Infant Free School Meal policy in 2014. Children from all families with no recourse to public funds (NRPF) are also permanently supported, subject to income thresholds. There is also a generous

²⁸ Supra note 15.

²⁹ Supra note 16.

protections policy in place, which means that eligible pupils currently keep their FSM entitlement even if their circumstances change.

Since the Education Act 1996, maintained schools and academy sixth forms have been required to provide free meals to disadvantaged students who are aged over 16. Since 1 September 2014, all FE institutions funded by ESFA have had to offer free meals to their eligible students as part of their funding agreements. Funding at a rate equivalent to £2.53 per student per meal is being provided to institutions in the academic year 2023 to 2024. The amount of funding provided to individual institutions depends on the estimated number of free meals that will be taken at each institution. Approximately 90,000 disadvantaged 16 to 18 year old students attending FE institutions claim free meals each year. This provides all students in FE with the same support, regardless of where they choose to study. Institutions are able to make use of cashless systems and other methods to ensure that those who are eligible for a free meal are not identified separately, removing any stigma for receiving the benefit.

Since 2021, DfE has provided more than £200 million of funding every year to LAs across England for holiday provision for school-aged children from reception to year 11 (inclusive) who receive benefits-related free school meals, and other families that most need it. The National School Breakfast Programme (NSBP) has been operating since 2018 to set up or improve breakfast clubs in deprived areas. Currently up to £35m is being invested until July 2025. This funding is reaching up to 2,700 primary and secondary schools in disadvantaged areas.

In addition, the Early Years Pupil Premium (EYPP) in England which is additional funding given to early years providers to improve the education they provide to eligible three and four-year-olds has increased up to £388 per eligible child per year in 2024-25 up from up to £353 in 2023-24 to give young disadvantaged children a good start in life.

The [16 to 19 Bursary Fund](#) in England targets support at young people who most need help with the costs of staying on in post-16 education and training. The Fund has two elements: bursaries for defined vulnerable groups of up to £1,200 a year where they need financial support to participate in their education; and bursaries which institutions award to meet individual needs. Both elements provide funding to young people aged between 16 and 19 who need financial support with costs to stay in FE.

Student Finance

The student finance system supports around 1.3 million undergraduate students in England per year to undertake and benefit from HE. This includes:

- Partially means-tested loans to help undergraduate students with their living costs at University with the most support for students from low income households.
- Higher rates of loan for living costs for undergraduate students eligible for benefits such as lone parents on low incomes.
- £8.7 billion of loans for living costs were issued to undergraduate students in financial year 2023-24.
- Additional means-tested grant support for full-time undergraduate students with adult and child dependants with the most support for students from low income households.
- Disabled Students' Allowance, a grant for students obliged to incur additional study-related costs in higher education due to a disability (this is not means-tested).
- Maximum loans and grants for living costs for undergraduate students are set each year through amendments to the Education (Student Support) Regulations 2011. Maximum loans and grants increased by 3.1% for 2021/22 academic year; 2.3% for 2022/23; 2.8% for 2023/24; 2.5% for 2024/25.
- Additional funding to higher education institutions, to support successful outcomes for students including disadvantaged students. Through the Strategic Priorities Grant, the OfS

has provided funding for access and participation of £313m in AY2021/22, £325m in AY2022/23, £316m in AY2023-/4 and £301m in AY2024/25.

Wales

The [Pupil Development Grant](#) in Wales is funding for schools and settings to raise the attainment of children and young people from low-income households and those who are care-experienced. It does this by reducing the barriers that they often face to achieving their full potential.

The [Tackling the Impact of Poverty on Education Programme](#) in Wales supports schools to reduce the cost of the school day and mitigate the impact of poverty upon learner wellbeing and attainment.

Community Focused Schools is a key part of the Welsh Government's policy to tackle the impact of poverty on attainment. Our ambition is for all schools in Wales to be Community Focused Schools - responding to the needs of their community, building a strong partnership with families and collaborating effectively with other services. The Programme for Government 2021-2026 commits the Welsh Government to: Invest in the learning environment of Community Focused Schools, co-locating key services, and securing stronger engagement with parents and carers outside traditional hours.

Higher Education

[Education Maintenance Allowance](#) - A payment for 16 to 18 year olds living in Wales, who want to continue their education after school leaving age, with eligibility linked to household income and family circumstance.

[Welsh Government FE Learner Grant](#) - A grant for students aged 19 or over who are studying a course of Further Education at college with eligibility dependent on household income and family circumstance.

The Welsh Government provides generous HE student maintenance support, including large grants for students from poorer households [Student finance: higher education: Full-time undergraduates](#) and [Student finance: higher education: Full-time undergraduates](#).

Northern Ireland

"A Fair Start" report compiled by an Expert Panel on educational underachievement in June 2021, delivers on a commitment within the "New Decade, New Approach" agreement which set out the requirement for an expert group "to examine and address links between persistent educational underachievement and socio-economic background, including the long-standing issues facing working-class, Protestant boys". The original report identified 8 Key Areas and 47 actions spread across 6 years and beyond. Work is progressing despite significant funding pressures with 46 actions being progressed in 2024/25.

Northern Ireland will introduce a significant new programme to deliver on the mission, set by the report 'A Fair Start', to ensure all children and young people regardless of background are given the best start in life. Addressing Key Area 4 of that report, DE will introduce a whole community place-based approach in a large number of geographical areas of socio-economic disadvantage across Northern Ireland to support the DE's vision that "*every child is happy, learning and succeeding*"

Creating inclusive, welcoming environments for all young people, including those from deprived background, is a key feature of youth service provision which is available free of charge to all young people who voluntarily engage.

Common Funding Formula (CFF)

The CFF is DE's mechanism for allocating budgets to schools. The Targeting Social Deprivation and Additional Social Deprivation factors of the CFF recognise the additional costs faced by schools in educating children from socially deprived backgrounds, regardless of ability, and the particular challenges faced in schools with high proportions of children from such backgrounds.

Further Education

The Department for the Economy provides financial support to FE learners through FE Grants, a Hardship Fund, Care to Learn, Home to College transport, Free School Meals, and a Clothing Allowance. Support is means-tested and in place to assist FE learners from low-income households, and to address financial barriers to FE.

Scotland

School education in Scotland is free and the entitlement of all children and young people who are resident in Scotland. Therefore, there are not financial incentives for school enrolment. There are arrangements in place for pupil transport based on the distance which any pupils lives from their school. However young people who are 5-21 years old living in Scotland get free bus travel.

Poverty is a significant factor in determining children and young people's learning outcomes in Scotland. Therefore, there is specific focus on this.

Free school meals are available for all children in primaries 1 to 5, as well as all children in special schools. Free school meals continue to be available for children after primary 5 where their families meet the eligibility criteria to receive them. The next phase of our free school meals expansion programme will see them being offered to children in primaries 6 and 7 whose families receive the Scottish Child Payment.

Since 2021 the Scottish Government has provided funding to ensure the removal of curriculum charges for all public primary and secondary pupils, with £8m being committed for 2024-25. This ensures that pupils and their families do not have to meet the costs of resources and materials for practical lessons, and also removes cost as a factor when young people are making choices about their education. This includes the removal of costs associated with preparation for courses or qualifications which form part of a school's 'core offer' in public secondary schools.

Additionally, Section 11(1) of the Education (Scotland) Act 1980 ("the 1980 Act") stipulates that education authorities are to provide free of charge for all pupils belonging to their area who are given free education books, writing materials, stationery, mathematical instruments, practice material and other articles which are necessary to enable the pupils to take full advantage of the education provided.

There are a number of Scottish Government policies which aim to widening access to higher education for students from socio-economically deprived backgrounds. This includes the target that by 2030, 20% of all full-time first degree entrants to higher education should come from the 20% most deprived areas in Scotland. Additionally, all universities in Scotland have minimum entry requirements in place for students with experience of disadvantage (including deprivation), meaning they can be made offers of entry with lower grade requirements than is typically the case.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

UK Government

Disparity in learning outcomes

Disadvantaged pupils and those with additional needs are more likely to fall behind and need extra support to reach their full potential. One of the most significant factors affecting pupil attainment, is economic disadvantage. There remain persistent gaps in the levels of attainment for disadvantaged children. That is why DfE have a range of support in place that is outlined in the section above.

Before the pandemic, in England the primary and secondary school attainment gaps between disadvantaged pupils and their peers had grown between 2019 and 2022, having broadly narrowed over the previous 8 years. In 2023 the disadvantage gap index at secondary has continued to increase to its highest level since 2011, however at primary the disadvantage gap index remains stable between 2022 and 2023. This suggests that disruption to learning during the COVID-19 pandemic continues to have a greater impact on disadvantaged pupils than other pupils, but that this impact has stabilised at primary and is just starting to recover in some subjects.

We also know that for too many children, living in poverty robs them of the opportunity to learn and to prosper. Child poverty has gone up by 700,000 since 2010, with over four million children now growing up in a low-income family. This not only harms children's lives now, but it also damages their future prospects, and holds back our economic potential as a country. That is why, as outlined in the section above, the Prime Minister has announced a Child Poverty Taskforce.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁰ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³¹. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- | | |
|--|---|
| ☒ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child's need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

³⁰ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".
³¹ Which commits states to "Enhance policy and legal frameworks to ensure that the right to education includes ECCE"

- Please elaborate further on the measures taken:

UK Government

Registered providers of early years provision in England are required to meet the requirements set out in the EYFS framework. The EYFS is made up of three sections: learning and development requirements (Section 1) assessment requirements (Section 2) and safeguarding and welfare requirements (Section 3). These sections include requirements around early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. The DfE also has an online service '[Help for Early Years Providers](#)' which features information and resources to support childminders and staff in PVI settings to understand and implement the EYFS.

Ofsted is primarily responsible for the registration and regulation of early years provision in England, including ensuring compliance with the requirements set out in the EYFS. Childminder agencies are directly responsible for the registration, regulation and quality assurance of early years providers registered with them, although Ofsted is responsible for the registration, regulation and inspection of childminder agencies.

Access to Early childhood care and education

Local Authorities must ensure that all providers they fund in the maintained, private, voluntary and independent sectors are aware of the requirement on them to have regard to the [SEND Code of Practice](#), when meeting the needs of children with SEN and disabilities.

Chapter 4 of the SEND Code of Practice covers the SEND Local Offer and sets out when securing funded early education for two-, three- and four-year-olds LAs must promote equality of opportunity for disabled children. This should include securing relevant expertise among early years providers and working with parents to ensure that appropriate provision is in place to enable each child to flourish.

Section 6 of the Childcare Act 2006 requires LAs to secure, so far as is reasonably practicable, that the provision of childcare is sufficient to meet the requirements of parents in their area in order to enable them to take up or remain in work, or to undertake education or training to assist them to obtain work. In determining whether childcare is sufficient to meet those requirements, LAs must have regard to the needs of parents for the provision of childcare which is suitable for disabled children. Local authorities must work with providers to plan and manage local provision to meet the needs of families and children in their area.

Local authorities must have regard to the statutory guidance on Early Education and Childcare when discharging their duty in section 6 of the Childcare Act 2006. The statutory guidance sets out a clear expectation that LAs should report annually to elected council members on how they are meeting their duty to secure sufficient childcare (including for children with SEND) and make this report available and accessible to parents.

Chapter 5 of the SEND Code of Practice sets out the actions relevant early years providers should take to meet their duties in relation to identifying and supporting all children with special educational needs (SEN), whether or not they have an Education, Health and Care plan. Providers **must** have arrangements in place to support children with SEN or disabilities, these arrangements should include a clear approach to identifying and responding to SEN.

Early years providers have duties under the Equality Act 2010: in particular, they must not discriminate against, harass or victimise disabled children, and they must make reasonable adjustments to prevent them being put at substantial disadvantage.

Wales

The Early Childhood Play, Learning and Care in Wales Plan was published on 15 March 2024 and is a cross-sectoral plan which brings together, for the first time, all policies and programmes relating to early childhood play, learning and care from across Welsh Government.

The plan places the child and child development at the heart of everything and has been developed around three themes: quality of provision; access to provision; and supporting and developing the workforce. By focussing on these themes, the plan is supporting the development and delivery of a consistent approach to nurturing, learning and development, through the provision of high-quality, inclusive, play-based childcare and education opportunities for all babies and young children aged 0-5 years old.

The Welsh Government are committed to enabling all babies and young children to benefit from accessible, inclusive, high-quality play, learning and care experiences in Welsh, English or bilingually.

On 30 June 2023 as part of our ECPLC approach for 0–5-year-olds in Wales, a number of documents were published, to support practitioners in providing quality early childhood play, learning and care:

1. A Quality Framework for Early Childhood Play, Learning and Care in Wales.
2. Early Childhood Play, Learning and Care in Wales: A Reflective Practice Toolkit
3. Early Childhood Play, Learning and Care: Developmental Pathways for 0-3

The aim of the Quality Framework is to ensure that no matter which setting a child attends, be it a school, day care or a childminder, expectations of their experience, of how they are supported and nurtured are the same and quality ECPLC is provided, which meets the requirements of the Curriculum for Wales, and the National Minimum Standards for Regulated Childcare in Wales, for all children.

Flying Start provides fully funded quality childcare which is offered to parents/carers of all eligible 2-3 year olds for 2 and a half hours a day, 5 days a week for 39 weeks a year. Children living in Flying Start areas become eligible for free childcare the term after their 2nd birthday until the term after their 3rd birthday. Flying Start childcare helps to prepare children for entry to learning within the Curriculum for Wales at age 3. The provision of high quality, part-time childcare is integral to the Flying Start programme. The Welsh Governments' programme commits them to continue the Flying Start programme and, in line with the Co-operation Agreement with Plaid Cymru, they have extended this commitment to deliver a phased expansion of early years provision to include all two-year-olds, with a particular emphasis on strengthening Welsh-medium provision.

Northern Ireland

On 23 May 2024, the Minister of Education made a [Written Ministerial Statement](#) setting out a package of measures for early learning and childcare in the 2024/25 financial year. It represents the most significant enhancement of early years investment within Northern Ireland in decades and demonstrates that the Northern Ireland Executive is committed to making support for young children, their families and the services they rely on, a top priority.

The package of measures is designed to; stabilise and support expansion of the early learning and childcare sector, over time, offer all children in the target age group 22.5 hours per week funded pre-school provision, reduce the costs of childcare for working parents and build the evidence base necessary to inform development of a longer-term

strategy. It is an ambitious programme which will ease current pressures on parents and providers and lay a firm foundation for the future.

The current pre-school education programme has 40% of children receiving 22.5 funded hours per week and 60% receiving a minimum of 12.5 hours.

Scotland

Scotland's 'Health and Social Care Standards: my support, my life' sets out the entitlement of children and others to high quality care and support tailored to their particular needs. The Standards are underpinned by five principles: dignity and respect, compassion, be included, responsive care, and support and wellbeing.

Children's **speech, language and communication** has been particularly affected since the onset of the Covid pandemic. The Scottish Government are investing in a programme of work to support early intervention, including those who may need additional support.

In 2018 we published Gender Equal Play in ELC in recognition that ELC practitioners are in a unique and important position to influence children's development and have the capacity to create environments that encourage equal and respectful relationships, break down harmful **gender** norms and promote gender equality.

Anti-racism is a key aspect of Scotland's ongoing curriculum reform and new resources for the ELC sector are in development. Education Scotland has also developed the national Building Racial Literacy programme which promotes anti-racism as a baseline professional value, empowering educators, including those in ELC, to identify and implement anti-racist behaviours and processes in their everyday practice.

The Early Level in Scotland's Curriculum for Excellence deliberately spans from age three until the end of primary one. It supports the flexibility needed to deliver developmentally appropriate **child-centred approaches** during this crucial stage of childhood development and to support a smooth transition between ELC and primary school. Educational settings are expected to meet the individual needs of children to promote achievement and secure progress on an ongoing basis, recognising and building upon the diverse range of prior learning that children have had. This is underpinned by 'Getting it Right for Every Child' approach and the Education (Additional Support for Learning) (Scotland) Act 2004.

Setting the Table, nutritional guidance, supports settings to provide healthy snacks and meals that meet individual cultural and dietary needs. It notes that parents and carers should be consulted about how other dietary preferences might be accommodated.

The Scottish Governments early years practice guidance, 'Realising the Ambition: Being Me,' (published in 2020) gives teachers and practitioners clear information and guidance on early childhood development and how they can most effectively meet babies and children's needs, working in partnership with families and taking account of their cultural and socio-economic circumstances. It advocates for relationship-centred, responsive care and early education underpinned by what children tell us through their 'actions, emotions and words'.

The Scottish Government is responsible for child protection in Scotland. Policy, legislation and statutory guidance are in place for all those working with children.

- Is compulsory and free of charge pre-primary education available?

- o Pre-primary education is compulsory. Please provide the age of enrolment and duration:

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☒ Pre-primary education is **not** compulsory.

☒ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

UK Government

All 3-4 year olds in England are entitled to 15 hours, per week, for 38 weeks of the year of funded childcare. For 3-4 year old children of working parents, who meet the eligibility criteria, a further 15 government funded hours are available. Funded hours are also provided through a 2-year-old disadvantaged entitlement. Recently the government funded entitlements were extended so that 2-year-old children of eligible (working) parents can take up 15 hours government funded childcare, and this will extend to children aged 9-months to 2 year old from September 2024. From September 2025, the new working parent entitlements are expected to increase from 15 to 30 hours.

Wales

All children in Wales are entitled to a minimum of 10 hours, per week, of funded early education during term time.

Scotland

Funded early learning and childcare is free to parents and funded by the Scottish Government. Families are entitled to up to 1,140 hours of funded early learning and childcare a year (around 30 hours a week in term time) if their child is 3 or 4 years old. Some 2 year olds are also eligible.

These are statutory entitlements under section 1(1) and (1A) of the Education (Scotland) Act 1980 and section 47 of the Children and Young People (Scotland) Act 2014.

- o Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

--

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|----------------------------------|--|
| o Limited access | o Poor learning outcomes |
| o Issues of equity and inclusion | o Low number of professionally trained educators |
| o Poor quality programmes | |

- o Other:
- o Lack of support to families

- Please elaborate. Brief quantitative information may be added.

Scotland

Scotland is the only part of the UK to offer 1,140 hours a year of funded ELC to all three and four-year-olds and eligible two-year-olds regardless of their parents' working status. Uptake of funded ELC remains high - according to the ELC Census the estimated uptake rate for ages three and four was 97% in 2023.

Latest Care Inspectorate ELC data for 2022 (published on 31 October 2023) show that the quality of funded early learning and childcare services remains high overall, with 90.1% of funded providers found to be good or better in all quality key questions. The proportion of services evaluated as weak or unsatisfactory across all quality key questions remains very low. Independent research (ELC Parent Survey 2022) showed that 97% of parents and carers who had a 3-5 year-old child in funded ELC were satisfied with the quality of provision.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory."

Primary education

- Please provide the age of enrolment and duration of primary education:

UK Government

Mandatory full-time education begins from the 31 August, 31 December, or 31 March after a child's 5th birthday (or on their birthday if it falls on one of those days) but parents also have the option of enrolling their children in school, full time, from the September following their 4th birthday (or even earlier if the school agrees), and most do. Compulsory education ends on the last Friday in June of the school year in which the child reaches the age of 16.

Section 2 of the Education Act 1996 defines primary education as education suitable for children aged from 2 years up to (but not including) 10 years and 6 months plus such older children (up to but not including the age of 12) as it is expedient to educate with them.

Primary education is typically provided in primary schools but there are also middle schools, all-through schools, nursery schools, and other schools with unusual age-ranges.

Wales

Age 4 – 11 years.

Northern Ireland

When a child reaches the age of four on or between 1 September and 1 July, the child will usually begin their education at the beginning of the next school year (September). Where

a child reaches the age of four on or between 2 July and 31 August in the same calendar year, the child will start school in the September following their fifth birthday.

Scotland

School starting age is normally five. Primary education lasts 7 years.

- Is primary education compulsory and free of charge?

☒ Primary education is compulsory

o Primary education is **not** compulsory.

☒ Primary education is free of charge.

o Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

UK Government

In England education is compulsory for all children from approximately the age of 5 (see above). All children of compulsory school age (roughly 5 to 16 – see above) are entitled to free state education suitable to their needs’.

State primary schools receive funding through their LA or directly from the government. Local authorities have a statutory duty under section 14 of the Education Act 1996 to ensure that there are sufficient schools for providing primary education for all children living in their area, with a view to securing diversity of provision and increasing opportunities for parental choice and having particular regard to the need for special educational provision for pupils who have special educational needs. The Department provides capital funding to support LAs to meet their statutory duty to provide sufficient schools.

The Education Act 1996 sets out the law on charging for school activities. Schools cannot charge for admission, education provided during school hours (including materials and books unless the parent wishes their child to own them), education provided outside school hours that is part of the national curriculum, part of religious education, or part of the syllabus for a public examination the pupil is being prepared for at the school, music tuition (unless it is provided at the parents request) or entry for a public exam that the pupil has been prepared for at the school.

Parents have a duty, under section 7 of the Education Act 1996, to ensure that their child of compulsory school age (approximately 5 to 16 – see above) receives an efficient full-time education suitable to their age, ability, aptitude, and special educational needs (if they have any), either by regular attendance at school or otherwise. If parents choose to register their child at school, the law places a duty on the parents to ensure their child of compulsory school age attends that school regularly.

Section 444 of the Education Act 1996 sets out the situations in which an absent pupil will not be taken to have failed to attend school regularly. These are where the school has given permission; where they are prevented from attending by sickness or other unavoidable problems; where a day is reserved for religious observance in their family’s religion; or where the LA has failed to fulfil any duty it has to help them get to school. Those are the

only reasons that are set out in the Act. There are other specific provisions relating to attendance by boarders and pupils of no fixed abode whose parents have to travel for their trade or business, and for situations where a pupil should attend somewhere other than school to receive education.

School Transport

In England DfE's school travel policy aims to make sure that no child is prevented from accessing education by a lack of transport. LAs must make travel arrangements, free of charge, for eligible children. A child is eligible if they are of compulsory school age (5-16), attend their nearest suitable school and:

- It is beyond the statutory walking distance – 2 miles for pupils under 8 and 3 miles for those aged 8-16; or
- They cannot reasonably be expected to walk to school because of their special educational needs (SEN), disability or mobility problems; or
- They cannot be reasonably expected to walk to school because the nature of the route means it would be unsafe for them to do so.

There are extended rights to free home-to-school travel for children who are eligible for free school meals or whose parents claim the maximum amount of Working Tax Credit. These are intended to support school choice for families where the cost of travel may otherwise be a barrier. Pupils are eligible if they are:

- Aged 8 or over but under 11, attend their nearest suitable school and it is more than 2 miles from their home;
- Aged 11 to 16 years, and attend one of their three nearest suitable schools provided it is more than 2 miles but not more than 6 miles from their home;
- Aged 11 to 16 years, attend a school that is more than 2 but no more than 15 miles from their home and their parents have chosen on the grounds of their religion or belief if, having regard to that religion or belief, there is no suitable school nearer to their home.

School Uniforms

In England, statutory guidance on the Cost of school uniforms was published in November 2021. The guidance requires schools to ensure that the cost of their uniform is affordable and secure best value for money. Schools are legally required to have regard to the guidance under the Education (Guidance about Costs of School Uniforms) Act 2021 when developing and implementing their school's uniform policy. Non statutory guidance on school uniforms was also published which covers other aspects of school uniform, including how schools should meet their obligations in equalities legislation (Equality Act 2010).

The new UK government committed in July 2024 to introducing legislation to limit the number of branded items of uniform and PE kits that a school can require to bring down costs for parents and remove barriers from children accessing sport and other school activities.

Disparity in learning outcomes

There remain persistent gaps in the levels of attainment for different groups, in particular disadvantaged children. Before the pandemic, the disadvantage gap index at Key Stage 2 in England had reduced between 2011 and 2018 - indicating that the attainment gap between disadvantaged pupils and their peers was becoming smaller - before remaining at a similar level between 2018 and 2019. The index increased in 2022 to the highest level since 2012, suggesting that disruption to learning during the COVID-19 pandemic had a greater impact on disadvantaged pupils. The latest data (2023) shows that the disadvantage gap index at KS2 is stable compared to 2022.

Northern Ireland

Admission to grant-aided primary and post-primary schools in Northern Ireland is free and all children must complete 12 years of compulsory education.

Admission to grant-aided schools operates in line with the requirements of [The Education \(Northern Ireland\) Order 1997 \(legislation.gov.uk\)](#). DE's policy on admission to primary schools is set out in [Circular 2023/14 Open Enrolment in Primary Schools](#) while the policy for admission to post-primary schools is set out in [Circular 2023/15 - The Procedure for Transfer from Primary to Post-Primary Education](#).

While the responsibility for admission to grant-aided schools rests with Boards of Governors of individual schools, they have a legal duty to 'have regard to' the guidance issued by the DE in Northern Ireland. The policies include guidance on the admissions criteria schools should and should not use.

Scotland

School education Scotland is free and the entitlement of all children and young people who are resident in Scotland.

Since 2021 the Scottish Government has provided funding to ensure the removal of curriculum charges for all public primary and secondary pupils, with £8m being committed for 2024-25. This ensures that pupils and their families do not have to meet the costs of resources and materials for practical lessons, and also removes cost as a factor when young people are making choices about their education. This includes the removal of costs associated with preparation for courses or qualifications which form part of a school's 'core offer' in public secondary schools.

Additionally, Section 11(1) of the Education (Scotland) Act 1980 ("the 1980 Act") stipulates that education authorities are to provide free of charge for all pupils belonging to their area who are given free education books, writing materials, stationery, mathematical instruments, practice material and other articles which are necessary to enable the pupils to take full advantage of the education provided.

Free school meals are available for all children in primaries 1 to 5, as well as all children in special schools. Free school meals will continue to be available for children after primary 5 where their families meet the eligibility criteria to receive them. The next phase of their free school meals expansion programme will see them being offered to children in primaries 6 and 7 whose families receive the Scottish Child Payment.

School clothing grants are also available to help low-income families with the cost of buying school uniforms. A minimum grant of £120 is available for eligible primary school pupils and £150 for eligible secondary school pupils, although the eligibility criteria is set by local authorities directly rather than by the Scottish Government.

The Scottish Government will also be publishing school uniform guidance for local authorities, this guidance will consider key issues such as affordability and sustainability and local authorities and schools should take this guidance into account when developing their uniform policies.

- What challenges were encountered in realizing primary education?

- o Limited access
- o Issues of equity and inclusion
- o Poor learning outcomes in:
Foundation literacy

- o High dropout rates
- o Poor quality programmes
- o Other:

Numeracy
Social and emotional learning
Others

- ☒ Disparity in learning outcomes
- o Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

Disparity in learning outcomes

The proportion of Primary pupils (P1, P4 and P7) from the most deprived areas in Scotland that achieved the expected level in literacy (reading, writing, listening and talking) in 2022/23 was 63.5% and lower than the proportion of pupils from the least deprived areas (84.0%).

The proportion of Primary pupils (P1, P4 and P7) from the most deprived areas in Scotland that achieved the expected level in numeracy in 2022/23 was 71.9% and lower than the proportion of pupils from the least deprived areas (88.8%).

Secondary education

in this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

UK Government

See explanation in primary education section.

In England Section 2 of the Education Act 1996 defines secondary education as education suitable for children of compulsory school age who are at least 12 years old, plus children aged at least 10 years and 6 months who it is expedient to educate together with them; education for people over compulsory school age but under 19 also counts as secondary education if it is provided in a school alongside education for the 12+ age-group just mentioned. In some circumstances education for other age-groups may also count as secondary education.

Further education (as defined in section 2) is education suitable to anyone over compulsory school age that is not secondary or higher education (and organised leisure-time occupation provided in association with it).

Wales

Statutory education is from age 4 – 16 and available across all of Wales.

Northern Ireland

When a child reaches the age of four on or between 1 September and 1 July, the child will usually begin their education at the beginning of the next school year (September). Where a child reaches the age of four on or between 2 July and 31 August in the same calendar year, the child will start school in the September following their fifth birthday. Children

complete seven years of primary education before transferring to secondary education. Secondary education covers seven years, the first five of which are compulsory.

Scotland

11 or 12 years of age. Secondary education lasts until a pupil is 16 (compulsory) or 18 years of age. It is not separated into lower and upper.

- Please provide the age of enrolment and duration of upper secondary education:

UK Government

See above for definitions of secondary and further education.

The Education and Skills Act 2008 requires all young people in England who have not yet attained a level 3 qualification to continue in education or training until at least their 18th birthday.

Northern Ireland

See section above.

Scotland

Scotland doesn't have separate lower and upper secondary education.

- Is lower and upper secondary education compulsory and free of charge?

- ☒ Lower secondary education is compulsory.
- ☐ Lower secondary education is **not** compulsory.
- ☒ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☒ Upper secondary education is compulsory.
- ☐ Upper secondary education is **not** compulsory.
- ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

UK Government

All children of compulsory school age in England (approximately 5 to 16 – see above) are entitled to free state education suitable to their needs.

In England state secondary schools receive funding through their LA or directly from the government. LAs have a statutory duty under section 14 of the Education Act 1996 to ensure that there are sufficient schools for providing secondary education for all children living in their area, with a view to securing diversity of provision and increasing opportunities

for parental choice and having particular regard to the need for special educational provision for pupils who have special educational needs. DfE provides capital funding to support LAs meet their statutory duty to provide sufficient schools and also capital funding to address condition needs of schools buildings.

The Education Act 1996 sets out the law on charging for school activities. Schools cannot charge for admission, education provided during school hours (including materials and books unless the parent wishes their child to own them), education provided outside school hours that is part of the national curriculum, part of religious education, or part of the syllabus for a public examination the pupil is being prepared for at the school, music tuition (unless it is provided at the parents request) or entry for a public exam that the pupil has been prepared for at the school. Examination re-sit fees, if the pupil is being prepared for the re-sit at the school, can also not be charged for. However, if a pupil fails, without good reason, to meet any examination requirement for a syllabus, the fee can be recovered from the pupil's parents.

See details on a duty on parents under section 7 of the Education Act 1996 and on Section 444 of the Education Act 1996 in the primary education section above.

School Uniforms

See details on school uniforms in the primary education section above.

School Transport

See details on school transport in the primary education section above.

Post 16 participation in education or training

The Education and Skills Act 2008 requires all young people in England who have not attained a level 3 qualification, to continue in education or training until at least their 18th birthday. The Education and Skills Act 2008 placed two Raising the Participation Age related duties on LAs with regard to 16- and 17-year-olds:

- LAs must promote the effective participation in education and training of 16- and 17-year-olds in their area with a view to ensuring that those persons fulfil the duty to participate in education or training. A key element of this is identifying the young people in their area who are covered by the duty to participate and encouraging them to find a suitable education or training place.
- LAs must make arrangements – that is, maintain a tracking system - to identify 16- and 17-year-olds who are not participating in education or training. Putting in place robust arrangements to identify young people who are not engaged in education or training or who have left provision enables LAs to offer support as soon as possible.
- LAs should also pay particular attention to young people with special educational needs and disabilities (SEND), who are significantly less likely to participate than their peers without SEND, and provide targeted support where needed to enable them to participate.

As of June 2024 the new government have committed to a Youth Guarantee as part of the UK Government's Back to Work Plan alongside a national jobs and careers service and local plans for work, health and skills: 'Drawing together existing funding and entitlements, [we] will establish a youth guarantee of access to training, an apprenticeship, or support to find work for all 18- to 21-year-olds, to bring down the number of young people who are not learning or earning'.

Post-16 transport and travel support to education and training

In England, the Education Act 1996 sets out relevant statutory provisions in relation to LAs responsibilities for the provision of transport for adults and persons of sixth form age. DfE

issues statutory guidance to LAs who must have regard to it when carrying out their duties in developing their transport policy and publishing their transport policy statements for young people of sixth form age and adults aged 19 and over (including those with an Education, Health and Care (EHC) plan) in education and training.

The statutory responsibility for transport for 16–19-year-olds (who have started a course before their 19th birthday) rests with LAs. LAs have a duty to prepare and publish an annual transport policy statement specifying the arrangements for the provision of transport, or otherwise that the authority considers necessary, to make to facilitate the attendance of all persons of sixth form age receiving education or training.

The sixth form age duty applies to young people of sixth form age and young people with EHC plans up to age 25 where they are continuing on a course started before their 19th birthday. The transport needs of young people with special educational needs and disabilities must be reassessed when a young person moves from compulsory schooling to post-16 education.

The adult duty applies only to young people who are attending a course which they started after their 19th birthday, including those with EHC plans. Young people will qualify for free transport under the adult duty where the LA assesses that in order to attend education or training they require transport arranged by the LA, such as a specialised vehicle or minibus.

Northern Ireland

See the details in the primary education section above.

Scotland

School education in Scotland is free and the entitlement of all children and young people who are resident in Scotland.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes (UK – England) ☒ No ☒ (Scotland)

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

UK Government

Section 18 of the Children and Young Persons Act 1933 sets out the age limits and restrictions on the hours that children can work, along with the type of work in which they can be involved. Subject to certain exceptions, children under the age of 14 may not be employed (LAs may authorise the employment of 13-year-old children in certain limited circumstances). Children aged 14 and over and not over compulsory school age may only be employed in “light work”, subject to restrictions on hours and type of work. The relevant restrictions ensure that children do not engage in work that is likely to be harmful to their school attendance or during school hours.

Scotland

Minimum age for employment is 13. Minimum age for full time employment is 16 (end of compulsory education).

- What challenges were encountered in realizing secondary education?

- o Limited access
- o Issues of equity and inclusion
- o High dropout rates
- o Poor quality programmes
- o Poor learning outcomes
- o Low readiness of primary graduates
- ☒ Low number of professionally trained teachers
- ☒ Other:

- Disparity in learning outcomes

- Please elaborate. Brief quantitative information may be added.

UK Government

Teacher workforce

In England rising secondary pupil numbers have been a key driver of both recent increases in pupil-teacher ratios (PTRs) and challenges in teacher recruitment. Overall, secondary PTRs have increased from 14.8 in 2010/11 to 16.8 in 2022/23. In 2023/24, 50% of the overall secondary postgraduate initial teacher training (PGITT) target was achieved (13,102 new postgraduate secondary entrants), down from 57% in 2022/23 (12,033 new postgraduate secondary entrants). The PGITT secondary target has not been met since 2012/13, except in 2020/21. Secondary supply challenges are particularly acute in certain subjects, such as STEM. This in part reflects the high demand and wage premium in the wider economy for those with skills in STEM, as well as a more restricted pool of graduates from which to recruit potential teachers in some subjects.

The new government announced in July 2024 they would start driving up school standards, beginning work to recruit an additional 6,500 expert teachers. High quality teaching is the factor that makes the biggest difference to a child's education

Disparity in learning outcomes

In England, there remain persistent gaps in the levels of attainment for different groups, in particular disadvantaged children. At Key Stage 4, the latest data (2023) shows the disadvantage gap index is at the highest level since 2011.

Scotland

Disparity in learning outcomes

The proportion of school leavers from the most deprived areas in Scotland that achieved one or more Higher before leaving school in 2022/23 was 41.5% and lower than the proportion of school leavers from the least deprived areas (78.3%).

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³², and target 4.4³³. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

☐ Higher education is free of charge

☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)

☒ Higher education is accessible through financial incentives and scholarships

☒ Higher education is accessible through positive or affirmative action measures

☐ Higher education is accessible through credit transfer system between states

☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).

☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

UK Government

- Maximum tuition fees for designated higher education courses of at least a year in length in England for undergraduate students set through the Higher Education (Fee Limit Condition) (England) Regulations 2017.
- Fees include admission, registration, tuition and graduation fees and fees payable for awarding or accrediting a qualification in respect of the course.
- Maximum tuition fees frozen for 2021- 2024. Maximum fees up to £9,250 for a standard full-time course; up to £6,935 for a part-time course.
- Subsidised fee loans paid up-front to higher education institutions on behalf of eligible undergraduate students by Government to meet the full costs of tuition.
- Maximum fee loans for designated higher education courses of at least a year in length for undergraduate students set through the Education (Student Support) Regulations 2011.

³² Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

³³ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

- The student finance system supports around 1.3 million undergraduate students in England per year to undertake and benefit from Higher Education.
- £10.6 billion in tuition fee loans were paid to Higher Education institutions on behalf of undergraduate students in financial year 2023-24.
- Landlords are private, autonomous bodies, therefore, the department has no role in the provision of student residential accommodation, nor a remit to intervene.
- Universities and private landlords are expected to review their accommodation policies to ensure they are fair, clear, and promote the interests of all students; this includes making accommodation available at a range of affordable price points.
- Since 2006 the interests of students have been protected by three accommodation Codes of Practice, so that if a student believes their accommodation provider is treating them unfairly, they can raise a complaint under the relevant code of practice or with the LA. The codes can be found at: <https://www.thesac.org.uk/> <https://www.unipol.org.uk/the-code/how-to-complain>.
- Compliance with these codes ensures that managers and tenants benefit from good standards of housing management, misunderstandings and disputes are reduced and problems are resolved promptly when they do occur.
- Maximum loans and grants for living costs increased by 3.1% for 2021/22 academic year; 2.3% for 2022/23; 2.8% for 2023/24; 2.5% for 2024/25.

Northern Ireland

The Department for the Economy makes available some mean-tested grant support for eligible full-time higher education students undertaking degree or equivalent level qualifications. This includes a maintenance grant or special support grant to help with living costs. There is also targeted grant support in the form of Disabled Students' Allowances, the Childcare Grant, Adult Dependents Grant and Parents Learning Allowance. Eligible part-time higher education students can also access grant support through the Fee Grant to help towards their fees and the Course Grant to help with things such as books.

Scotland

The Scottish Government pays the tuition fees for Scottish domiciled students undertaking their first full-time undergraduate degree at publicly funded higher education institutions in Scotland. The tuition fee the Scottish Government pays (via the Student Awards Agency Scotland (SAAS)) to Scottish institutions on behalf of Scottish domiciled students is fixed at £1,820 per academic year for a full-time degree course.

The level of tuition fees that Scottish institutions can charge Scottish domiciled students is governed by Section 9 of the Further and Higher Education (Scotland) Act 2005, the Student Fees (Specification) (Scotland) Order 2011 and terms and conditions of grant paid under Section 9 of the same 2005 Act.

Eligibility to receive the home tuition fee rate (£1,820) is determined by residency rather than nationality or place of birth and is contained within the Education (Fees) (Scotland) Regulations 2022.

Further and Higher Education (Scotland) Act 2005: Establishes the Scottish Further and Higher Education Funding Council (SFC), sets out its functions and makes provision specifying which bodies (colleges and universities) can be funded.

Post-16 Education (Scotland) Act 2013: Made changes to existing legislation in relation to governance of further and higher education, college regionalisation and connected matters.

Higher Education Governance (Scotland) Act 2016: Made provision about the composition of and appointment to the governing bodies and academic boards of higher education institutions and revised provision on academic freedom.

- What challenges were encountered in realizing higher education?

- ☐ Limited access
- ☐ Issues of equity and inclusion
- ☒ Poor quality programmes
- ☐ Poor learning outcomes
- ☐ Other:
- ☐ Low number of professionally trained professors
- ☒ Insufficient mechanisms to ensure smooth transition from secondary to tertiary

- Please elaborate. Brief quantitative information may be added.

UK Government

DfE in England have taken forward significant regulatory reform with the Office for Students (OfS), the independent regulator of higher education providers in England, which has led to a more rigorous and effective quality regime. The OfS has implemented new minimum thresholds for student outcomes, covering course continuation and completion rates, and progression to graduate employment or further study. The OfS regulates quality by monitoring adherence to its conditions of registration. Condition B3 sets the thresholds for student outcomes. The most recent aggregated OfS data (published July 2024) show that:

- For the overall aggregate measure covering full time, taught or registered first degree entrants between 2018/19-2021/22, 40 of 301 providers are below threshold of 80% for continuation rates. The sector average is 89.5%.
- For the overall aggregate measure covering full time, taught or registered first degree entrants between 2015/16-2018/19, 41 of 289 providers are below threshold of 75% for completion rates. The sector average is 88.8%.
- For the overall aggregate measure covering full time, taught or registered first degree qualifiers between 2018/19-2021/22, 62 of 286 providers are below threshold of 60% for progression rates. The sector average is 71.9%.

The OfS will conduct a quality assessment before reaching a decision about whether a provider that falls below the thresholds has breached condition B3, taking contextual information into account. It conducted assessments of 12 providers in 2022-23 and is in the process of publishing the reports.

The OfS also opened eight separate investigations into business and management courses, three into computing courses and three into concerns around grade inflation, and is in the process of publishing the reports.

The OfS is also subject to the PSED and has a public law obligation to consider wider factors which could include student characteristics. It must act proportionately and will consider a range of different contextual factors that may explain the reasons for a provider's performance before reaching any final judgement. The OfS explained how it will take contextual factors into account in the regulatory advice it published in September

2022. For example, it may consider the relative proportions of students from disadvantaged or underrepresented backgrounds studying at different providers.

DfE has commissioned the Institute for Fiscal Studies (IFS) to develop a fair and robust way of measuring the impact of individual courses on graduates' future earnings. The data modelling will control for factors which may affect earnings outcomes, such as students' socio-economic backgrounds, to avoid unfairly representing providers for factors outside their control.

Scotland

Insufficient mechanisms to ensure smooth transition from secondary to tertiary

There are a number of Scottish Government policies which aim to widening access to higher education for students from socio-economically deprived backgrounds. This includes the target that by 2030, 20% of all full-time first-degree entrants to higher education should come from the 20% most deprived areas in Scotland. Additionally, all universities in Scotland have minimum entry requirements in place for students with experience of disadvantage (including deprivation), meaning they can be made offers of entry with lower grade requirements than is typically the case.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☒ Provision of free of charge career guidance and counselling
- ☒ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☒ Other:

Northern Ireland

Youth Service provision covers ages 4-25 (with 18-25 year olds regarded as adults)

- Please elaborate further on the measures taken:

UK Government

Provision of education for persons who have not received or completed the whole period of their primary education

In England all adults are entitled to be fully funded for GCSE maths and English, or functional skills qualifications, if they are assessed as not having grade 4. Additionally, 19–23-year-old learners have the following statutory entitlements which are designed to enable them to catch up on learning they may have missed in compulsory education:

1. Essential digital skills for those learners assessed as being at below level
2. First full level 2 and level 3 qualification.

Provision of literacy programmes

Adult learners in England have a statutory entitlement to be fully funded to achieve GCSE English if they are assessed as being below grade 4. This includes functional skills qualifications and stepping stone qualifications for those where a GCSE is unsuitable.

Adults in England who are non-native speakers can access English for Speakers of Other Languages (ESOL) provision, funded through the Adult Education Budget (AEB). Asylum seekers can be funded for learning if they have lived in the UK for 6 months or longer whilst their claim is being considered. Individuals with refugee status who have been resident in the UK since they were given leave to enter or remain are eligible for funding.

Provision of continuous learning

The Adult Education Budget in England, now known as the Adult Skills Fund (ASF), provides learning opportunities for adult learners, including both academic and technical qualifications. The purpose of ASF is to support adult learners to gain skills which will lead them to meaningful, sustained, and relevant employment, or enable them to progress to further learning which will deliver that outcome.

Provision of free of charge learning opportunities

In England, the provision of free learning depends on the age of the learner. All adults are entitled to:

1. be fully funded to achieve up to and including level 2 in English and maths.
2. be fully funded to achieve an essential digital skills qualification up to and including level 1.

Learners aged 19 to 23 have a legal entitlement to be fully funded for their first full level 2 and level 3 qualification.

In ESFA funded areas, adult learners who earn below the low wage threshold (£25,000 from 1 August 2024) or are unemployed can be fully funded for level 2 qualifications and the level 3 Free Courses for Jobs offer. This ensures that learners earning below the low wage threshold, who have exhausted their statutory entitlements, can still have access to funded adult education.

Provision of professional training including reskilling and upskilling programmes

Programmes designed to specifically upskill an adult learner to enable them to progress into employment include the Free Courses for Jobs offer and Skills Bootcamps. ASF includes qualifications from entry level to level 3 in both academic and technical qualifications. The aim of these qualifications is to enable the learner to progress to either further education or to employment. These qualifications include both reskilling and upskilling opportunities.

Recognition, validation and certification of non-formal and informal learning

Tailored Learning within the ASF includes non-formal and informal learning and is not qualification based. It supports a range of outcomes such as progression to further learning and employment, improved maths, English and digital skills, and improved health and wellbeing. Providers that deliver Tailored Learning must have appropriate and robust quality assurance processes in place, such as Recognising and Recording Progress and Achievement (RARPA).

Provision of free of charge career guidance and counselling

Through careers education, information, advice and guidance, the UK Government helps people to develop the knowledge and skills they need to make successful choices, manage transitions in learning and move into work.

Funding of circa £50m is being provided during the 20224-25 financial year for the National Careers Service to provide free, up to date, impartial information, advice and guidance on careers, skills and the labour market in England. It helps customers make informed choices about their career options, whatever their age, ethnic group and background. The Service is built around identifying and supporting those who face significant barriers to making progress into work or learning and offers in-depth, tailored support to customers who fall into one or more of 6 priority groups: adults aged 50 and over and who are unemployed, or at demonstrable risk of unemployment; low skilled adults without a qualification at level 3 and below; people with learning difficulties and disabilities; adults who have been unemployed over 12 months; 18–24-year-olds not in education, employment or training (NEET); single parents with at least one dependent child living in the same household.

In England, schools and colleges are legally required to provide independent careers guidance to all 11- to- 18-year-olds. Funding of circa £30m is being provided during the 2024-25 financial year for The Careers & Enterprise Company (CEC) to support schools and colleges to improve their careers offer. High-quality careers programmes boost the work readiness of young people, enabling them to acquire the skills they need to progress into sustainable jobs and careers in the future. This includes providing young people with information on the full range of education and training options, opportunities to meet employers and education and training providers, experiences of workplaces and a personal guidance interview.

The new UK government has committed to introduce a guarantee of two weeks' worth of work experience for every young person. There is also a commitment to improve careers advice in schools and colleges, including by training 1,000 new careers advisers so that young people can get the expert advice they need.

Northern Ireland

Essential Skills qualifications, funded by the Department for the Economy, are free to participants and are delivered through FE Colleges, Private Training Providers, and Community and Voluntary Organisations. Essential Skills qualifications are also offered through Schools, with oversight by the DE in Northern Ireland.

Essential Skills deliver accredited, recognised qualifications for three key subject areas – Communication, Application of Number and Information, and Communications Technology. Essential Skills Communication and Application of Number are available from Entry Level 1 through to Level 2, and ICT is available at Levels 1 and 2.

DE is currently undertaking a review of Essential Skills to ensure that the qualifications remain relevant and retain academic currency. A key element of this review is an update of the Information and Communication Technology Qualification which ensures that the qualification is updated to reflect developments in technology to meet evolving needs and to support a high-quality vocational education system.

Assured Skills

Assured Skills is a demand-led, pre-employment training programme which helps individuals gain the skills they need to compete for guaranteed job vacancies. The Academy model is designed to be a short, sharp, versatile intervention which will provide the participants with up-to-date skills that are transferable across many sectors and provides opportunity to gain industry-recognised certifications/qualifications.

Skills Focus

Skills Focus is a demand led programme which aims to support, promote, and facilitate collaborative working between business and colleges, to provide tailored skills provision to small-to-medium enterprises (SMEs with fewer than 250 employees) and meet business needs by increasing the skills levels and employability of the existing workforce to qualification level 2 and up to and including level 7.

Skill Up

Aimed at addressing existing and future training gaps in the adult population, Skill Up has provided short, online qualifications to individuals from level 2 to level 7, in priority economic areas. Delivery is through further and higher education providers, with flexible learning pathways, and reskilling and upskilling opportunities in over 300 curriculum areas.

Step Up

The project is aimed at those under-represented in skills and education opportunities and provides support to access and participate in a range of interventions to enhance and refresh skills, including numeracy and Literacy and progress into further education, training or employment. Approximately 1,700 learners, including women, have been supported in the further education sector in year 1 (2023-2024).

Scotland

Local Authorities in Scotland have a statutory duty to secure the provision of Community Learning & Development (CLD) within their areas, this includes adult learning and youth work. Planning for CLD services is done by the Local Authority in consultation with adult learners, young people and service providers which includes third sector partners.

- What challenges were encountered in realizing adult learning and education?

- | | |
|--|--|
| ☐ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☒ Poor learning outcomes |
| ☐ Poor quality programmes | ☒ Low number of professionally trained educators |
| ☒ Other: | |

<u>Scotland</u> <u>Other</u>

An independent review of Community Learning & Development, which includes adult learning and youth work, concluded in July 2024. The report emphasises many of the issues mentioned above. The Scottish Government will work closely with local authorities through CoSLA to consider implementation of the recommendations.

- Please elaborate. Brief quantitative information may be added.

UK Government

The FE sector plays an important role in providing the skills that UK needs, and we know that FE teachers are critical to securing good outcomes for young people and adults.

In England there are vacancy rates of 5.5% across all subjects but reaching 12.9% (Construction, Planning and the Built Environment); 12.6% (Electronics); 12.1% (Agriculture and Horticulture); 11% (Design, Engineering and Manufacturing); and 10.1% (Accounting and Finance)³⁴. The FE teacher retention rate has fallen for more recent cohorts especially after the first few years of teaching, with just over half (51 per cent) of teachers who started in 2016 still teaching after 3 years.

In England, the previous UK Government increased the level of overall investment in the FE sector, so that providers could recruit, retain, and develop the staff they need to deliver high-quality education and training. This funding is helping FE colleges, sixth form colleges, and other FE providers to address key priorities, including the recruitment and retention of staff.

Northern Ireland

For a variety of reasons, including a dip in the 16–19 year old population (the main age group taking Essential Skills qualifications) and improvements in GCSE grades, annual enrolments in Essential Skills have been decreasing from a peak of 59,994 in 2010/11 to a low of 26,768 in 2019/20.

Essential Skills have a lower success rate. FE College statistics in 2022/23 showed a 56% success rate compared to 81% in other FE courses. This was not due to learner retention (which was 83% compared to 91%). While a free to access course aimed to help people who have historically faced barriers achieving a Level 2 qualification will have a lower success rate, the Department for the Economy keeps Essential Skills under review to ensure it remains an accessible and achievable qualification. The latest review has commissioned Stranmillis University College to make recommendations on how Essential Skills is assessed. It will also be refreshing the ICT curriculum. The literacy and numeracy curriculum was refreshed in 2016 which brought learning more into line with the learner's actual experience and needs.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

³⁴ <https://explore-education-statistics.service.gov.uk/find-statistics/further-education-workforce/2021-22>

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

☒ State monitoring and inspections

☒ Health and sanitation

☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

o Infrastructure

☒ Curriculum

☒ Student-teacher ratio

o School fees (if relevant)

☒ Other

Northern Ireland

Article 102 of the Education and Libraries (Northern Ireland) Order 1986 sets out that every grant-aided school shall be open at all reasonable times to inspection.

The Education (School Development Plans) Regulations (Northern Ireland) 2010 specify that every school must develop a Plan every three years and submit a copy to the school authorities.

The Education (Curriculum Minimum Content) Order (Northern Ireland) 2007 sets out the statutory minimum curriculum requirements for primary and post primary education in Northern Ireland and defines the essential subjects and Areas of Learning that must be included in the curriculum throughout all Key Stages. School leaders and teachers are provided with flexibility to deliver a curriculum which is best suited to the needs of all their pupils.

Education (Northern Ireland) Order 2006 specifies such assessment arrangements it considers appropriate for pupils in relation to (a) an area of learning (b) the cross-curricular skills; and (c) any other skill specified.

Scotland

The framework for the provision of inspection functions is laid out in primary legislation – Education (Scotland) Act 1980. The legal framework provides for powers of inspection and where necessary follow up and improvement where there is insufficient improvement.

The School Premises (General Requirements and Standards) (Scotland) Regulations 1967 prescribe the broad minimum standards that school buildings must meet, including sanitation.

Health and safety is not devolved to the Scottish Government, and regulations are enforced by the Health and Safety Executive.

The curriculum in Scotland is not statutory. Curriculum for Excellence sets out the experiences and outcomes that pupils are expected to achieve across the stages of their learning.

[Curriculum for Excellence | Education Scotland](#)

Student-teacher ratio in Scotland is not statutory. There are joint agreements between national and local government on student teacher ratio.

All Scottish Higher Education Institutions must comply with the terms of their Financial Memorandum with the Scottish Funding Council, and the principles of good governance set out in the Scottish Code of Good HE Governance.

The Scottish Funding Council has a statutory obligation under section 13 of the Further and Higher Education (Scotland) Act 2005 to secure that provision is made for assessing and enhancing the quality of fundable further and higher education provided by fundable bodies; and under section 3 of the 2005 Act to secure the coherent provision by fundable bodies of a high quality of fundable further and higher education.

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

UK Government

Monitoring and Inspections

In England Ofsted is a non-ministerial department of His Majesty's government and an independent inspectorate. Its responsibilities include the regular inspection of all state-funded schools. These inspections are undertaken under section 5 and section 8 of the Education Act 2005. Ofsted publishes an [education inspection framework](#) setting out inspection principles and the main judgments inspectors make and a [school inspection handbook](#) setting out details of the inspections, including the timing, inspection approach, judgements made and reporting. Ofsted's school inspection reports are published on its website [Find an Ofsted inspection report](#).

Intervention or support action is carried out by DfE, as the regulator for schools, based on these judgements. Further detail on monitoring and inspections is set out in Section 4.

Health and Sanitation

Please see information on sanitation in Section 1.2 - Other relevant general measures.

Safeguarding

In England DfE publishes statutory safeguarding guidance, [Keeping Children Safe in Education \(KCSIE\)](#) which all schools and colleges must have regard to when carrying out their duties to safeguard and promote the welfare of children. The guidance provides school and college staff with robust advice about different types of abuse and harm, including child on child abuse. KCSIE is clear that all schools and colleges must adopt a zero tolerance approach to all abuse (whether it takes place inside or outside of the school/college).

Curriculum

Please see Section 1.1 for details on the curriculum.

Student-teacher ratio

In England, the School Standards and Framework Act 1998 limits the size of an infant class to 30 pupils per schoolteacher. An infant class is one in which the majority of children will reach the age of 5, 6 or 7 during the school year i.e. reception, year 1 and year 2. Additional children over the 30 limit may be admitted in exceptional circumstances (paragraph 2.16 of the School Admissions Code) - for example children of multiple birth and looked after and previously looked after children admitted outside the normal admissions round. The limit does not apply to classes for older children, where the organisation of classes is for the school to decide, based on local needs and circumstances.

The EYFS statutory framework for Group and School Based providers outlines the staff to child ratio requirements for children aged 0 to 5, dependent on the type of setting, age of children, and qualification level of staff. This includes requirements for children aged 3 to 5 in schools.

Northern Ireland

Safeguarding, Child and Adult Protection arrangements are in place across state funded youth work provision. Groups need to provide evidence of meeting DE in Northern Ireland guidance in order to access funding.

Inspection provides an independent evaluation of the quality of teaching and learning in all grant-aided schools, providing assurance around education provision and safeguarding.

School Development plans ensure that every school undertakes a process of self-evaluation and considers their priorities for the period ahead based on their own context and data with a focus on literacy, numeracy and ICT and ensured that schools set challenging but realistic targets to raise standards.

Information at a system level about pupil performance across Statutory Assessment at each key stage and external examinations provide benchmarking data which schools can use to determine their own targets and indicate how the Northern Ireland education system is performing as a whole in order to inform policy development, direct funding and identify areas in need of focus or targeted support. Since 2020 DE in Northern Ireland has dis-applied the requirements for schools to report key stage assessments for the three cross-curricular skills of Communication, Using Mathematics and Using ICT, primarily to reduce the workload of schools and teachers ensuring that the focus of schools remains the teaching of pupils in the classroom in a post covid context. DE in Northern Ireland has begun a review of statutory assessment which will make policy recommendations regarding the future purpose, nature and design of Key Stage Assessment and will benchmark against best practice approaches followed across the UK, Republic of Ireland (RoI) and internationally, agreed as part of the 2020 Workload Agreement.

Also see Section 1 above regarding the Period Products (Free Provision) Act (Northern Ireland) 2022.

- What challenges were encountered in realizing quality education?

- | | |
|--|--|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☒ Violence in schools | ☐ Inadequate parental support to education |
| ☐ Cost of education | ☐ Long distances to schools |
| ☐ Conflicts or crises | |
| ☒ Other: | |

Northern Ireland

Prolonged periods of industrial action in Northern Ireland dating back as far as 2011 and only recently ceasing in spring 2024, have resulted in non-compliance with Statutory Assessment returns and other data or information returns such as submission of School Development Plans and proposals for use of School Development Days that inform school improvement policy and identify trends and risks regarding around quality education.

Action Short of Strike directives have also included non-engagement with inspection and whilst inspections have proceeded, many have only been on a partial basis with limited firsthand observation and distribution and collection of pupil, staff and parental surveys to inform the process.

Scotland

Disruption to studies in further and higher education as a result of Covid-19 pandemic and industrial action.

- Please elaborate. Brief quantitative information may be added.

Northern Ireland

Industrial action in Northern Ireland resulted in school submission of end of key stage assessment data from high level of returns (77% of primary and 94% of post primary) in 2012/13 to very low levels in 2017/18 (14% of primary and 32% of post primary) calling into question the reliability of the data. Statutory Assessment has been disapplied since 2019/20 pending a review in line with the Teacher's Pay and Workload Agreement 2017-19.

Compliance around submission of School Development Plans fell to around 50% pre-COVID due to industrial action.'

A significant number of inspections have been impacted by Action Short of Strike both before and after inspections were suspended due to COVID. At least 20 schools have been in the follow-up process well in excess of agreed timelines for improvement due to an inability to demonstrate improvement due to non-engagement with inspection.

Scotland

The Covid-19 pandemic required changes to methods of teaching and learning of further and higher education students to comply with legal restrictions, while the Scottish Funding Council and supporting quality agencies (Quality Assurance Agency; Education Scotland) continued to monitor the impact of these restrictions on quality.

The Scottish Funding Council and supporting quality agencies have also monitored the impact on quality of numerous rounds of industrial action in recent years, in both the further and higher education sector.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.

- ☑ Minimum standards and qualifications required for the teaching profession.
- ☑ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☑ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- o Establishment of performance monitoring systems.
- o Measures taken to increase women in leadership positions in education.
- o Other:

- Please elaborate on each of the measures taken:

UK Government

Continuous Professional Development from initial teacher training to leadership

In England, DfE have created an entitlement to at least three years of structured training, support and professional development for all new teachers underpinned by the Initial Teacher Training (ITT) Core Content Framework (CCF) and the Early Career Framework (ECF). The ITT CCF sets out a minimum entitlement of knowledge, skills and experiences that trainees need to enter the profession. Following on from their initial training, early career teachers (ECTs) will continue their journey by completing a new 2-year induction, underpinned by the ECF. The offer for ECTs includes time off timetable to undertake induction activities, high quality teaching materials and a dedicated mentor with support for mentors.

In England, DfE have launched an updated suite of National Professional Qualifications (NPQs). These are for teachers and school leaders at all levels. There are five specialist NPQs, for those who want to broaden their existing knowledge, expertise, and skills in specialist areas of an education professionals' practice, and five leadership NPQs to help boost leaders' existing knowledge and confidence as they progress into more senior roles.

Initial Teacher Training – focus on quality

For recruitment of trainees for Initial Teacher Training (ITT) in England, ITT providers should consider the full range of applicants' knowledge, skills, academic background and prior experience to judge whether they have the capability to undertake an ITT course and meet the Teachers' Standards by the end of their training.

Teacher training is provided to trainees without discrimination. However, there are certain criteria that potential initial teacher training entrants must have achieved to be accepted on to an undergraduate or postgraduate initial teacher training course. All entrants must also take part in a rigorous selection process designed to assess their suitability to train to teach. To comply with the Equality Act 2010, accredited ITT providers must ensure that interview procedures promote equality of opportunity, and that they are not discriminating against applicants on the basis of any protected characteristic. Accredited ITT providers must ensure that their provision does not place applicants with declared disabilities at a disadvantage and they should provide as many opportunities as possible for applicants to identify any special arrangements they may require.

The work that is reserved to qualified teachers in maintained schools in accordance with section 133 of the Education Act 2002, subject to limited exceptions, is prescribed by the Education (Specified Work) (England) Regulations 2012.

Teacher Recruitment

In England, DfE's reforms are aimed not only at increasing teacher recruitment in key subjects and areas – through an attractive pay offer and financial incentives such as bursaries – but also at ensuring teachers stay and thrive in the profession.

The November 2022 average classroom teacher pay of over £40,000 remains significantly above the national average for full-time employees, sitting within the top 40% of earners. Last year, DfE accepted in full the School Teachers' Review Body's recommendations for the 2023/24 pay award for teachers and leaders. This means that teachers and leaders in maintained schools received a pay award of 6.5% - the highest pay award for teachers in over thirty years.

A minimum £30,000 starting salary has also been introduced for school teachers in all regions of the country. Alongside pay, the overall remuneration package for teachers remains very competitive when taking into account generous pensions and wider benefits, including job security. This includes an employer pension contribution of 28.6% from April 2024 (including past service costs), while almost half of private sector workers receive less than a 4% employer pension contribution.

The Levelling Up Premium is a retention payment for secondary maths, physics, chemistry and computing teachers in the first five years of their careers who choose to work in disadvantaged schools. In October 2023, it was announced that for academic years 2024/25 and 2025/26, rates of the Levelling Up Premium would be doubled from up to £3,000 after tax to up to £6,000 after tax.

Teacher Retention

DfE are taking action to support teachers to stay in the profession. DfE has published a range of resources to help address teacher workload and wellbeing and support schools to introduce flexible working practices. These include:

- The *Education Staff Wellbeing Charter* to build a shared commitment to promoting staff wellbeing.
- The DfE *School Workload Reduction Toolkit*, a resource developed by school leaders for school leaders to review and reduce workload was recently updated to improve speed and navigability with the launch of our new 'improve workload and wellbeing for school staff' service.
- A flexible working toolkit, providing practical resources to help school leaders implement flexible working and to support school staff to request it.

DfE is funding a programme focused on embedding flexible working in schools, and multi academy trusts (MATs). This includes the delivery of supportive webinars and the appointment of flexible working ambassador schools and MATs. These schools and MATs champion flexible working and provide bespoke peer support, building on the work of the ambassador schools DfE funded from March 2021 – December 2022.

The DfE has been improving the quality of the data it holds on teachers with protected characteristics and the barriers these teachers face in the profession. The Working Lives of Teachers and Leaders longitudinal study, for instance, looks specifically at teacher experience, broken down by particular characteristics.

In July 2023, under the previous Government, the DfE published Trust Quality Descriptors. The trust quality descriptions define what DfE want trusts to deliver, and for the first time have set expectations for trusts as employers to train and develop high-quality teachers and leaders, manage workload, prioritise wellbeing of their staff, and recognise their contribution to teacher and leader retention. On Equality, Diversity and Inclusion, DfE's expectation is that a high-quality trust 'ensures inclusive working environments, supports flexible working and take action to promote equality and diversity'.

Ensuring diversity within the teaching workforce, including overseas teachers

The DfE wants to ensure that all services and programmes are inclusive and supportive of all teachers across their career journeys. Recruitment campaigns for initial teacher training are targeted at audiences of students, recent graduates and potential career changers regardless of their identity or background. Every effort is made to ensure that their advertising and marketing materials fully reflects this

In England, the teaching profession is becoming more ethnically diverse. However, challenges still exist. In 2023/24, 16.2% of teacher identify as belonging to an ethnic minority group (up from 11.2% in 2010/11) compared to 29.2% of the working age population. In 2023/24, only 10.0% of Black or Black British teachers and 8.3% of Asian or Asian British teachers were in leadership positions compared to 15.9% of White British teachers.

In 2021, *Apply for Teacher Training*, DfE's new application service for ITT in England, was rolled out nationally. *Apply* has been designed to be user-friendly including testing with a diverse range of potential applicants, to ensure it helps remove barriers to great teachers of all background applying for ITT courses.

From the 2023/24 academic year, DfE extended bursary and scholarship eligibility to all non-UK national trainees in physics and languages. This means international physics trainees are eligible for scholarships worth £30,000 and bursaries worth £28,000. International languages trainees are eligible for bursaries worth £25,000 and scholarships of £27,000.

In England, DfE also offer the international relocation payment (IRP) pilot payment worth up to £10,000, available to non-UK teachers of languages and physics starting in the 2023/24 and 2024/25 academic years. The payment is a contribution towards the costs they face in moving to England to teach – these include visas, the immigration health surcharge and other relocation expenses.

In February 2023 DfE launched a new approach to awarding Qualified Teacher Status (QTS) to highly qualified overseas teachers, allowing teachers with qualifications from an increased number of countries and regions to gain QTS. Eligible teachers can now use the new digital service to apply for QTS in England, if their qualifications, skills, and experience meet the new criteria.

DfE also launched a new International Teaching Qualification-iQTS in September 2022. iQTS is the first UK government-backed international teacher training qualification, based on English teaching methods and standards. It is being delivered by accredited English initial teacher training providers and is accessible to trainees all over the world. iQTS will increase the global pool of highly qualified teachers and support mobility within the teaching profession.

Wales

All accredited programmes of ITE in Wales are available to eligible applicants without discrimination. These programmes provide initial training to student teachers leading to the award of QTS which is a legal requirement to undertake the duties of a school teacher in a

maintained setting. The requirements of QTS are part of the wider Professional standards for the teaching workforce. Marketing and advocacy programmes are in place to promote teaching as an attractive profession.

Ensuring all practitioners have access to guaranteed career-long professional learning is central to the realisation of the vision for education in Wales and one of the enabling objectives in their 'Our national mission.' The [national SLO survey](#), the school improvement framework and the professional standards, provide a firm foundation for schools and settings to identify professional learning priorities and develop a collaborative culture to support curriculum implementation and school improvement.

The [National Professional Learning Entitlement](#) (NPLE), which launched in 2022 ensures all practitioners in Wales have access to quality professional learning to enable high standards and aspirations for all. To fully implement the entitlement and ensure practitioners can access a range of high-quality professional learning programmes and experiences, a new rigorous and robust [professional learning endorsement process](#) launched in March 2024.

To provide a single point of access to high quality, easily navigable professional learning to meet the needs of all education professionals in Wales a new [professional learning area](#) launched on Hwb in 2023. Practitioners can access a wide breadth of training, self-guided learning, case studies, guidance, and research on all aspects of professional learning.

To support the implementation of the curriculum and other national priorities, the Welsh Government are providing an additional INSET day per year for the next 3 academic years starting in 2022 to 2023. The INSET day is dedicated to Curriculum for Wales professional learning, with an emphasis on supporting learners with additional learning needs and embedding equity, well-being and the Welsh language across the whole-school community.

Northern Ireland

The Department for the Economy provides funding to FE Curriculum Hubs, which are a collaboration between the Department and FE colleges to ensure a modern and consistent curriculum, for lecturers who wish to undertake related continuous professional development to benefit the curriculum and students.

In order to teach in FE Colleges in NI, lecturers must meet the minimum level of qualification which is a degree obtained in the UK or the Republic of Ireland (or equivalent, deemed suitable by the Department) in the specialist subject or three-years relevant industrial, professional or business experience and a level 5 qualification in the specialist area.

To teach Essential Skills in NI, lecturers/tutors must meet the minimum level of qualification which is a degree obtained in the UK or the Republic of Ireland of which forms a minimum of 50% of the Essential Skills subject they wish to teach.

Scotland

The General Teaching Council for Scotland (GTCS), as the national regulatory body for teachers in Scotland, is responsible for accrediting programmes of Initial Teacher Education (ITE) and setting the minimum entry requirements for these programmes. The GTCS ensures that programmes of ITE are professionally appropriate and demanding and prepare students for registration as a primary or secondary teacher.

The Anti-Racism in Education Programme (AREP) will continue to embed anti-racist practice and principles in ITE and ongoing professional development for teachers and educators.

Scotland has highest paid classroom teachers in the UK. As at July 2024, the majority of teachers in Scotland have benefited from a cumulative pay increase of over 30% since January 2018.

Teachers in Scotland have a contractual requirement to complete a maximum of 35 hours of continuing professional development per year, and to engage in a Professional Update process every five years as a requirement for registration with the General Teaching Council for Scotland. A wide range of professional development opportunities are provided at a national and local level, for example through Education Scotland and local authorities.

Minimum qualification requirements and professional standards for teachers are in place. The General Teaching Council for Scotland, as the national regulatory body for teachers in Scotland, has responsibility for these.

Between 2017 and 2022 the Scottish Government ran a teacher recruitment campaign which was aimed at raising the profile of teaching as a graduate career and increasing the number of students taking up ITE places in universities and increasing teacher numbers.

As part of the work of the AREP, the Scottish Government is committed to increasing the ethnic diversity of Scotland's education workforce to ensure that it is representative of the communities that it serves.

- What challenges were encountered in the education personnel?

- | | |
|--|--|
| ☒ Shortages of teaching staff | ☒ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☒ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

UK Government

In England, the number of teachers in post is historically high, up 27,000 (6%) on 2010/11 and up over 14,500 in the three years since 2019/20. There were 468,400 full-time equivalent (FTE) teachers working in state funded schools across England in November 2022. However, secondary pupil numbers have been increasing, causing secondary pupil-teacher ratios (PTRs) to rise and are contributing to difficulties recruiting enough secondary teachers, particularly in STEM subjects.

Each year, in England DfE estimate the number of postgraduate initial teacher training (PGITT) entrants the sector will need in order to have the ideal number of teachers the following year. This is done using the Teacher Workforce Model, which considers a broad range of factors. Targets are calculated on an annual basis, and if retention and entrants from non-PGITT routes are higher than expected during the time that trainees are applying for and completing their course, this can offset the need to meet the PGITT targets in full.

The percentage of the PGITT target achieved for all subjects (primary and secondary) in 2023/24 was 62%. In 2023/24, 50% of the overall secondary PGITT target was achieved (13,102 new postgraduate entrants), down from 57% in 2022/23 (12,033 new postgraduate entrants). The PGITT secondary target has not been met since 2012/13, except in 2020/21.

For primary, recruitment performance against the PGITT target increased from 91% in 2022/23 (10,640 new postgraduate entrants) to 96% in 2023/24 (8,844 new postgraduate entrants). Prior to this year, the PGITT primary target was met in 5 of the previous 7 years, including in 2020/21 and 2021/22.

As there is further to go to improve recruitment in some subjects. That is why the UK Government in England have put in place a range of measures, including bursaries worth £28,000 tax-free and scholarships worth £30,000 tax-free, to encourage talented trainees to key subjects such as mathematics, physics, chemistry and computing. The ITT financial incentives package for the 2024/25 recruitment cycle is worth up to £196 million.

Northern Ireland

The Department for the Economy has noted there are challenges around low quality educational infrastructure and materials, and high student – teacher ratio's.

Scotland

Recruitment challenges in certain subjects, STEM in particular, and in remote and rural areas.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.³⁵ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☒ Curriculum includes human rights education.
- ☒ o Educational and/or extracurricular activities are organized on human rights education.
- ☒ Other:

- Child rights
- Higher Education (Freedom of Speech) Act 2023

- Please elaborate on each of the measures taken:

UK Government

Curriculum (current position)

DfE in England is committed to ensuring that all children leave school with the knowledge, skills, and values that will prepare them to be citizens in modern Britain. All schools have specific duties to promote the spiritual, moral, social and cultural development of their pupils and to prepare them for the opportunities and responsibilities of adult life. Furthermore, schools are required to promote the fundamental British values of democracy, the rule of law, individual liberty and mutual respect and tolerance of those of different faiths and beliefs.

The curriculum in England offers many opportunities to prepare young people to be responsible, informed and active members of society, including citizenship, RSHE, Personal, Social, Health and Economic (PSHE) education and active promotion of Fundamental British Values.

The citizenship curriculum includes important content about human rights, the UK legal system and international law. It covers democracy and the political system, which enables pupils to understand their statutory rights, civic duties and responsibilities. Young people should also be taught about international governance and the United Kingdom's relations with the rest of Europe, the Commonwealth, the United Nations and the wider world. The citizenship curriculum provides an important platform for discussions about global issues and their potential impact on human rights.

Active citizenship is a key concept that underpins the citizenship programme and includes opportunities for pupils to undertake school and community-based volunteering, encouraging young people to come together to tackle the local issues they care about within school and in the wider community, thus reinforcing the fundamental British values and an understanding of respect and social equity.

Citizenship forms a core part of the statutory national curriculum at key stages 3 and 4 and primary schools are strongly encouraged to teach it using non-statutory programmes of study. The programmes of study can be found here: [National curriculum in England: citizenship programmes of study](#). Pupils can also choose to study Citizenship Studies at GCSE level. The Department has also published guidance to support schools to promote these [Fundamental British values](#).

Relationships education, which is compulsory in all schools, has a clear focus on healthy relationships, including online, and teaches pupils the importance of respecting others and difference. Teaching should also cover relevant aspects of the law so that pupils understand the consequences of their actions and know where and how to report concerns and get support.

Further information on RSHE can be found in Section 1.1.

Curriculum and Assessment Review (England)

The new UK government has established an independent Curriculum and Assessment review, covering key stages 1 to 5, chaired by Professor Becky Francis CBE, an expert in education policy, including curriculum and social inequality.

The review will seek to refresh the curriculum to ensure it is cutting edge, fit for purpose and meeting the needs of children and young people to support their future life and work. The review will ensure that the curriculum appropriately balances ambition, excellence, relevance, flexibility and inclusivity for all our children and young people.

As part of its core aim of breaking down the barriers to opportunity, the review will seek to make sure children benefit from a curriculum that represents them and their families,

regardless of background, and equips young people to shape our response to the challenges of our changing world.

The views of the sector, including teachers, lecturers, leaders, students and parents, will be pivotal to the recommendations and there will be extensive engagement throughout the entire review. A call for evidence will be launched in September, which will set out the areas where the review group would particularly welcome input from, and will direct the focus of engagement with, the sector and stakeholders over the autumn term.

The review will also undertake a national roadshow, meeting and taking input from staff on the frontline. Professor Francis will be supported by an expert group made up of individuals with experience right throughout the education system. The review will publish recommendations in 2025.

Child Rights

The UK is a signatory of the United Nations Convention on the Rights of the Child (UNCRC), having ratified the treaty in 1991. Since ratification of the UNCRC implementation of the Convention has been pursued through legislation and policy initiatives, including the Children Act 1989 and the Children Act 2004. In general, the UK does not incorporate international treaties directly into domestic law. Instead, if any change in the law is needed to enable the UK to comply with a particular treaty, the Government introduces legislation designed to give effect to that treaty. Existing legislation and policies give effect to the rights and obligations in the UNCRC and regard is given to the UNCRC when developing any new legislation or policy.

Higher Education (Freedom of Speech) Act 2023

The Secretary of State for Education announced on 26th July 2024 that she is stopping further commencement of the Higher Education (Freedom of Speech) Act 2023, in order to consider options, including its repeal.

While the government is clear it is absolutely committed to freedom of speech and academic freedom, and it recognises that many in the higher education sector feel that the Act is disproportionate, burdensome and damaging to the welfare of students. Ministers are also concerned that the Act will expose higher education providers to costly legal action and have listened to Jewish groups and others who are concerned that fear of sanction will push providers to overlook the safety and wellbeing of minority groups.

The government recognise and support the existing duty on higher education providers to secure lawful freedom of speech, set out in section 43 of the Education (No 2) Act 1986. This duty remains in force.

Wales

Child Rights

The Welsh Government has worked with education consortia and regional partnerships, with support from the Children's Commissioner for Wales, to create an online professional learning package on the United Nations Convention on the Rights of the Child (UNCRC) and the United Nations Convention on the Rights of Persons with Disabilities (UNCRPD). This national professional learning resource is supporting practitioners, head teachers, governing bodies and LAs to develop an awareness and understanding of the UNCRC and UNCRPD. A consistent professional learning offer was required to support schools to meet the requirements of Section 64 of the [Curriculum and Assessment \(Wales\) Act 2021](#). The first two modules were made available during the summer term 2023 via the Welsh Government's online learning platform '[Hwb](#)'. A third module is currently under development.

Northern Ireland

Curriculum

In Northern Ireland, specifically at Key Stage 3 through the Local and Global Citizenship strand of Learning for Life and Work pupils should be provided with opportunities to:

- Investigate why it is important to uphold human rights standards in modern democratic societies, including meeting basic needs, protecting individuals and groups of people.
- Investigate key human rights principles.
- Investigate why different rights must be limited or balanced in our society.
- Investigate local and global scenarios where human rights have been seriously infringed.

Scotland

Through Learning for Sustainability (LfS) the Scottish Government are supporting whole-setting approaches that enable learners, educators and their wider community to build a socially-just, sustainable and equitable society. LfS weaves together cross-curricular themes on global citizenship, sustainable development and children's rights, recognising the importance of climate and social justice, equality and outdoor learning for their future life and work in the 21st century.

The refreshed Learning for Sustainability Action Plan, published in 2023, contains a centrepiece "Target 2030" commitment to ensure that by 2030 every school and early learning setting will be a Sustainable Learning Setting.

Connected to this our Anti-Racism in Education Programme (AREP) will continue to embed anti-racist practice and principles in initial and ongoing professional development for teachers and educators, including the promotion of a decolonised curriculum which reflects diversity, social justice and Scotland's role in trans-Atlantic enslavement, as well as the development of robust measures for tackling racist incidents in schools.

The Scottish Government's anti-racism curriculum principles, *Breaking the Mould*, articulate what that entails and work is under way, led by the Scottish Government and in partnership with a range of others, to support their implementation.

The Scottish Government's work on LfS and anti-racism in education is further underpinned by Article 29 of the UNCRC, providing a right to an education that develops every child's personality, talents and abilities to the full, encouraging the child's respect for human rights, as well as respect for their parents, their own and other cultures, and the environment.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision³⁶.

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation³⁷ explicitly apply to non-state educational institutions.

³⁶ Private, faith-based, NGOs, community actors.

³⁷ See: Article/Paragraph 1(1).

Please specify:

UK Government

The Equality Act 2010

Please see section 1.1.

Scotland

Independent Schools

There is no specific legal provision which explicitly applies to independent schools prohibiting discrimination. However, those responsible for the management of schools and other educational establishments have a duty to make reasonable adjustments for disabled pupils. With regard to independent schools, these are subject, as noted elsewhere, to the Equality Act 2010.

Home Education

There is no specific legal provision which explicitly applies to home education prohibiting discrimination.

However, in law local authorities have a duty to serve a notice on any parent who they are not satisfied is providing efficient education suitable to their child's age, ability and aptitude. The law does not specify how, and to what extent, local authorities should actively seek the information that will inform them on whether home educating parents' educational provision is suitable and efficient.

If the local authority has reason to believe that an efficient education is not being provided for a home educated child, they have a duty to intervene. This duty applies equally in relation to all children, regardless of whether or not they have previously attended a local authority school in the area.

☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

UK Government

In addition to provisions in Part 6 of the Equality Act 2010 applying in relation to independent schools, in England, independent schools need to comply with the [Independent School Standards \(ISS\)](#). [\(the standards\)](#) Independent schools that don't meet the standards may be subject to regulatory action as explained in the Department for Education's [Regulatory and Enforcement Statement](#). Amongst other things the standards set out requirements that link directly to the Equality Act 2010 ("the 2010 Act"). There is an obligation to provide-

(d)personal, social, health and economic education which-

(i)reflects the school's aim and ethos; and

(ii)encourages respect for other people, paying particular regard to the protected characteristics
set out in the 2010 Act

And then an obligation which requires as follows:

3. The standard in this paragraph is met if the proprietor ensures that the teaching at the school—,,,,,,,,,

(j) does not discriminate against pupils contrary to Part 6 of the **2010 Act**

And another which requires that principles are actively promoted that

(vi) encourage respect for other people, paying particular regard to the protected characteristics set out in the **2010 Act**;

All independent schools must have regard to [Keeping children safe in education \(KCSIE\)](#). This is the same guidance all schools in England must follow.

Scotland

Independent Schools

With regard to independent schools, these are subject, as noted elsewhere, to the Equality Act 2010. Beyond this, all independent schools are inspected by HM Inspectors using *How Good Is Our School?* (4th Edn.), of note this framework for self-evaluation (which also details the Quality Indicators used by HM Inspectors) includes a specific expectation that all schools promote equality and challenge discrimination (pg. 33, 48, and 56).

Beyond this, the Scottish Government changed the law around the registration of teachers to mandate that all teachers in the independent sector be registered with the General Teaching Council for Scotland ("GTC Scotland", the body which sets standards and regulates the teaching profession). The standards, which all teachers must uphold, includes "social justice" and explicitly expects that all teachers understand and challenge discrimination and specifically references the Equality Act 2010 (pg. 4 of *The Standard for Full Registration*, GTC Scotland).

Home Education

In terms of home education, Scottish Government guidance recognises home education as a key aspect of parental choice, and is an equally valid choice alongside the option to send a child to school. Authorities should seek to support parents in the choices that they make by offering advice, clear and accurate information and resources where feasible. Consent to withdraw a child from school should not be unreasonably withheld. The consent of the education authority is generally required before a child who has started school can be withdrawn.

o Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

UK Government

Section 9 of the Education Act 1996 (pupils to be educated in accordance with parents' wishes) states that: In exercising or performing all their respective powers and duties under the Education Acts, the Secretary of State and local authorities shall have regard to the general principle that pupils are to be educated in accordance with the wishes of their parents, so far as that is compatible with the provision of efficient instruction and training and the avoidance of unreasonable public expenditure.

Article 2 of the First Protocol to the ECHR provides: No person shall be denied the right to education. In the exercise of any functions which it assumes in relation to education and teaching, the State shall respect the right of parents to ensure such education and teaching in conformity with their own religious and philosophical convictions. On ratifying the First Protocol, the UK entered a reservation in respect of the second sentence of Article 2: ... in view of certain provisions of the Education Acts in force in the United Kingdom, the principle affirmed in the second sentence of Article 2 is accepted by the

United Kingdom only so far as it is compatible with the provision of efficient instruction and training and the avoidance of unreasonable public expenditure.

This reservation was entered to reflect the principle originally contained in the Education Act 1944 and now re-enacted in section 9 of the Education Act 1996.

Scotland

Independent Schools

The overwhelming majority of independent schools are non-denominational. However, there are denominational schools in the sector (this includes Christian, Catholic, and Islamic schools, and one Episcopalian school).

Denominational or faith schools have been part of the state sector since the Education (Scotland) Act 1918 allowed such schools to transfer to local authority control. In accordance with Section 17 of the 1980 Act, local authorities may establish a denominational school for any denomination or faith if they are satisfied that such a school is required, either in response to representations made to them by any church or denominational body acting on behalf of parents, or on their own initiative.

A prospective proprietor may apply to register (i.e. have permission to operate) an independent school, the prospective school may be faith-based in nature.

Home Education

In terms of home education, local authorities should acknowledge that potential home educators come from all social, economic, racial and religious backgrounds, and that these factors should not bear upon the authority's decision to give consent to withdraw a child from school. Parents do not have to give a reason for choosing home education when requesting to withdraw their child from school. It is recognised that religious or cultural beliefs, and the wish to follow a particular educational or ideological philosophy, are common reasons for parents choosing home education. Any reason given should have no bearing on whether or not consent is given, as the authority's interest lies in how the parents intend to educate their children not their reason for doing so.

o Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☒ Registration
- ☒ State monitoring and inspections
- ☒ Qualifications of teachers
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☒ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees

☒ School closures

☐ Other

- Please elaborate:

UK Government

Independent Schools

See section above.

Registration

Secretary of State must be satisfied a school is likely to meet the standards to register a school. Ofsted will carry out an inspection to help inform this judgement. Guidance is here - [Independent school registration](#).

State Monitoring and Inspection

Secretary of State [regulates independent schools](#). As well as registration requirements, there are requirements to meet the standards and enforcement action available where those standards are not met.

Guidance is available to support a school make an [application to change its registered details](#). A school that makes an unauthorised material change may be deregistered.

Independent schools are subject to Ofsted inspection as part of the preregistration process and then are subject to a 3 year inspection cycle where they will be inspected by Ofsted or the Independent Schools Inspectorate. The department may commission an emergency inspection where it receives serious complaints and/or has serious concerns about an independent school.

Qualification of Teachers

There are no qualification requirements to teach in an independent school. However the standards set out requirements related to quality of teaching in the school and the regulatory regime that allows the Secretary of State to prohibit individuals from teaching work applies to independent schools. See the [Teaching Regulation Agency](#) for further details.

Health and Sanitation

Most health and safety laws that apply to state schools apply to independent schools. In addition the standards set out requirements for quality of accommodations (Part 5). this includes the following on toilets and water-

28.—(1) The standard in this paragraph is met if the proprietor ensures that—

- (a)suitable drinking water facilities are provided;
- (b)toilets and urinals have an adequate supply of cold water and washing facilities have an adequate supply of hot and cold water;
- (c)cold water supplies that are suitable for drinking are clearly marked as such; and
- (d)the temperature of hot water at the point of use does not pose a scalding risk to users

Safety

As described above the standards set out requirements for schools to safeguard their pupils and have regard to statutory safeguarding guidance. KCSIE provides advice to schools on gender based violence, including detailed advice on preventing and dealing with reports of child on child abuse. As well as KCSIE, schools must have regard to [Working together to safeguard children](#) which sets out their role in multi agency safeguarding arrangements.

Curriculum

Whilst independent schools are not required to follow the national curriculum (although some do), the standards set out detailed requirements (in Part 1- Quality of Education) to ensure a school has a curriculum which covers a broad range of subject disciplines, delivered through teaching that will enable all pupils to make good progress according to their abilities.

Student teacher ratio

There are no requirements in standards regarding student teacher ratios. This is a matter for individual schools. There is a requirement in standards for schools to:

- Ensure that pupils are properly supervised through the appropriate deployment of school staff.

School Closures

The Secretary of State maintains a register of independent schools. Where a school closes it may be removed from the register. Notification of closure is shared with the relevant LA.

Northern Ireland

The Education and Libraries (NI) Order 1986 sets out a number of relevant powers and duties. Article 101 empowers Department for the Economy and DE to give directions to a college of education or an FE college, while Article 102 requires colleges of education and Department for the Economy - funded institutions (i.e. universities) to be open to inspection by appointees of the Department. Those inspectors have a duty to promote the highest educational standards by monitoring, inspecting and reporting on educational practice. Finally, Article 102 also confers Article 101 powers on the Department for the Economy to remedy any matter referred to in an inspection report.

Scotland

Registration – independent schools

In accordance with Part V of the Education (Scotland) Act 1980 (“the 1980 Act”), all independent schools (i.e. schools which are not grant-aided schools or schools operated by a local authority) must be registered by the Scottish Ministers prior to opening. Before being registered, proposed independent schools must be visited by HM Inspectors and the Scottish Ministers must be satisfied that the proposed school will provide an appropriate education and safeguard the welfare of pupils among other things as set out in section 98A(3) of the 1980 Act.

Once registered, the school will be inspected by HM Inspectors. An additional registration and regulatory scheme applies to independent schools which offer a boarding or residential service (known as a school care accommodation service), this is part of the Care Inspectorate’s locus.

Registration – home education

Under Section 35 of the Education (Scotland) Act 1980, parents of a child who has been attending a public school must seek the local authority's consent before withdrawing their child from that school, and the authority must not unreasonably withhold consent. It should

be noted that while consent is needed for withdrawal from school, consent is not needed to home educate in itself.

Consent to withdraw a child from school is not needed in the following situations:

- The child has never attended a public school.
- The child has never attended a public school in that authority's area.
- The child is being withdrawn from an independent school.
- The child has finished primary education in one school but has not started secondary education in another.
- The school the child has been attending has closed.

State monitoring and inspections – independent schools

All independent schools are subject to inspection by HM Inspectors. Additionally, each independent school has a Link HM Inspector who will, annually, engage with the school.

Independent schools which also provide boarding or residential accommodation are also inspected by the Care Inspectorate. In such cases, HM Inspectors and the Care Inspectorate will often inspect jointly.

State monitoring and inspections – home education

There is no statutory duty upon local authorities to 'monitor' ongoing home education provision. However, in law they have a duty to serve a notice on any parent who they are not satisfied is providing efficient education suitable to their child's age, ability and aptitude. The law does not specify how, and to what extent, local authorities should actively seek the information that will inform them on whether home educating parents' educational provision is suitable and efficient.

If the local authority has reason to believe that an efficient education is not being provided for a home educated child, they have a duty to intervene. This duty applies equally in relation to all children, regardless of whether or not they have previously attended a local authority school in the area.

Qualifications of teachers – independent schools

Every teacher in the independent sector must be registered with GTC Scotland (the regulatory body for all teachers in Scotland). GTC Scotland, a body independent of government, sets the requirements for registration and this includes appropriate university-level qualification.

Qualifications of teachers – home education

Parents are not required to have any qualifications or training to home educate their children.

Health and sanitation – independent schools

Independent schools are subject to health & safety legislation as with any public building. As part of the registration process, the number of toilets and wash hand basins are considered to ensure appropriate access to sanitary facilities for pupils.

Health and sanitation – home education

Not applicable.

Safety – independent schools

As noted, independent schools are subject to health & safety legislation.

Safety – home education

The welfare and protection of all children, both those who attend school and those who are educated by other means, is of paramount concern and is the responsibility of the whole community. As with school educated children, child protection issues may arise in relation to home educated children. It should not be assumed that child protection issues are more likely to arise for children who are home educated. If any child protection concerns come to light in the course of engagement with children and families, these concerns should immediately be referred to the appropriate authorities using established protocols.

Infrastructure – independent schools

Buildings must be appropriate and safe for use by pupils and staff (s. 98A(3) and s. 99(1A)(b) of the 1980 Act).

Infrastructure – home education

Not applicable.

Curriculum – independent schools

Independent schools in Scotland are free to offer any curriculum they see fit (though the overwhelming majority use Scotland's national curriculum (*Curriculum for Excellence*)). Independent schools must offer "efficient and suitable instruction" and schools which do not may be subject to regulatory action by the Scottish Ministers.

Curriculum – home education

According to Section 30 of the Education (Scotland) Act 1980, "It shall be the duty of the parent of every child of school age to provide efficient education for him suitable to his age, ability and aptitude either by causing him to attend a public school regularly or by other means." While most parents fulfil their responsibility to provide education by sending their children to school, others choose to provide home education. Home education is a right conditional upon the parents providing an efficient education suitable to the age, ability and aptitude of the child, and choosing this option does not in itself require permission.

Parents' educational provision will reflect a diversity of approaches and interests. Although some parents may welcome general advice and suggestions about resources, methods and materials, local authorities should not specify a curriculum which parents must follow.

Student-teacher ratio – independent schools

There is no set student-teacher ratio which applies to independent schools.

Student-teacher ratio – home education

There is no set student-teacher ratio which applies to home education.

School fees – independent schools

Independent schools in Scotland are free to set fees as they see fit.

School fees – home education

Not applicable.

School closures – independent schools

Independent schools may effectively be closed by the Scottish Ministers (by directing the Registrar of Independent Schools to remove the school from the register) where, for example, Ministers are satisfied that a school has not satisfactorily resolved matters raised by Ministers in a notice of complaint (s. 100(1) and 100(2) of the 1980 Act).

The proprietors of an independent school may close the school for which they are responsible and expected to inform the Scottish Ministers where this is the case.

School closures – home education

Not applicable.

- What challenges were encountered in non-state education provision?

- | | |
|--|--|
| o Low quality educational infrastructure and materials | ☒ Issues in terms of equity and inclusion |
| o Low number of professionally trained teachers | ☒ Weak government regulatory and monitoring capacity |
| o High student – teacher ratio | |
| o Other: | |

- Please elaborate. Brief quantitative information may be added.

UK Government

Issues in term of equity and inclusion – inspection

In England, independent faith schools can decide which pupils to admit, the curriculum that they teach and the content of their religious studies teaching. Faith schools give religious parents the choice to have their child educated within their faith, in a school that shares their values which does promote inclusion.

Ofsted will inspect [non-association independent schools](#), including faith schools within this category. All other faith schools will be inspected by the [Independent Schools Inspectorate \(ISI\)](#).

Scotland

Weak government regulatory and monitoring capacity

While largely non-recent issues, the findings of Lady Smith through the Scottish Child Abuse Inquiry speak to issues of governance and oversight of independent boarding schools (as with other establishments). The reports published by the Inquiry also speak to issues of recruitment (the absence of proper checks, such as following up on employer references). However, all teachers in independent schools, as well as other staff and volunteers, must be members of the Protection of Vulnerable Groups (PVG) Scheme which, as well as highlighting any criminal record, allows employers and regulatory bodies (such as GTC Scotland) to be updated with new information as appropriate.

Issues in terms of equalities and inclusion

In terms of home education, it is recognised that children and young people with additional support needs are overrepresented within home educating communities. It is also recognised that where a parent chooses to home educate, the duties placed on a local authority by the Education (Additional Support for Learning) Act (Scotland) 2004 (as amended) to identify, provide for and review the support needs of their pupils cease to be applied.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion³⁸.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

o Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

o Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content³⁹, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

o A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

UK Government

Free access to Oak National Academy

Building on its success in the pandemic, Oak National Academy (Oak) was established in England as a Non-Departmental Public Body on 1 September 2022. Oak aims to support

³⁸ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

³⁹ Lack of internet connection, basic infrastructure or devices.

teachers to improve curriculum delivery, reduce workload and support improved pupil outcomes, and provides a contingency for situations in which pupils need to learn remotely. Oak works with teachers across the country, giving them and their pupils access to free, optional, and adaptable high-quality digital curriculum resources. Specialist content for pupils with special educational needs and disabilities (SEND) is also available. The majority of Oak lesson content can be auto-translated into other languages using Google Translate, and Oak has produced a [help page](#) to assist with this. Additional funding has also been allocated to Oak to develop AI tools that will help to speed up lesson planning and reduce teacher workload.

Sharing of education data Internally and externally

In England, the use of children's personal data is subject to complying with legislation set primarily by the [UK General Data Protection Regulation \(UK GDPR\)](#) and the [Data Protection Act 2018 \(DPA\)](#). As well as the Statutory Age-Appropriate Design Code ([AADC](#)) which applies to technology suppliers who provide 'direct-to-consumer' services to support online learning. The AADC does not apply to technology used to support education in schools.

For most of the personal data collected, stored and used, the education institution or its owner is the 'data controller'. The DfE has a dedicated project working with schools to develop contextualised [data protection guidance](#) to help them make informed data protection decisions to ensure compliance with legislation.

[Guidance and policy](#) also address the safe and effective use of AI in education, including the importance of addressing data privacy considerations.

The Information Commissioner's Office, as part of its [Children's Code Strategy](#), will be undertaking audits of the development, provision and use of Ed Tech solutions in schools to understand the privacy risks and potential non-compliance with data protection legislation. Data security and privacy is also supported by [cyber security standards for schools and colleges](#) published by DfE.

Future ready skills integrated into formal curriculum at all levels of education

Pre-19

In England, Computing was introduced as a statutory National Curriculum subject in 2014, from Key Stages 1 to 4 inclusive. It is compulsory in all LA maintained schools. Academies and Free Schools must teach a broad and balanced curriculum and may use the National Curriculum as an exemplar. The computing curriculum ensures that pupils become digitally literate so that they are able to use, express themselves and develop their ideas through information and communication technology, at a level suitable for the future workplace and as active participants in a digital world.

Through computing, pupils are taught how to use technology safely, securely, respectfully and responsibly, so that they can make informed decisions whilst online or using other digital applications and technologies. To provide a basis for further study and careers, including in AI, pupils are also taught the principles of information and computation, how digital systems work and how to put this knowledge to use through programming.

Through RSHE, pupils should be taught how to recognise risks, harmful content and contact, and how and to whom to report issues. Pupils should have a strong understanding of how data is generated, collected, shared and used online, e.g., how personal data is captured or understanding the way that businesses may exploit the data available to them.

The computer science GCSE (ages 14-16) is designed to equip pupils with the knowledge needed for the technological jobs of the future and supports progression into further education

or employment. Students are taught, for example, to understand and apply the principles of computer science and to study the impacts of digital technology to the individual and to wider society.

The computer science A level (ages 16-18) provides students with a broad range of knowledge, skills and understanding in computer science, as a basis for progression into further learning and/or employment. Students are taught, for example, to develop their capacity for thinking creatively, logically, and critically, and to articulate the opportunities and risks of digital technology.

Post 19

From August 2020, the UK Government in England introduced a digital entitlement for adults with no or low digital skills to undertake specified digital qualifications free of charge. These Essential Digital Skills qualifications (EDSQs) are at entry level and level 1 were also introduced from August 2020, funded under the digital entitlement. From August 2023 a new digital Functional Skills qualifications (FSQs) was introduced.

The UK Government in England also fund community learning and other non-regulated learning, such as building confidence in essential digital skills, through the AEB. Many LAs and other FE providers are already delivering these courses that help equip adults with the essential digital skills they need for work, life and further learning.

Digital divide

In England DfE are building on their significant investment in devices, platforms, training and digital services during the COVID 19 pandemic with a strategic approach for digital technology in education and to take advantage of the opportunities digital technologies present.

DfE are working with commercial providers to accelerate gigabit capable internet rollout to schools, alongside a joint investment from the Department for Science, Innovation and Technology and DfE. The programme is funding fibre infrastructure for schools who would not otherwise be connected by commercial rollout, and are currently stuck on outdated copper cables, to enable all schools to have access to a high-speed connection by the end of 2025.

Recognising the importance of high speed, secure, stable connectivity inside schools, DfE are investing up to £200m to upgrade over 3,700 schools that fall below Wi-Fi connectivity standards across the 55 Education Investment areas.

DfE are also developing a core set of digital and technology standards to support schools to understand their digital environment and know what technology they should have in place. DfE want all schools and colleges to meet these standards, levelling up access to safe, secure and user-friendly digital technology for teaching and administration.

Wales

Welsh Ministers are fully committed to maintaining support for the [Hwb EdTech programme](#) to ensure that all maintained schools have equitable access to online tools and resources which can be accessed anytime, anywhere.

The Welsh Government has invested over £200 million to deliver dedicated ultrafast fibre broadband and future proof education technology infrastructure in all schools; provided over

265,000 end user devices, while work has begun on refreshing the teaching and learning tools and peripherals across Wales to help deliver the Curriculum for Wales.

Schools across Wales can also benefit from the [Hwb digital learning platform](#), which is helping to improve the use of digital technology for teaching and learning. Hwb provides all pupils and teachers in maintained schools, as well as other education stakeholders, such as trainee and supply teachers, with access to a range of bilingual digital infrastructure, tools and resources including an all-Wales Microsoft Education licensing agreement that is helping to transform digital teaching and learning in Wales.

Digital competence is a mandatory cross-curricular skill, alongside literacy and numeracy, within the Curriculum for Wales. It is the responsibility of all practitioners, across all curriculum areas, to develop and ensure progression in these skills. To support schools and practitioners to develop, extend and apply these skills, the [Digital Competence Framework](#) is available as non-statutory supporting guidance.

Northern Ireland

In 2023 DE in Northern Ireland established a Digital Skills Strategic Oversight Group to bring forward actions / recommendations to improve the delivery of digital skills across all key stages of the curriculum.

FE colleges have a Digital/IT Curriculum Hub which embeds digital skills in the relevant curricula and also facilitates the sharing of teaching materials via a shared portal across the six colleges. The Hub has also focussed on extending digital skills to more hard-to-attract groups, such as young women, through collaboration with the NI Cyber Security Centre. Teaching has also been delivered via digital channels as a contingency, with in-person learning the preferred option.

Scotland

In Scotland, local authorities are legally responsible for delivery of education, including decisions around deployment of technology in their schools to support learning and teaching. Many local authorities in Scotland have rolled out 1:1 device provision across their schools but this is not universal across our 32 local authority areas.

To support local authorities, the government are developing a new national digital strategy for education which will outline the fundamental underpinning components needed to enable digital learning and coordinate our actions with local government to maximise impact. Supporting authorities to lay a digital foundation in education will enable greater use of technologies to enhance teaching and learning experiences.

Work is currently underway to develop a 'Curriculum Review Cycle' whereby each area of the curriculum will be reviewed periodically to ensure it remains relevant and up to date. This is especially important in the 'Technologies' as advancements (such as the advent of publicly available generative AI) occur at pace.

Since 2008, the Scottish Government has funded (and delivered via Education Scotland) the Glow national digital learning platform which offers all learners and teachers free and secure access to a range of digital tools and services for use in education – the core service offer currently includes Microsoft Office 365, Google Workspace and Wordpress Blogs. This provision aims to ensure that all learners have equal access to digital tools for learning, regardless of local investment.

- What challenges were encountered in digital education provision (check all that apply)?

- ☑ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways
- ☑ Lack of equity and inclusion in digital learning solutions
- ☑ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks
- o Other:
- ☑ Limited access to internet and/or electricity
- ☑ Limited access to hardware (devices, chargers, etc.)
- ☑ Difficulty in regulating the use of digital education solutions
- ☑ Difficulty in sustainably financing digital education solutions at national scale
- ☑ Lack of digital skills development for meaningful use of digital technology in teaching practice
- ☑ Disjointed or fragmented solutions that are not centrally systematized or regulated

- Please elaborate. Brief quantitative information may be added.

UK Government

Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways.

As an integral part of the process to set up Oak National Academy as a Non-Departmental Public Body, DfE produced a [business case](#) which included an assessment of the curriculum resources market. The business case highlighted weaknesses in curriculum design and delivery within the English school system, with one of the suggested causes being that teachers were under-supported in the curriculum resources they have access to, with a lack of confidence in the quality of the curriculum resources currently available, and difficulty accessing and using high quality curriculum resources.

Lack of digital skills development for meaningful use of digital technology in teaching practice

For classroom teachers, technology can reduce the administrative burden that contributes to their workload and support excellent teaching for all children, so they are able to reach their full potential. It is therefore important that we support schools to improve their teaching through better use of technology and increased digital maturity.

In England, DfE are prioritising work on leadership skills for managing technology to ensure alignment with the digital leadership and governance standards, and with standards on the cloud, accessibility, devices, and cyber security. All of these have strategic elements requiring capability building from leaders to teachers, to allow them to procure and plan for technology effectively. This includes understanding the importance of investing in technology, knowing the roles and responsibilities involved in delivering and managing technology and creating a digital strategy.

NPQs are part of a wider set of [teacher development reforms](#) which provide training and development opportunities through the entirety of a teacher's career. The leadership NPQs have been reformed to ensure they are underpinned by the latest and best evidence and the specialist NPQs have been designed to support teachers and school leaders who want to broaden and deepen their expertise in specialist areas of school practice. Throughout the NPQ programmes, participants are encouraged to remain up to date with the latest evidence-based approaches which may include digital technology and skills, to impact positively on school practice and pupil outcomes.

Limited access to internet and/or electricity

60% of schools report using a full fibre connection for their broadband (54% primary and 93% secondary). With regards to Wi-Fi, 24% of schools (24% of primary and 21%

secondary schools) report using the latest wireless network approved standard by the Wi-Fi alliance, Wi-Fi 6⁴⁰.

Limited access to hardware (devices, chargers etc).

On average primary schools have enough laptops for 34.7% of their pupils and secondary schools have devices for 17.9%. 20% of primary schools and 39% of secondary schools have either no laptops, or laptops for less than 10% of pupils⁴¹.

Wales

Maintained schools in Wales had faced the range of challenges identified above, and more. The Welsh education sector has experienced significant reforms in recent years, and alongside the Covid pandemic, maintained schools in Wales have faced continuous significant disruption and change. As a result, school leaders did not identify the provision of digital education as a key priority.

A review of education technology identified a significant lack of investment and inconsistency of digital education provision, while the digital maturity of Welsh schools was recognised as basic/minimal in 2012.

Working in partnership with LAs, a programme of national initiatives has delivered a sustainable, standardised, and consistent national approach to digital services, enabling maintained schools in Wales to maximise the transformational benefits digital, and technology, can have on education.

The Hwb platform provides equitable experiences for all schools, and ensures the safety and security of all learners and practitioners remains paramount, and aims to develop a culture of digital competencies, skills, and knowledge that are critical to underpin the curriculum for Wales.

Scotland

Local authorities are responsible for the digital infrastructure of schools and for decisions regarding how best to incorporate digital technology into classroom practice. As such there is significant variation in both progress, investment levels and maturity across the system. In some authorities all pupils have 1:1 access to devices, where as in others there may be more limited or shared access. This variation is also reflected approaches to, and quality of, connectivity to operationalise these devices.

The Scottish Government's forthcoming digital education strategy will seek to support all local authorities and tackle the inconsistencies that currently exist across the education system.

In terms of teacher skills, their professional standards require teachers to have the "skills and competencies which comprise digital literacy" in order that they are able to apply the use of technology to pedagogy. However, there is no formal reporting mechanism in place centrally to help understand the extent to which all educators are confident in this area and the impact which meaningful use of digital technology may have on the delivery of education. They are considering how further guidance may better support the profession to understand the stages and spectrum of digital skills which comprise digital literacy for educators in order to support improved professional learning and development.

⁴⁰ Technology in Schools Survey 2023

⁴¹ Technology in Schools Survey 2023

4. Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☒ Monitoring results are made public. [Please provide the link:](#)

UK Government

Ofsted, the education inspectorate in England, conducts regular inspections of all state funded schools, Further Education settings, Early Years settings, local area special educational needs and disability provision, and children's social care provision, and publishes its findings. [Find an Ofsted inspection report.](#)

Wales

[Delegated school outturn \(gov.wales\)](#)

[Delegated school budgets \(gov.wales\)](#)

Northern Ireland

The data collected through the school census exercise are used by DE in Northern Ireland to inform a wide range of policy areas, including finance allocations, school estate development and planning, special education, school improvement, area-based planning, extended schools, additional educational needs, early years and integrated and Irish medium education. Other users include the Education Authority, the Education and Training Inspectorate and to inform responses to Assembly questions and requests from academic researchers, journalists, lobby groups and the public.

[Statistics | Department of Education \(education-ni.gov.uk\)](#)

Scotland

HM Inspection reports - [HM Chief Inspector reports and guidance | Inspection and review | Education Scotland](#)

☒ Monitoring processes are participatory, inclusive and regular.

☒ Sector-wide and multisector approach is adopted to education governance.

☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

☒ The decision-making process for the allocation of resources to education is transparent.

☒ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

UK Government

School Landscape in England

State-funded schools in England comprise of schools maintained by local authorities (LAs) and academies controlled by academy trusts, who are independent charitable companies. LA-maintained schools and academies are held to account differently and have different governance systems. Today, 49.3% of state-funded schools open in England are an LA-maintained school and 50.7% are an academy or free school.

LA-maintained schools include: maintained special schools, maintained nursery schools, community, foundation and voluntary schools, and pupil referral units. These schools receive their funding from their LA and are held to account by their LA. However, where such a school is judged 'Inadequate' by Ofsted, the Secretary of State has a legal duty to issue an Academy Order to convert the school into a sponsored academy. Each school is assessed on a case-by-case basis and the DfE works with academy trusts, sponsors, LAs, and dioceses to find the best plan for the school.

Academies are state-funded institutions, independent from LAs and are funded directly by the DfE. They include free schools, university technical colleges (UTCs), and studio schools. Academies are run by an academy trust. Academy trusts are not-for-profit charitable companies. They employ the staff and have trustees who are responsible for the performance of the academies in the trust. Trusts might run a single academy or a group of academies. Academies currently do not have to follow the national curriculum and have greater flexibility than local authority maintained schools over teacher pay and qualifications, length of the school day and year, the pooling of funding, and employment conditions. This government has committed to include academies in a range of policy changes that would remove some of these systemic discrepancies.

DfE requires a high level of accountability and transparency for all academy trusts. Their status as companies, charities and public sector bodies means they are all subject to rigorous accountability systems. They are held to account by the Secretary of State through a contractual arrangement called an academy funding agreement (FA).

DfE publishes school performance measures for each school within a trust. School performance measures play an important role in supporting schools to improve, holding them to account, and helping parents and students when choosing schools.

Where trusts are sufficiently well established to a) have had time to have an impact on the performance of the academies within the MAT and b) so that aggregate data says more than the individual institution data would, DfE also publishes performance data at MAT level. In line with this, MAT measures are produced for trusts that have at least three academies with results at the same phase (primary, secondary, 16-18) and where those academies have been with the MAT for at least three academic years.

The new UK government has committed to remove barriers to opportunity and raise school standards to ensure the school system is fair for every child, no matter their background, where accountability is non-negotiable. To achieve this, this government has committed to introduce a new annual review of safeguarding, attendance, and off-rolling.

Monitoring mechanisms

Governance and Trustee compliance

Academy Trusts

All academy trusts have a single board of trustees. The board of trustees has collective accountability and responsibility for the academy trust and ensuring compliance with regulatory, contractual and statutory requirements. Trustees must apply the highest standards of conduct and should consider the features of high quality governance as described in the published [trust quality descriptions](#). Trustees can choose to delegate powers to the board's sub-committees, including local committees, also known as local governing bodies (LGBs). In all cases, trustees remain legally responsible and accountable for the conduct of the school(s). DfE sets clear standards and expectations for governing boards. The board is responsible for ensuring legal and regulatory compliance across a range of areas, including but not limited to: general principles of charity law and education law; [health and safety](#); [information management](#); [employment law](#); and conditions and obligations imposed by funding or regulatory bodies. Responsibilities on how boards of trusts must operate will be set out in: their articles of association, their funding agreement, and the [Academy Trust Handbook](#) (ATH).

A trust's articles of association set out a framework for establishing academy trust governance structures, including: appointing and removing trust members and trustees; and establishing committees. Trusts must comply with the requirements set out in their articles as a condition of their funding agreement with the Secretary of State and as required by charity and company law. Effective trusts review their articles regularly to keep them up-to-date and reflective of the trust's development and growth. DfE's model articles reflect requirements in charity and company law and DfE governance policy. There are specific model articles and other guidance for trusts with church academies, which capture differences in governance arrangements.

LA-maintained schools

The governing body is a statutory corporation and is the main holder of the school's rights, liabilities, functions, duties, and powers under contract, tort, public law, and statute. The governing body's principal duty is to have conduct of the school. Governing bodies are the accountable body for a maintained school (including federations of maintained schools) that operate at a strategic level. The governing body has legislative responsibility and strategic oversight for the school's safeguarding arrangements and performance. The governing body is also responsible for ensuring legal and regulatory compliance across a range of areas, including but not limited to: general principles of education law; responsibilities as operators of an educational institution; and conditions and obligations imposed by funding or regulatory bodies. The constitution, procedures, terms of reference and allowances of the governing body are set out in the [School Governance \(Roles, Procedures and Allowances\) \(England\) Regulations 2013](#) and the School Governance (Constitution) (England) Regulations 2012.

Pupil referral units (PRUs)

Governance of PRUs is slightly different, being largely the responsibility of a statutory sub-committee of the LA called the 'management committee'. But the duties, powers, and constitution of management committees are similar to those of governing bodies of maintained schools (Education (Pupil Referral Units) (Management Committees etc.) (England) Regulations 2007). External Reviews of Governance (ERGs)

DfE recommends that ERGs are conducted routinely as part of a wider programme of self-assessment and improvement. It is particularly important that they are conducted before a governing body undertakes any significant change, such as converting to an academy. The Department, as well as LAs, can also recommend an ERG is conducted. As set out in the [schools causing concern](#) guidance, LAs should note the recommendations made to

maintained schools as part of ERGs. These reviews may include recommendations that may reveal a failure of governance that is prejudicing standards of school performance, and this in turn could warrant the LA, or the Secretary of State, to use statutory powers to intervene and issue a warning notice to improve. If it fails to improve this could result in the appointment of additional governors or trustees; replacement of the existing board with interim executive members to assume control of the board, or the suspension of the board's right to a delegated budget.

Ofsted Inspections

Ofsted is the education inspectorate in England. As part of school inspections of state-funded schools, Ofsted review the leadership and management of the school. Details of the inspection process and the areas assessed are set out in Ofsted's published [school inspection handbook](#).

The DfE's [Maintained Schools Governance Guide](#) and [Academy Trust Governance Guide](#) sets out the features and structures of effective governance, which is to provide strategic leadership and to create robust accountability, oversight and assurance for educational and financial performance.

In addition, the board of governors or the board of trustees are responsible for ensuring that the school fulfils its statutory duties, for example under the Equality Act 2010, and other duties, for example in relation to the 'Prevent' duty. The board of governors or the board of trustees are also expected to exercise strategic oversight of all aspects of safeguarding.

This government has committed to remove barriers to opportunity and raise school standards to ensure the school system is fair for every child, no matter their background, where accountability is non-negotiable. To achieve this, this government has committed to enhance the inspection regime by replacing a single headline grade with a new report card system telling parents clearly how schools are performing; and bring Multi-Academy Trusts into the inspection system

Further Education & Skills - Ofsted Inspections (Leadership & Governance)

Ofsted inspectors look at the work of principals, chief executives, senior leaders, deans, heads of apprenticeships, subject leaders and others with leadership and management roles when reaching this judgement on 'leadership and management'. This judgement is about how leaders, managers and those responsible for governance ensure that the education and training delivered by the provider have a positive impact on all learners, including those with SEND and those who have high needs. It focuses on the areas in which inspection evidence and research show that leaders and managers can have the strongest impact on the quality of education and training provided. The important factors that are taken into account are set out in the [Further education and skills inspection handbook](#)

Inspectors will seek evidence of the impact of those responsible for governance. They will determine whether they provide confident, strategic leadership and create strong accountability for, and oversight and assurance of, educational performance to ensure continuous and sustainable improvement. Inspectors should consider whether those responsible for governance:

- know the provider and understand its strengths and weaknesses
- support and strengthen the provider's leadership and contribute to shaping its strategic direction
- ensure that the provider meets its statutory responsibilities with respect to education and training
- provide challenge and hold senior leaders and managers to account for improving the quality of learning and the effectiveness of performance management systems

Education governance

In academy trusts, the purpose of governance is to provide: strategic leadership; accountability and assurance; and strategic engagement. The board has collective accountability and strategic responsibility for the trust. It has a focus on ensuring the trust delivers an excellent education to pupils while maintaining effective financial management and must ensure compliance with: the trust's charitable objects; regulatory, contractual and statutory requirements; their funding agreement. The board also has: strategic and statutory responsibility for [safeguarding](#) and [special educational needs and disabilities \(SEND\)](#) arrangements within (and across) the academy trust ensuring the promotion of pupil welfare and for keeping their estates safe and well-maintained; and a role in making sure that it delivers its commitment to other schools and academies, however it is done.

A governing body of an LA maintained school and its governors must, as required by [The School Governance \(Roles, Procedures and Allowances\) \(England\) Regulations 2013, regulation 6\(2\)](#): act with integrity, objectivity and honesty and in the best interests of the school; and be open about the decisions they make and the actions they take and shall be prepared to explain their decisions and actions to interested parties. The core functions of the governing body are as set out in regulations include, but are not limited to, ensuring: that the vision, ethos and strategic direction of the school are clearly defined; that the headteacher performs their responsibilities for the educational performance of the school; and the sound, proper and effective use of the school's financial resources.

Allocation of financial resource

School funding

The core schools budget, which includes the core revenue funding for schools and high needs, is almost £61.8 billion in financial year 2024-25. This includes almost £1.1 billion in 2024-25 through the new [Core Schools Budget Grant \(CSBG\)](#), to support schools with overall costs.

Special and Alternative Provision schools are receiving over £140m in 2024-25 through the CSBG. The additional funding through the CSBG comes alongside the high needs budget – for children and young people with complex special educational needs and disabilities – which totals £10.75 billion in 2024-25. This is included in the core schools budget.

Every year DfE uses the National Funding Formula to distribute core funding for 5-16 year old pupils (Reception to Year 11) in mainstream state-funded schools and 0-25 in high needs settings in England.

This year DfE are targeting – over £4.4 billion (10.2%) of the formula according to deprivation, part of over £7.8 billion (17.8%) allocated for additional needs overall.

The Department also provided over £2.9 billion in Pupil Premium this year.

Capital funding

DfE's capital budget to support the education sector in 2024-25 is £6.1 billion (as part of the total commitment of c.£19bn over the SR21 period). This funding is awarded and allocated according to relevant measures of need.

On improving the condition of school buildings, DfE have allocated £1.8 billion for financial year 2024-25 informed by consistent data on the condition of the school estate. This includes:

- £1.15 billion in School Condition Allocations (SCA) for LAs, large multi-academy trusts and academy sponsors, and dioceses, and other large voluntary aided school groups, to invest in maintaining and improving the condition of their schools.
- £450 million available through the Condition Improvement Fund programme (CIF). CIF is a bid-based fund for projects to address condition issues with buildings at small and stand-alone academy trusts, voluntary aided schools and sixth-form colleges.
- Over £200 million of Devolved Formula Capital (DFC) allocated directly for schools to spend on capital projects to meet their own priorities.

To create new mainstream school places needed over the next three years up to and including the academic year starting in September 2026, nearly £1.5 billion of Basic Need Capital Funding (£745m for September 2024, £195m for September 2025, and over £520 million for September 2026) has been announced.

- Capital funding is provided through the Basic Need grant to support LAs to meet their statutory duty to provide sufficient school places, based on their own pupil forecasts and school capacity data.
- LAs can use this funding to provide places in new schools or through expansions of existing schools and can work with any school in their local area, including academies and free schools.

To improve facilities for children and young people with special educational needs or disabilities (SEND) or who require alternative provision, DfE are investing £2.6 billion in high needs capital between 2022 and 2025.

- This funding will support LAs to deliver new places in mainstream and special schools, as well as other specialist settings, and will be used to improve the suitability and accessibility of existing buildings.
- LAs recently provided us with data about the capacity of their specialist provision, and the methodology for calculating LAs high needs capital allocations has been updated to utilise this data and target funding at LAs facing the greatest pressure on places.

Financial governance

The primary responsibility for the financial oversight of academy trusts rests with the trustees themselves, supported by clear financial management and governance requirements set by DfE in academy trusts' Funding Agreements, the Academy Trust Handbook and Academies Accounts Direction.

The DfE has an effective assurance programme for academy trusts, academy trusts must submit a range of data including: audited accounts, auditor reports, and three-year budget forecasts. To ensure accountability and transparency, individual academy trusts must publish annual audited accounts and details of their objectives, achievements and future plans. DfE also publishes the Sector Annual Report and Accounts (SARA), which brings together all academy accounts into one published document.

LAs are accountable for maintained schools' finances (although some governing boards do have delegated budget authority from their LA) and DfE supports LAs in their efforts to strengthen the financial accountability and efficiency.

For LA maintained schools, each LA has a scheme for financing schools which sets out the financial relationship between it and its maintained schools, and DfE publishes guidance setting out what is required or permitted in schemes.

DfE takes a risk-based approach, using this data and working with the sector to support and intervene proportionately.

The DfE works with academy trusts and with maintained schools, through their LA, providing support to help them build capacity and strengthen their financial position. DfE's support offer helps all schools to manage their resources through an established suite of tools, services, and guidance. The offer has been designed and developed in partnership with schools and trusts to help them make informed decisions about how to manage their budgets and prioritise resources to have the greatest positive impact on their pupils' education.

Wales

In Wales all LAs have a duty to ensure that all children are in receipt of a suitable education. This also applies to those learners who are Electively Home Educated by their parents. The Welsh Government has provided additional funding £1.7million for LAs to support them in undertaking that duty.

Social Partnership in Wales

In the spirit of social partnership, the purpose of the Schools Social Partnership Forum, currently chaired by the Cabinet Secretary for Education, Wales, provides a sustainable mechanism which enables any school's workforce matter which might benefit from a national approach to be discussed by employer and trade union representatives as equal partners and a positive outcome agreed if at all possible.

The Forum does not replace existing local or regional social partnership arrangements between employers and recognised trade unions nor existing regional or national arrangements involving for example, trade unions, the Association of Directors of Education Wales (ADEW) and/or Welsh Government.

The partnership aims to:

- To highlight common issues and work together in partnership to identify solutions and ways forward
- To discuss and inform policy development and implementation at an early stage where they affect the workforce directly
- To raise and discuss national issues/concerns and local (where applicable) which affect the workforce
- To share different approaches and good practice, and receive update information from each of the social partners
- To ensure timely engagement and communication with forum representatives
- To identify where task and finish work would be valuable
- To prevent, where possible, any break down in industrial relations
- To allow for workforce consultation where appropriate, feeding into and/or from forum meetings, and reporting decisions which directly affect the workforce
- To invite input from external contributors to inform discussion

The Welsh Government provides funding to LAs to support their funding of pre-16 provision in schools in Wales mainly through the local government revenue settlement. The settlement is not ring-fenced; the funding allocated to each authority is available to the authority to spend as it sees fit across the range of services for which it is responsible, including schools. This is in line with the Welsh Government's policy that LAs are best placed to judge local needs and circumstances and to fund schools accordingly.

Once the annual local government settlement has been distributed to LAs, it is the responsibility of individual authorities to set budgets for their schools which are determined by a local funding formula. [The School Funding \(Wales\) Regulations 2010](#) require 70% of funding for schools' budgets to be distributed on the basis of pupil numbers. Local

authorities have discretion to distribute the remaining 30% on the basis of a range of factors so that they can take account of individual school circumstances.

LAs, when carrying out their duty to ensure the availability of suitable education provision in their area, should work with their maintained schools to evaluate the effectiveness of their school funding arrangements in supporting and raising the achievement of all learners. Schools have the opportunity to influence their LAs decisions on school budgets by engaging in dialogue with authorities including through their budget forum, which is required in law. Once LAs set budgets for their schools, management of those budgets is the responsibility of the school's governing body.

Although funding for schools in Wales is mainly provided through the local government settlement, the Welsh Government's education budget also supports spending in and on schools, teachers and wider education programmes.

Detailed budget and outturn data is collected via Section 52 of the [School Standards and Framework Act 1998](#). This information is published on StatsWales and is easily accessible. Stats Wales education data located at: [Education and skills \(gov.wales\)](#)

LA school funding formula are complex, with very different factors included to reflect local need and local choices. A review of LA school funding formula is currently being conducted across Wales. The review will enable the Welsh Government to consider how the system can be improved to make a fairer funding system across Wales, to enable more transparent, comparable and consistent funding across Welsh schools.

Northern Ireland

Under the provisions of the Education and Libraries (Northern Ireland) Order 2003, a Common Funding Scheme (Scheme) has been drawn up to apply to all grant-aided schools funded under the Local Management of Schools (LMS) arrangements.

The CFS has been developed in accordance with the following key principles:

- Sustainable schools should be funded according to the relative need of their pupils, and in a way that enables the effects of social disadvantage to be substantially reduced.
- Sustainable schools should be funded on a consistent and fair basis, taking full account of the needs of pupils.
- The formula should support schools in delivering the curriculum.
- The formula should underpin and reinforce wider education policy and objectives.
- The formula should be as transparent and comprehensible as possible and predictable in its outcome.

The Common Funding Formula (CFF) is the DE in Northern Ireland mechanism for allocating budgets to schools. A school's CFF allocation is determined by both the quantum of funding available to the Aggregated Schools Budget and a combination of the school's overall enrolment, the differentiated needs of its pupils and the school's characteristics. Each year, the DE in Northern Ireland publishes individual schools' budget share allocated via the CFF on its website.

Under the governance arrangements the Board of Governors of grant aided schools must agree a 3-year financial plan for its school and submit it to the Education Authority for approval within the agreed timescale. The plan must align with the education priorities in the School's Development Plan and cover the incoming financial year in detail and the following 2 years at a level prescribed by the Funding Authority. The plan has to be consistent with the financial resources available to the school and be based on realistic assumptions of pupil numbers and income and estimates of expenditure.

Funding for the provision of further education is provided through a budget allocation from the overall budget assigned to Northern Ireland.

Demonstration of effective governance through Youthwork Management Committees is a prerequisite to accessing state funding for youth work. Funding is provided to Regional Voluntary Youth Work organisations to support local groups in strengthening governance.

Towards Inclusive Education Policy - see section 1 above.

The DE in Northern Ireland is one of the C3 Leads in Northern Ireland and leads on crisis and disaster management in Education through membership of Civil Contingencies Northern Ireland Group. DE liaises closely with the Education Authority (EA) as the school employing authority who have appointed an Emergency Planning Manager within the Health, Safety and Emergency Planning Service. The EA engage closely with schools to provide advice and guidance for schools in respect of education provision in an emergency situation.

Scotland

The Scottish Curriculum is set out in terms of the experiences and outcomes to be achieved by pupils. The framework of the curriculum is provided nationally, but with local autonomy in terms of curriculum content.

Independent inspection

The recently Education (Scotland) Bill, which was recently introduced in Parliament, will bring greater independence for the new education inspectorate by moving the power to set the frequency and focus for inspections from Scottish Ministers to His Majesty's Chief Inspector of Education in Scotland. This is a significant change and will increase confidence in inspection's independent role in assessing and identifying strengths and areas for improvement across our education system.

The Bill places a number of reporting requirements on the Chief Inspector, including to publish individual establishment or service inspection reports, reinforcing the important role of inspection findings in supporting assurance and improvement and the expected transparency of the inspection process. Further, it includes a requirement for the Chief Inspector to report annually on the carrying out of their functions, which it is anticipated will include information about activities carried out during the reporting period, the approach taken and evidence to support the chosen approach; additionally, to report annually on the performance of Scottish education, as far as it falls into the Chief Inspector's remit - providing a regular, independent statement to the Scottish Parliament and other stakeholders on the functioning of the education system at a national level, supporting accountability and improvement.

The establishment of the office of Chief Inspector presents an important opportunity to strengthen learner and parent/carer voices in the governance arrangements, alongside other important perspectives, such as those of teachers and other education professionals. The Bill therefore includes a requirement for the Chief Inspector to establish an Advisory Council, which will provide advice on the strategic direction of the organisation. As an independent office-holder, membership of the council is to be decided by the Chief Inspector, but there is a duty on them to have regard to the council being representative of the interests of those who will be affected by the Chief Inspector's functions. Importantly, the legislation will place a duty on the Chief Inspector to have regard to any advice provided by the council and, where decisions taken diverge from this advice, to set out the reasons why.

The Scottish Funding Council (SFC) is directly accountable to Scottish Government Ministers and the Scottish Parliament and holds colleges, universities and other funded

bodies to account for their delivery of required outcomes. SFC's expectations regarding outcomes of institutions in receipt of public funding are set out in the following:

- Funding allocations and associated guidance that set out, for example, the number of funded places or credit targets that must be delivered by the institution.
- Letters of grant and funding conditions that set outcomes of what must be specifically delivered for project or other funding.
- Financial memoranda between SFC and the colleges and universities that set out formal relationship between the SFC and the institutions that it funds, and also the requirements with which institutions must comply as terms and conditions of grant from SFC.
- Bespoke expectations agreed between institutions and the SFC within Outcome Agreements (OAs) that set out what specific activities and outcomes will be supported by SFC's funding over the subsequent year.

All Scottish Higher Education Institutions must comply with the terms of their Financial Memorandum with the Scottish Funding Council, and the principles of good governance set out in the Scottish Code of Good HE Governance.

The Scottish Funding Council (SFC) has a statutory obligation under section 13 of the Further and Higher Education (Scotland) Act 2005 to secure that provision is made for assessing and enhancing the quality of fundable higher education provided by fundable bodies. The SFC works with Education Scotland and Quality Assurance Agency (QAA) Scotland to fulfil these its statutory duties, working with colleges and universities to ensure they meet agreed expectations for academic standards and quality, and accountability for public investment in learning and teaching.

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☒ Budgetary constraints | ☐ Absence of supportive/
inconsistent/obsolete legal and policy
environment |
| ☐ Lack of involvement of relevant
stakeholders and lack of
cooperation/coordination at different levels | ☒ Lack or weakness of monitoring systems –
including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

UK Government

Budgetary constraints

One of the most common challenges cited by governors and trustees is managing and prioritising limited funding most effectively. The Department for Education supports governors and trustees to do this through its financial governance requirements and through guidance and advice.

Lack or weakness of monitoring systems

Governor and trustee recruitment is a challenge. We have a significant number of vacancies for these volunteer roles and attracting and retaining people with the right skills and experience is a challenge in some areas.

Wales

Budgetary constraints

As the Welsh Government, we are facing an incredibly tough financial situation and have taken some difficult decisions to radically redesign our budget for 2024-25. Our settlement for 2024-25 is still up to £700m lower in real terms than expected at the time of the 2021 Spending Review and our budget in 2024-25 is £3bn lower than if it had grown in line with GDP since 2010.

We have prioritised protecting core frontline public services, including schools, through protecting the indicative rise for the local government settlement. However, our public services face a very difficult year ahead as they manage the twin pressures of increased demand and costs.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

o Other:

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